



MACHINE TRANSCRIPT • CORAGGIO CONSULTING

Loudoun County Board of Supervisors, Business Meeting, Tuesday, June 16, 2026

Date Tuesday, June 16, 2026
Place Board Room, First Floor, Government Center, 1 Harrison Street SE, Leesburg, Virginia
Length 8h 51m (video)

- Official meeting video (county, Granicus): <https://loudoun.granicus.com/player/clip/8199>
- Meeting page (Granicus): <https://loudoun.granicus.com/player/clip/8199>

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Speech-to-text: whisper.cpp, model large-v3-turbo. Produced 2026-10-09. Each paragraph starts with its time [HH:MM:SS] in the meeting video.

[00:07:00] Well, good evening, Supervisors, good evening, staff, and good evening, Loudon. I'd like to call to order the June 16, 2026, Loudon County Board of Supervisors Business Meeting. This room has a hearing loop. If you need a hearing assistance, please switch your hearing aid to the telecom mode. If you need a headset, we have those available as well.

[00:07:17] Pursuing to Virginia Code Section 2.2-3708.3 of the Code of Virginia, Vice Chair Turner requested to participate in this meeting by electronic communication. A physical quorum of the board supervisors is present in the boardroom and the board has made arrangements for the voice of Vice Chair Turner to be heard by all persons in the boardroom.

[00:07:38] Vice Chair Turner made this request within the required time frame and the county attorney determined that the request meets the qualifications to participate remotely. The board will record in this minute that Vice Chair Turner participated from a remote location in Missouri due to personal reasons.

[00:07:54] Is Mr. Turner on the line? I'm here, Madam Chair. Wonderful, thank you. Um, Mr, um, Mr. Kirshner, Mr. Sains, and Mr. Letourneau, um, uh, both, uh, all three will be here, uh, as soon as they can.

[00:08:10] They all, of course, have full-time jobs, and so they're coming from different places, and they will get here as soon as, as soon as they, as soon as possible. Ms. Bricksman, would you please, um,

provide words of inspiration, and then lead us in the Pledge of Allegiance. Yes, I will, Madam Chair.

[00:08:26] Um, Madam Chair and I attended on Sunday, uh, Race Amity Day at the Baha'i Center in Sterling, and, um, there was a Baha'i sacred writing in the program that I would like to share. It says, Racism is a profound deviation from the standard of true morality.

[00:08:44] It deprives a portion of humanity of the opportunity to cultivate and express the full range of their capability and to live meaningful and flourishing life while blighting the progress of the rest of humankind. It cannot be rooted out by contest and conflict. It must be supplanted by the establishment of just relationships among individuals, communities, and institutions of society that will uplift all and not designate anyone as other.

[00:09:11] The change required is not merely social and economic, but above all, moral and spiritual. Please join me in the pledge. I pledge allegiance to the flag of the United States of America and to the republic for which it stands, One nation, under God, indivisible, with liberty and justice for all.

[00:09:35] Supervisors, before I read the consent agenda, there are two things. One, there's a possible addition to the agenda. Mr. Sains, I think, has talked to Mr. Proney about doing an appointment change to a regional committee in COG.

[00:09:55] Is that correct? And so we will have that discussion. And I also want to say that there was a mistake made when my wonderful but young staff sent out my BMI on researching the legality of prohibiting federal civil immigration enforcement and county-owned facilities.

[00:10:13] That was never supposed to be on consent. I don't want that on consent. I actually want to have the conversation. It was inadvertently placed on consent, so there would be no need to pull it off because it didn't belong on there. And it was never on my -- on my forms, it was never on the consent agenda in the beginning.

[00:10:31] So you won't hear that, and there's no need to pull it off because it was -- that was a mistake. It's a button you push or a box you check, and he just forgot to uncheck the box. So that was all that was. So the proposed consent agenda.

[00:10:46] Madam Chair, I had a point of inquiry under additions and deletions. Okay. I'd like to ask Mr. Hemstreet through the chair if I may, the third closed session item was added after the tentative agenda was sent to the board.

[00:11:05] According to our rules of order, number five general rules governing placing items on the board agenda and establishing the consent agenda, subsection E5, items may only be added after the tentative agenda goes out under very specific circumstances, and it lists like six circumstances.

[00:11:21] I'd like to ask Mr. Hemstreet, through the chair, please, how was the third closed session item added to tonight's agenda? And if possible, please tell the board which of the six possible justifications was used to add it. Mr. Hemstreet?

[00:11:38] The item was added by, at the request of the chair? A verbal request? Yes. Okay, thank you. Okay. All right. All right. The proposed consent agenda is as follows. Item R1, resolution to recognize Dr. Judy Lydeck, Provost of Northern Virginia Community College.

[00:11:57] That is for approval only. Item R2, proclamation to recognize July 2026 and June 2021, 2026 as Park and Recreation Month and Play All Day, Virginia. That's for approval only. Item 1B, contract renewal,

public safety, radio, maintenance, and support services.

[00:12:16] Item 1C, contract renewal, job order, contract for maintenance of mechanical infrastructure. Item 1D, contract renewal, job order contract for maintenance and repair of stormwater infrastructure, paving, and other site work. Item 1E, contract renewal construction support service for building and parks. Item 1F, contract award, roadway, and civil design services for village of Waterford preservation, the landmark Infrastructure Improvement. Item 1G, Bratwin Farms Waterline Extension Supplemental Funding

[00:12:50] Request. Item 1H, November 2026, Bond Referendum. Item 1I, Housing Finance Specialist Position Authority. That's a loan consent agenda. Item 1J, Security and Intelligence Operations Center. Item 1K, Community Criminal Justice Board 2025 Annual Report. Item 1L, Fiscal 2026, Section 8, Management Assessment Program Certification and Submission, Item 1M, Fiscal 2027, Restricted

[00:13:23] Transit Occupancy Tax Fund Tourism Grant Funding Recommendations, Item 1N, Smart Scale Round 7, Clark County Applications Support, Item 1P, Location and Design Endorsement, Evergreen Mills Road, Hojaland Mill Road, Bridge and Safety Approval. Item 1Q, Location and Design Endorsement, Benedict Drive, Potomac View Road to Existing Sidewalk East of Bartholomew Fair Drive. Item 1S, Health Plan Update and Premium Review for Countywide Health Group

[00:13:59] Plan, Medical Prescription, Drugs, Dental and Visual Benefits. Item 2A, Appointments and confirmations. Item 3, administrative items report of June 16, 2026. Item 4, memorandum of agreement for old or color school apartments. Item 5, county transit title 6 service, is that 6? No, that's, that's 6. 6 service equity analysis, sterling on demand, micro transit pilot. Item 9, direction for, direction for a memorandum of agreement between Loudon

[00:14:35] County and the Town of Percival for installation of a traffic signal at Percival Road, Hatcher Avenue, Hearst Road and Hillsboro Road, Hearst Road. Item 10, resolution of intent to amend the codified ordinance of Loudoun County to adopt an ordinance to remove fire damage structure at 20701 Riptide Square.

[00:14:58] Item 11, resolution of intent to amend the Loudoun County zoning ordinance and codified owners of Loudoun County, Commonwealth of Virginia legislation regarding bi-right affordable housing by religious and nonprofit organizations, and Item 14, Board Member Initiative Pedestrian Crossing Evolution on Hutchinson Farm Drive, I will make a motion to approve the consent agenda.

[00:15:21] Is there a second? Madam Chair. Second. Motion is made and seconded by Supervisor Tacroni. Madam Chair, question? Yes. Did Supervisor Letourneau request that 14 be taken off consent by email today? Did he?

[00:15:40] I think he had two he wanted off consent, 14 and 16. Well, I didn't. 16 was never on consent, as I've already said. But 14, if he wants it off consent, I think that's his district, because that's fine with me. We just can take it. I thought, do you want to put it on consent?

[00:15:57] My understanding of his email was he was asking that it be placed on consent. That's what I thought. Okay. You wanted it on? On consent. Okay. Thank you. Yep. Thanks. That's so, thus it is already on consent now. All right. Discussion on the motion. Supervisors, I do want to bring your attention to something we normally never even talk about, which is the AIR report, the administrative items report, item 3E of the AIR report.

[00:16:28] I want to bring your attention that the General Assembly has passed a new code that says that the Board of Supervisors, well, we have to approve it.

[00:16:44] What it says is that the revised statute now prohibits the Board of Supervisors from taking final action on any item added to the agenda after a meeting has begun, unless the item is time sensitive. To ensure the rules of order comply with the statutory change, this section must be amended accordingly. So it's in the AIR report, so if we vote on it, it will be amended. But I do want to speak on this, because one reason I have been saying for forever, please get your items to me by 12 p.m., because I did not want the General

[00:17:20] Assembly to believe that they need to do something with any of our localities' agenda items. It's a little frustrating for the General Assembly to tell us what to do with an item since they have no rules when it comes to four-year-old items. They have no rules when it comes to putting things out early.

[00:17:38] They have no rules when it comes to what an open meeting is. They can meet at any time with any of them or all of them. So for them to, once again, micromanage us is frustrating. And we are an incredibly transparent board in every way.

[00:17:58] But this is the reason I'm always harping about giving me things by 12 noon on meeting day. After July 1st, if the item is not on the agenda, we can't take it up at all. If an item is on the agenda and you just want to do, and I further move to a motion that doesn't substantially change the item, we can do that.

[00:18:21] But we cannot bring a new item and vote on it that day unless it is deemed to be very time-sensitive, which most things probably would not be deemed to be that. So I do want to make you aware of that. So going forward, just know that even if you want it to happen, it literally can happen because the General Assembly has just done that.

[00:18:44] In my time, Mr. Rogers, do I need to, because I know many times in the past, many, many, many times, we have done for additions and deletions, we have added closed sessions. Do I need to, just to cover any base, add a closed session to tonight's agenda? A closed session is already on the agenda, Madam Chair, but I think your question is, can you add a closed session during the meeting?

[00:19:06] And yes, you can. That has been done before. Yes, I do. I need to do, okay, and the closed session is already on the agenda. It did go out in the package. So I just want to make sure that if I need to add it, I can. But it was on the agenda, and it did go out in the package. I just want to make that clear as possible.

[00:19:22] Mr. Crony, do you have any comments? Yes. Thank you, Chair Randall. So I'm commenting on number 1-0, the Smart Scale Round 7 applications. I'm happy to support this item and the application process. You know, this is applying for state funding for road projects.

[00:19:41] But I don't support the larger four-lane bypass that is being submitted. I support the mini-bypass. The four-lane larger bypass on Route 15, and it is called the Luckett's Bypass, will take 10 years to complete, cost \$390 million, and take potentially 85 properties to build.

[00:20:04] The mini-bypass will cost a fraction of the cost at around \$50 million and can be completed in two to three years, providing the community and their surrounding area near-term relief from safety concerns. So I hope that the mini-bypass will be the one supported by SmartScale.

[00:20:23] I also would like the James Monroe Highway and Lime Kilm Road intersection. I'd like both options to be looked at. There is currently a turn lane, so a missing turn lane is what is needed, I believe, at this intersection to improve safety, not a roundabout.

[00:20:41] So I hope that SmartScale will look at both options as both options were explored in the Route 15 South safety and operations study. Regarding 1P, the design and endorsement of Evergreen Mills Road, Hoagland Mill Road, This is a safety improvement. I'm really happy to see this moving forward. There was a terrible accident at this location, and the proposed improvement, including wider shoulders, upgraded guardrails, and improved site distance will make this section of roadway safer for residents and motorists.

[00:21:17] And lastly, item four, the memorandum of agreement for the old Arcola School apartment. I'm happy to say that the Heritage Commission participated in Section 106 about the project, and they support the project and look forward to being involved.

[00:21:35] The gymnasium will be available as a community space, so it'll be open to the public. I think this is a win for the community because it saves a historic New Deal school that is in disrepair for needed affordable housing.

[00:21:50] I do want to just put out that, you know, this Arcola school is on the national register and it was county owned and it is too bad that it was allowed to fall into disrepair. I think the county has a responsibility to maintain all of its historic properties.

[00:22:08] So, I'm happy to see it get rehabilitated, but I think we have a responsibility to take care of all of our historic properties. Thank you, Chair Randall. Ms. DeCrony, your first discussion was about what item? Okay, 1-0.

[00:22:25] 1-0. And are you saying that what you just said you wanted to be looked at is not already in the item? So we put two applications in for the Route 15 Lockett's bypass, which is kind of unusual.

[00:22:42] The larger four-lane bypass was submitted and the mini-bypass. I'm just asking because you yourself can't tell the staff to do something. No, no, no, no, they already did it. I just say I support the mini-bypass. Oh, you support that it happened already. I support it, and I support the mini-bypass project.

[00:22:59] Okay, thank you very much. Ms. Bricksman? Thank you, Madam Chair. Just a few remarks on the consent agenda. The capital intensity factors, it's a little bit in the weeds, but the Fiscal Impact Committee on the advice of the schools have taken the schools' fees out of the capital intensity factors, meaning that developers, when they build new homes, will not be required to pay into the fund or pay any fees into the fund to build new schools.

[00:23:36] LCPS staff advised the school board that they believe there is enough capacity within existing and under construction facilities to serve future students, and they do not anticipate needing to open any more schools to accommodate growth within the next six years. and the six years is our capital improvement program, and that likely no new schools will be needed for up to 10 years.

[00:24:00] And so that should hopefully lower the cost of building housing in the county at least a little bit. So I was excited that we were able to do that on the FIC committee. Item 1G, Broad Run Farms Community Water Line Extension, we're putting a little bit more money in there.

[00:24:18] Ninety-six parcels in broad-run farms will be impacted positively by this. Item 10, Riptide Square, this is kicking off a process through which the county will remove the remnants of a burned

townhouse that has not been cleaned up by the owner or by the insurance company.

[00:24:38] This was an arson case, which kind of tied things up, and then also dealing with the insurance company has tied things up, and this neighborhood has been dealing with a carcass of a townhouse pretty close to Lowe's Island Elementary School. And so this starts the process by which the county can go in and clean up that mess, for lack of a better word, and make the place look a little better for the community, a little safer for the community.

[00:25:03] And then the county will be asking for reimbursement through a lien on the property once we have paid for the cleanup. Item 11, Resolution of Intent to Amend—oh, I'm sorry, never mind, I don't want to talk about that.

[00:25:18] Another thing I wanted to talk about was a big congratulations to Dr. Julie Leidig. We have a ceremonial resolution that passed on consent tonight. If you don't know her, Dr. Leidig was the provost at Nova Loudon, the community college, and she is retiring.

[00:25:35] Dr. Leidig has been instrumental in dual enrollment for all students across the county, which has benefited a number of families that their students can graduate with some college credits and save some money. She also has been instrumental in job training programs and just made the NOVA's campus the best it can be.

[00:25:55] And also the NOVA campus in Algonquian District is now the largest NOVA campus, believe it or not, in that entire system. She also worked closely with me as I brought forward the Child Care Fee Reduction Program, and we talked a lot during the renovations of Cascades Marketplace, which is right next to the Nova campus, to talk about the type of housing students might need.

[00:26:15] Thank you, Madam Chair. Mr. Turner, I was coming to you. Thank you. I have a couple of questions on the SmartScale item. Is it now an appropriate time to ask those questions? Yes. Okay, for staff.

[00:26:31] Wait, wait, I'm sorry. Mr. Turner, are you not going to be around when that— Well, you have to actually step off out of the meeting at 7 o'clock our time, right? 7 to 8.30? That's right. So it's possible that you may not be here when we do that item.

[00:26:51] We're discussing it now because it's on consent, aren't we? Or is it not on consent? It's not. But since you may not be here when we discuss it, if you want to ask the question now, that's fine. Okay, great. Thank you, Madam Chair. My question is really quickly. Projects three and six show full funding by fiscal 28, but smart-scale funding apparently isn't available on fiscal 30, fiscal year 30.

[00:27:18] Does that mean that these projects are going to be delayed even though they're on the smart-scale schedule? And the second one is, how did we choose the Loudoun County Parkway and Tall Cedar segments? Were they ranked high on the list for smart-scale, or were they next in the round for STP projects. The nature of the question is, it looks like our smart scale submissions are not talking to our sidewalks and trails program and intersection improvement programs and priorities, and that smart scale is kind of jumping out of sequence for our STP and IIP programs. And so I'm

[00:27:54] trying to isolate how we coordinate in those two requests. Mr. Hemstreet, would you like to? Yeah. So, the first thing I'll say is the answer is no. It will not delay implementation of a project should we get SmartScale funding. So, that's the direct answer to your first question.

[00:28:12] The other thing that I will say is keep in mind that SmartScale is a grant process. So, everything that we're applying for is funded in your CIP. And so, all we're doing as staff is trying to match up the best project that we think will qualify for the funding. So those projects will be funded if we are not successful with this round of smart scale. We may try again or we'll fund it through general revenue or we'll fund it through, you know, another source. So I just want to make sure that's clear to the board. What we're doing and putting forward is those projects that we think have the best likelihood of scoring well and potentially being funded as part of

[00:28:51] that specific grant process. Thank you very much. Thank you, Mr. Letourneau. Welcome. Did you have any questions for the consent agenda? Mr. Letourneau, just so you know, number 16, my motion should have never gone on the consent agenda. It was a mistake.

[00:29:07] My amazing but young staff didn't check the box that said consent agenda. They did check the box in accident, so that was an accident. It was never supposed to be there. I actually very much want to have this discussion, so I appreciate you taking it off, but it would have been on there anyway just confirming that you did i believe at item 14 okay well thank you very much madam chair that's a um just an item to evaluate a pedestrian crossing on a busy stretch of road that does not have crosswalks or anything in them um it's going to be one of those kind of situations that we've talked about in the past where if we do you know if we do the

[00:29:45] evaluation and there's a crosswalk we'll have to figure this out because it doesn't really fit into one of our categories, but be that as it may, we've told the community we would work to try to at least have an evaluation on that. So I appreciate the support for that. Thank you. You're welcome. All right. I made the motion for the consent agenda. Mr. Crony, second the motion. A lot of people say aye. Aye. Any opposed? That motion will pass 6, I'm sorry, 7-0-2 with Mr. Kirshner and Mr. Sains. Ms. Bricksman, after I do voice for Cause and Mr. Hemstreet's comments, we have a pretty long time until we get to 5.30, which

[00:30:24] will be actually 6, yeah, 5.30, which, no, 6 o'clock when we'll get to public comments. And so we'll probably go into closed session. With the vice chair not being on the dais and you being next in leadership, you will read us into the first two closed sessions when we get there, which will be fairly quick. Today, I will also go through my chair's comments of what's happened, which has been a lot over the past couple of weeks since we were last on this dais. Supervisors, I do want to remind everyone that if you are going to NACO and

[00:31:01] you are on a committee, if you, in your committee, if you put a resolution forward before or if anyone else did, if that resolution passed and became part of NACO's legislative program, it does not have to be resubmitted. However, if the legislation did not pass and is not part of the program, the legislation resolutions do not carry over.

[00:31:25] And so if you have a resolution that you want to put into NACO, you've been following your emails and such from them, tomorrow is your deadline to get any resolutions into NACO that you might want to get there. They will not carry over if they did not pass already. I want to report that this year, and I'm so proud of them, two of my staff members, Matt Rogers and Justin Hennessey will have their own voting portfolio at NACO.

[00:31:50] You don't have to be an elected official. You can absolutely be staffed. Matt Rogers, my chief of staff, has been going to the courts and justice meetings since he's been with me. So he's been going for five

straight years. He will now be a voting member of courts and justice. And Justin Hennessey will also be, he has put three things in.

[00:32:09] We're not sure which committee they will give him, which one or two. So I will have two other people going to NACO who are voting members who have a vote on the committee. So when I do my updates from here on out, I will also do updates for the committees that my staff is sitting on as well.

[00:32:27] And again, I think the deadline for that has passed. But if you have staff that goes to NACO, you can certainly have them on the committee if you want to have them. When we go to NACO this year, I'm going to be on two panels. I'm moderating one and I'm speaking on the other.

[00:32:42] Both of the panels are around the issue of mental health and public health offerings and whether mental health should be available as a public health offering. Of course, I think everybody knows that I think it should be, and so I'll be on that. On Thursday, the 11th and the 12th, it was the last days of the cohort meeting of Leadership Greater Washington.

[00:33:05] Class of 2026, one thing we did do was choose our class name. It's 2026, never eclipsed. I kind of like it. I did vote for that name. And so it was a nine-month leadership cohort program that took people from all around the Washington, D.C. area.

[00:33:23] It was 61 people in the cohort. Many, many of them, most of them, in fact, were business leaders. Some were nonprofit leaders. And there were only four who were government officials or elected officials of any type. But it was very, very valuable.

[00:33:38] And I believe that much of what I have done there will be a benefit, so I do want to say thank you to my staff who held it down while I went to the Leadership Greater Washington cohort meetings. On Thursday the 11th, I also did an NVT, Northern Virginia Transportation Authority meeting, where we reviewed public comments that were made at our annual hearing.

[00:33:59] Mr. Kirshner is not here, but when he gets here, I will talk to him. Mr. Kirshner, one of the groups that spoke, in fact, most of the speakers at the NVT public hearing from the town of Hamilton, they came about two issues, people who were driving much, much, much too fast down their main road, their main street, and their sidewalks.

[00:34:20] Because NVT is an organization that does congestion relief relative to cost, NVT, most of the pots of NVT money cannot be used for fixing sidewalks, although the sidewalks do need to be fixed.

[00:34:36] So I did sit down and talk with the NVT exec, Monica Backman. We talked about having, possibly having, as we vote on it, And that's to be voted on by NVT and go through all the process. But there would be some, hopefully, some funds available for some type of traffic calming down the main road of Hamilton.

[00:35:02] But then other sidewalk availability funds that would be available for the sidewalk. The sidewalk, although Hamilton put it in there, it's a beautification project.

[00:35:17] When I went and walked the full length of Hamilton, which is only a mile, it's not really a beautification project. It's a safety project. And so we will sit down with MBTA staff, with the county staff, and with Hamilton staff to find out what sources of money we can use for the sidewalk versus what sources of money we can use for the road.

[00:35:40] Yesterday, the Local Commission on Public Health met to discuss the rollout of the initiative of public health offerings. The discussion was led by former Ohio Governor John Kasich, who has been the person who's called this group together. It has been just such an honor and a pleasure to be in this group of 15 people who are, you know, very, very impressive human beings, to talk about how to get trust back into public health.

[00:36:10] Unfortunately, after COVID, a lot of trust was lost in public health. But we did talk about the fact that public health hasn't just done vaccinations. They've done the whole campaign for seatbelts was a public health campaign. The campaign against smoking was a public health campaign.

[00:36:28] The campaign to understand HIV was a public health campaign. And so we're trying to help get back some of the trust in public health and then talk about going forward what public health should offer. And then finally today, we held the regional 2026 ANOVA Health Opportunities Luncheon that was held in Fairfax.

[00:36:53] There were 26 regional nonprofits that were recognized for their extraordinary work in the nonprofit space. I am so proud to say that seven of those nonprofits that were recognized today were nonprofits that were located in Loudoun. So we had a huge number of nonprofits.

[00:37:10] In fact, the highest number of nonprofits from one location were from Loudoun County. It was a great event at the ANOVA campus in Fairfax. So those are all of my, not all, but those are the most important regional updates that I actually have.

[00:37:30] I'm very happy to say today that my voice for a cause today is the Berg Family Reunion. The Burke Family Reunion is a local nonprofit with the mission of preserving the memories of Black descendants of Leesburg and supporting the residents of Native Black African Americans residing in the township of Leesburg through community building and outreach.

[00:37:49] The Burke Family Reunion Club is committed to providing support to African American families through strategic programming, scholarships, and community gatherings such as the Burke Family Reunion and the Juneteenth Celebration event. A little later in the program, I mean in the program, in the agenda today, I will talk more about Juneteenth.

[00:38:09] But today we have joining us is Mr. Urban Green, who is the president of the Berg Family Reunion. Welcome. Thank you for being here. Can you tell me first, what types of scholarships does the Berg Family Reunion offer to students in Loudoun County?

[00:38:25] The Berg Family Reunion Club offers what we call the Amy Anderson Scholarship Award, which supports graduating seniors who demonstrate academic achievement, demonstrate involvement, leadership, and a commitment to their future goals.

[00:38:41] Our goal is not only to provide financial assistance, but also encourage young people to continue serving their communities and pursuing educational opportunities that would help them succeed and make a positive difference in the world. I think Amy Anderson, actually, her grandson still lives in Loudoun County.

[00:39:01] She was an educator in our county. Yeah, yeah. Absolutely. What does the Burke Family Reunion Club have planned for Juneteenth this year? We have a great day planned. Okay. We have a lot of great live entertainment. We have food vendors, merchant vendors.

[00:39:16] We'll have activities for young children. And it's considered a family-friendly event. And we encourage any and everyone to come out and partake in what we call the greatest day of the year, Juneteenth. I love that you say it's a family-friendly event and that Juneteenth belongs to everybody.

[00:39:35] Yeah, we want any and everyone to come out if they can. All right, thank you. Why do you believe Juneteenth is important to recognize? For me, Juneteenth is more than a historical observance. It is an opportunity to preserve history, celebrate culture, strengthen community, and inspire future generations.

[00:39:55] It reminds us that freedom should never be taken for granted and that every generation has a responsibility to learn from the past while working toward a brighter future. Could not agree more. And then finally, what is the best way for people to contact you all to learn more about the Burke Family Reunion Club?

[00:40:13] How can they get involved with your contact information in general? Yes, we do have a website, and our website is www.thebfrc.com. You can reach me through the website. There's a way that you can send messages through the website so they come to me.

[00:40:32] We're always looking for folks to join us and help us in any event that we put on, because we do a lot in the community, not just in Leesburg, throughout the entire county. So I'm a big believer of giving back. I have a big heart. I taught, I was an educator for 30 years, so special needs teacher, so I'm big on that.

[00:40:52] This class is a special needs teacher as well. It is a special person who can do that job, so thank you for doing that. Absolutely. Well, one more time, give the website. www.thebfrc.com.

[00:41:10] Okay. Well, Mr. Green, listen, I hope everyone does come out for Juneteenth this year. I think you're doing a great job, and I do think that Juneteenth is a holiday that belongs to everyone, if they really understand it. But I also know that the Berkshire Union does much more than just Juneteenth throughout the years, and you've given thousands of dollars away in scholarships, and so you all are very, very appreciated.

[00:41:32] So thank you very much. We appreciate you being here. Thank you. Thank you for the opportunity. Mr. Hemstreet, do you have any comments this evening? Thank you, Madam Chair. I've got four comments for this evening. The first is that with the Fourth of July holiday coming up, I want to remind everyone to stay safe and remember that fireworks are more than just colorful lights in the sky.

[00:41:53] They are explosive devices that can cause serious injury and property damage if not handled correctly. The safest way to enjoy fireworks is to attend a public display conducted by trained professionals. The Fire Marshal's Office provides a comprehensive list of public fireworks displays in our area along with safety information at loudon.gov/slash/fireworks.

[00:42:14] Second, Loudoun County has published a 2026 Loudoun County Apartment Guide and a companion online map. The guide includes information about both market rate and affordable rental options in Loudoun and is provided in both English and Spanish. The online map is a searchable directory of the communities in the guide, including a search by school zone feature, as well as facilities such as hospitals, fire and rescue stations, community centers, parks, and libraries.

[00:42:40] The guide is online at [loudon.gov slash apartmentguide](https://loudon.gov/apartmentguide). Third, in observance of National HIV Testing Day, all charges for office visits at the Loudoun County Health Department will be waived for testing of HIV and other sexually transmitted infections next week, June 22nd through 26th.

[00:43:01] Limited walk-ins will be available at the health clinic at the Shenandoah Building here in Leesburg. Appointments are strongly recommended. More information is online at [loudon.gov slash STI](https://loudon.gov/sti) screenings. And then finally, the Loudoun County Animal Shelter is offering a unique volunteer opportunity for young people.

[00:43:20] Through the Paws for Summer program, children ages 10 to 15 can volunteer at the animal shelter alongside a parent or guardian during the month of July. Details and a link to sign up for an orientation session can be found at [loudon.gov slash animal volunteers](https://loudon.gov/animalvolunteers).

[00:43:36] Those are my comments this evening, Madam Chair. Thank you, sir. I appreciate it. Okay, we're going to go on and do our information item. We have one information item tonight. If Mr. Rush and Mr. Quintine will come to the dais after that, we're going to go into closed session. Depending on how long this information item takes, we may go into closed session for items one and two.

[00:43:56] We'll see what time it is after the information item is complete. But we will first have you all come up. Good evening.

[00:44:10] You good? Good evening, Chair Randall, members of the board. Thank you for the opportunity to present the fiscal year 2026 annual report on the Loudon Equity Action Plan and community-wide initiatives.

[00:44:29] This report is provided pursuant to the board's 2023 equity resolution and summarizes the county's progress during FY26, including the implementation of the Loudon Equity Action Plan and advancement of board-directed initiatives and priorities for FY27.

[00:44:48] FY26 represented an important transition for the county. Following the establishment of foundational frameworks, assessments, and planning efforts in prior years, the county shifted its focus from framework development to implementation. During the fiscal year, efforts centered on integrating the board's priorities into governance structures, departmental planning, performance management, and service delivery, while establishing systems to support accountability and measurable outcomes.

[00:45:15] This evening, I will briefly provide an overview of the annual report, highlight key accomplishments, outcomes achieved during FY26, and conclude with priorities for FY27. Wonderful. This report is organized around seven focus areas, leap implementation, departmental impact plans, board strategic initiatives, education awareness, equal employment opportunity, data and performance analytics, and community equity initiatives.

[00:45:46] Together, these focus areas reflect a coordinated countywide approach to strengthening organizational effectiveness, improving accountability, and supporting responsive service delivery. Central to these efforts is the Loudon Equity Action Plan, which was approved by the board February 2025 as a three-year strategic framework designed to guide the implementation of the equity resolution and establish clear goals, performance measures, and accountability mechanisms across county government. During FY26, implementation efforts focus on establishing government structures, integrating performance measures, and coordinating activities across

[00:46:23] departments and embedding these priorities into county systems and processes. There are several significant accomplishments were achieved during the fiscal year. The county launched its first year of the LEAP implementation and established government's planning and performance metrics associated with that for long-term execution.

[00:46:44] Progress updates were obtained from all 13 LEAP actions scheduled during this reporting period, with all actions either completed or underway. Another major accomplishment was the introduction of departmental impact plans. Through two implementation cohorts and a third and final in progress, departments developed department-specific goals, initiatives, and performance measures aligned with countywide priorities.

[00:47:10] This process strengthened accountability, increased cross-departmental collaborations, and created a consistent framework for translating strategic initiatives into operational action. The county also advanced several board-directed initiatives in FY26.

[00:47:26] Staff initiated work on the Human Rights Ordinance and completed Phase 1 of the study of the operation of segregated schools in Loudoun County. In addition, the county continued investing into professional development, organizational capacity building. More than 1,000 employees participated in learning opportunities and more than 400 community members, partners, and stakeholders engaged through outreach and collaboration and regional initiatives.

[00:47:49] These efforts support knowledge sharing, strengthening our partnerships, and reinforce a culture of continuous improvement. The county also enhances data and performance management capabilities through a development of workforce dashboards, employee feedback tools, and data governance guidance.

[00:48:08] These improvements support more consistent reporting and strengthen our performance measurements and enhance the county's ability to make informed decisions using reliable data. And finally, the county completed an assessment of 179 facilities, programs and services and digital assets as part of the ADA self-evaluation and transition plan and progress is being made to address the identified areas.

[00:48:33] Collectively, these areas produce several important outcomes in FY26. Most notably, departments are now operating within a more structured framework that links strategic priorities to measurable outcomes and operational planning. County continued to improve its organizational reporting and performance measurements by enhancing reporting tools, key measures, and expanding access to workforce and organizational data.

[00:48:57] Together, these efforts represent meaningful progress towards institutionalizing our practices that support effective governance and high-quality public service. So looking ahead for FY27, we'll focus on building upon the foundation that we've established during the first year of implementation.

[00:49:17] Key priorities include continue implementation of the LEAP, expansion of departmental impact plan participation, further integration of our performance metrics and management systems, continued our advancement of board-directed initiatives, and to enhance our data-informed decision-making capabilities.

[00:49:35] Building on FY26 regional and local stakeholder collaborations, and FY27's efforts will be placed on a greater emphasis initiatives that support upward mobility and long-term economic

opportunity for residents and employees. In closing, FY26 marked an important milestone in the county's transition to implementation. The county has built a strong foundation for continued progress in years ahead. This concludes my presentation. I would like to thank the board for its commitment, its leadership, and its continued support, and I'm happy to answer any questions.

[00:50:09] Mr. President, thank you and thank your staff. You all do such an amazing job. Supervisors, do you have questions? Mr. Turner, I'm going to start with you only because I don't want to forget you because you're kind of out there in virtual land. And so I will start with you for most things tonight if you don't mind. So do you have any questions, Mr. Turner? I have none, Madam Chair.

[00:50:32] Thank you. Anybody else have a question? Ms. Briggsman. Thank you, Madam Chair. And thank you so much for the update. Really appreciate it. Very much looking forward to the task force for the study on segregated schools. It appears as if Loudoun County is no longer listed on the human rights campaign website under the MEI index. I'm not sure how that, can you talk about that a little bit as to why we would have been taken off? And I'm assuming we're reapplying.

[00:51:05] Yes, we are reapplying. The other jurisdictions that have been listed there, as we remember, Those were jurisdictions that were identified by the MEI. We actually were a self-submission, and so I talked to them a little bit about that as well.

[00:51:20] And I think as years go forward, the ones that they specifically focus on, that they invite, is what will actually be on that list. So it was their choice to not have us on there anymore? Because we were on there last year, I thought. Yes, they control that website, so yes.

[00:51:38] So it was their choice not to list counties that self-submitted or cities that self-submitted? That is my understanding. That's very interesting. Okay. But we're still going to submit? We are going to submit this. Okay.

[00:51:55] That's very interesting. Thank you. Excuse me. Mr. Crony? Thank you, Chair Randall, and thank you for the presentation. So I noticed that your next steps are to place an increased emphasis on expanding long-term economic opportunities for community members.

[00:52:18] How does a Loudon Learners program, which I had the privilege of really experiencing with COG and some of the Loudon Learner participants, how does that help advance that mission?

[00:52:35] Yes. Thank you for that question. So if we remember, we sent a cohort to COG to study upper mobility in the region. And we're now starting to integrate that more within Loudoun County. We talked about our Alice populations. It was actually listed also in our budget presentations. The learners program is a facet of that because it actually helps with that upper mobility of ones that are either transitioning from one industry into more of a tech industry

[00:53:10] as well. There are ones that are in that cohort that may have been mothers that had exited the workforce to raise children and now they're reentering the workforce again. And so this program helps to, you know, teach about programming, about just a lot of things around technology and has really helped the county along the way and has saved a lot of money in some of the programs that they're actually doing.

[00:53:37] And I've stayed connected with that cohort as well. Just phenomenal stories that are listed there. And I would invite anyone to really look into that because that was a great investment by the county. Yeah, it was excellent. I would encourage everybody to have an opportunity to participate.

[00:53:54] It was excellent. Thank you. Ms. Glass. Thank you, Madam Chair. Mr. Rush, thank you for the presentation. When does staff anticipate bringing to the board a draft of the county human rights ordinance?

[00:54:10] So we are in the phases of scheduling meetings for that. As we mentioned in our last presentation, we'll have iterations where we'll bring updates back to the board. But the short timeline that we looked at was somewhere around eight months or so to make sure that that goes through its complete process and all the things that it would have to go through to become an actual ordinance.

[00:54:36] Thank you. Mr. Rush, to that question, you know, I think that sometimes because, well, we on the board get to have access to you, who, you know, walked into my office when I've asked you to, I walked into your office, and you explained what things mean to me.

[00:54:57] And I don't know that everyone has, not everyone has you at their disposal to have these discussions. I don't know that not everyone, most people probably do, but not everyone actually understands what the Human Rights Commission does. And they think it's a very inward-facing, county government-facing organization or effort when it's really not.

[00:55:21] Can you just, just for edification's sake, explain what a Human Rights Commission actually does? Yeah. So I'll start by looking at or revisiting our conversation about the Human Rights Ordinance.

[00:55:37] So we're actually in the process of drafting an ordinance. It would be up to the board to select if they wanted an office or if they wanted a commission. But those commissions actually are externally focused into the community. And it looks into different areas like housing and credit and education and things of that sort where people may have some claim to alleged discrimination, but also those commissions also mediate conversations between the person that is making that complaint and the person or the entity that they're making that complaint against.

[00:56:15] Yeah, so it's not really about county government. And I think a lot of people do. And then can you talk about... You know, we haven't decided how that's going to look here, but can you just talk about how many other counties, especially in northern Virginia, already have this?

[00:56:35] Yeah, so our comparator jurisdictions, when we look at Fairfax, Prince William, Arlington, and Alexandria, they all have existing offices and commissions. Alexandria and Fairfax were as early as the mid-'70s.

[00:56:51] Prince William was the last to adopt that in 1993. There are others in Charlottesville, there in Richmond, as well as in Maryland. So looking at Montgomery County and areas like that, Howard County, that's our local area.

[00:57:08] So 93 was the last time it was done here. So many, many, a couple decades ago, the last time it was happening in northern Virginia. So we're the only county in northern Virginia. And then we have, and maybe even in the Washington metro area that does not have this.

[00:57:26] yes okay all right thank you very much um we look forward to your um uh next update and we appreciate you thank you very much mr hemstreet um i'm looking at my the list of speakers and i'm trying to see if we can do any action items for no other reason but it gets staff out the room kind of earlier tonight which is always a great thing i think staff's like yeah we want to go home um and if they want to go home

i'm happy to do that item number eight i don't think has any speakers on it we could do that item if there's staff in the room that wants to do that item

[00:58:01] i see heads shaking if there's staff then let's go in and do item number eight we can get we can get some of these action items like ticked off and we get staff out of the room i've never seen a head shake so vigorously from the back of the room how are you all very good thank you yes and thank you for your consideration. You're welcome. So we'll turn it over to, we've got Scott Warris, myself, Shireen D'Orazio, and Don Breedice to brief you tonight. Okay, wonderful.

[00:58:43] Presentation for you. We'll quickly go through this. Slide number two. Slide number two. So the purpose of this evening's item is to seek the board's direction on a request for the Sons of the American Revolution to display a plaque associated with the national commemoration of the 250th anniversary of the American Revolution at the Charles Hamilton Houston Courthouse. Also to approve the location of the National Park Service

[00:59:18] National Historic Landmark Plaque at the Charles Hamilton Houston Courthouse. And then the item also is to inform the board on the initiation of the master plan project that will provide guidance on a decision-making process for future permanent courthouse complex ground application requests.

[00:59:41] This is a 14-page presentation, so we might be able to move this along. Okay. Wonderful. Thank you. Yes, ma'am. So, slide three. At this time, we've been currently taking upwards of 25 to 50 requests.

[00:59:58] Those requests are predominantly temporary use. public use of the facility grounds and not permanent use of the facility grounds. At this time, we're looking to the board to give us some direction on some of the permanent uses of that ground.

[01:00:16] Slide number four. So right now we currently have four requests, two of which are before the board at this time. With respect to the master services plan, we will pull that together, And that'll help with identifying some site inventory mapping of where these plaques or commemorative items could go, use of the grounds, and some formal procedures on the application process.

[01:00:46] Okay. That is a list of the evaluation criteria that was used for the two requests before us tonight. Good. Next slide. So, plaque request number one, again, is for the installation of the commemorative plaque on the 250th anniversary, the first public reading of the Declaration of Independence in Virginia.

[01:01:10] It is from SAR, which is the Sons of the American Revolution. And the request has been made in advance of their dedication ceremony on August 12th. And these are for permanent display? This is a permanent display.

[01:01:25] Okay. on the courthouse grounds. So staff looked at three options with our consultant. Option one, as requested by SAR, was right beside the courthouse steps in a recessed brick area.

[01:01:44] Option two was a ground mounted with a granite base. And option three was a pole mounted outside the steps. The recommendation from the consultant was location B.

[01:02:02] There was strong visual presence there and a symbolic relationship to the courthouse, accessibility, and introduces minimal visual clutter on the grounds. Next slide. There was a... Can you go back two slides quickly? One more. There was two options here that SAR did provide with respect to the text. Option one was the one recommended by the

[01:02:37] consultant. Okay. Then on plaque request number two, this is a plaque that the county is in possession of. It's really a function of where this plaque goes. So next slide. We looked at three options there also. One was next to the courthouse front door on the facade. The next option was out in front of the steps on the cheek wall. And then option C was on the wrought iron

[01:03:12] fence outside the gate along Church Street. And option C was recommended by the consultant. Really? Yeah, they felt that that was the most visible to the community as passersby would see it as they were going by.

[01:03:35] And it also didn't do any damage to the existing brick on the building. So that is the recommendation as of right now. Next slide. This just gives you an idea what the costs are for each one of the plaques.

[01:03:57] DGS will be installing these. It's roughly about \$2,500 for the granite and to install that. \$1,400 for the plaque that SAR will take care of. DGS will do ongoing maintenance to attach the stork landmark sign.

[01:04:17] It's about \$3,500 to attach that to the wrought iron fencing. So the recommendations before you are to go with option one on the text and location on a granite base outside the courthouse for the Sons of the American Revolution plaque, and then secondly, the National Historic Landmark plaque going outside on the wrought iron fence.

[01:04:50] Okay. All right. Thank you. Thank you very much. Although the courthouse ground kind of belongs to everyone, it is in Ms. Umstead's district. So, Ms. Umstead, I'll go to you first for questions. Thank you, Madam Chair. I'm inclined to follow staff's recommendation. I think that's good. I like the idea of having the historical plaque for the naming of the courthouse.

[01:05:22] on the fence because i think it's going to be seen by more people anyone who walks along the sidewalk there will see it which i think is important um and then i'm very happy with option one so thank you mr turner i'm good with staff recommendations manager thank you okay i have questions first let's go to let's go to the charles hamilton houston naming one first even if it's on the fence, is it actually going to be orange?

[01:06:06] Option C on page 10 and on page 11. No, that's just giving you an idea of where it's at. The sign is right there. It's how it looks in here. Okay, all right. Yes, it's right there. Just want to make sure. Sure. Just want to make sure. Are you saying that SARS will pay for it?

[01:06:25] Okay, let's go back to the SARS. Are you saying they would pay for it and then we upkeep it? They pay for the installation and then we do upkeep it? pay to purchase the plaque. Okay. They're going to have the plaque made and then they're going to give it to the county and the county oven mounted on a piece of granite that'll sit on the courthouse lawn. The text on these two plaques both have the name of the sheriff. Mr. Nolan wasn't a particularly good guy. So is it possible to say the sheriff and not have his name on the plaque, especially a plaque on the Charles Hamilton Houston courthouse.

[01:07:03] I think we want to say who did it, but he was not somebody whose name, I believe, deserved his name to be on a plaque anywhere. So is it possible for the verbiage to change and save the sheriff? I do not see why it wouldn't be.

[01:07:19] We would go back to SAR and verify. Okay, because I've done a little bit of looking at him and don't particularly want his name on... Anything, to be honest. Do we not, and this may be a question for Ms. Umstead, do we not have some type of statue or plaque or something there already that commemorates the American Revolution on the courthouse ground?

[01:07:46] Yes. Why wouldn't it make sense to put the plaque near that? We certainly can look at that option. It just seemed to me that we already have something, and I've been over there, it's a beautiful statue. but why wouldn't it make sense just to put the plaque near the American Revolution statue?

[01:08:04] That's certainly an option that we can look at. That did not come up in the study that we did with our consultant. Okay, so then with those questions, I probably, well, I couldn't support your recommendations because I wouldn't want the plaque to, I would want the SARS plaque to be possibly near the statue.

[01:08:26] That just makes more sense. And I want the verbiage, the name on the sign to change. And so I can go to Ms. Umstead for a motion as long as I would do those friendly amendments to the motion.

[01:08:43] And then I would do those friendly amendments to the motion. Okay? Ms. Umstead, would you like to make a motion? Yes, ma'am. And I will happily accept your friendly amendments. But if you want to read the exact language of them after I make the motion, I will accept.

[01:09:00] I move that the Board of Supervisors approve the installation of a commemorative plaque recognizing the first reading of the Declaration of Independence in the Commonwealth of Virginia as requested by the Virginia Society Sons of the American Revolution using the text proposed in Option 1 on a ground-mounted granite base along the walking path adjacent to the historic courthouse and then we may be changing in location b as described in the consultant recommendation provided as attachment one of the June 16th

[01:09:38] 2026 board of supervisors business meeting action item i further move that the board of supervisors approve the installation of the national park service national historic landmark plaque recognizing the Charles Hamilton Houston courthouse on the court's complex fence along King Street in location C as described by, as described in the consultant recommendation provided as attachment to the June 16, 2026 Board of Supervisors business meeting action item.

[01:10:11] Second. Discussion on the motion, Ms. Umstead? No, I just appreciate staff's work, and we'll be accepting the chair's friendly amendment. So, anybody else? Mr. Turner? I have nothing, Madam Chair.

[01:10:28] Okay. Ms. Bricksman? Thank you, Madam Chair. I have a question, and I'm not sure if staff can answer it, or maybe Supervisor Umstead could answer it, Madam Chair, if you're okay with that.

[01:10:40] The former Algonquian Heritage Commissioner, Alicia Cohen, has been—made it her life mission the last at least year, maybe longer, to do lectures in conjunction with Thomas Balch Library and the Black History Committee to basically do lectures about the soldiers, the black soldiers who actually fought from Loudoun—who were from Loudoun County in the area who fought in the American Revolution.

[01:11:11] is there anything that recognizes them on our courthouse lawn right now at all? I don't. I do not believe so. There is not. Not specifically the black soldiers. I did a lot of this research for the State of the County Address this year.

[01:11:26] Okay. So I guess just maybe we can have some conversations about doing that with her assistance at some point to recognize those because there has been so much work that she and some other folks in our community have done to make sure that those stories are told.

[01:11:48] And so it makes me a little nervous to just put these plaques out there and not also recognize those other patriots. And so maybe we can kind of put a pin in that and have that conversation, should my colleagues be willing, at some point.

[01:12:04] Thank you. I'm happy to support. Thank you. So, to that, the Sons of the American Revolution, just like the Daughters of the American Revolution, do accept in their organizations whoever can show lineage to have fought for the patriots in the American Revolution.

[01:12:26] So there is nothing there that says they were white or black. It's just the sons of the American Revolution. And we know that, especially the dials of the American Revolution, we have somebody right here in Loudoun County, Robin Burke, who was just accepted into the dials of the American Revolution.

[01:12:43] And one of their chapters is focused on trying to find—so I don't—I couldn't be already at 41 seconds. That's not possible. I don't know. I think that Ms. Gert, Ms. Cohen, quite a few others are doing some of this work, and they've been doing some of this work for a while, and I appreciate Ms. Evans.

[01:13:10] I mean, Ms. Cohen is wonderful. It hasn't just been Ms. Cohen doing it. They've all been doing it. But I think that SARS is SARS, and whoever can show lineage can show lineage, no matter who you are.

[01:13:27] And they don't say no to somebody who can show lineage. They just don't. And so I would keep that in mind. I would also say that the two, yeah, the two kind of friendly amendments is that we research just using the name, just using the title sheriff and not the name of that particular sheriff and research if there is any place that is appropriate to put the plaque that is near the statue that already exists, the American Revolution statue that already exists and either come back to us or let us know that in some kind of way.

[01:14:06] Yes. Yes. Just real quick, we do have a deadline of the August 12th to have that in place and the production time to get that in. If there was a way to do maybe a temporary, and then we come back with you later to do the permanent location, maybe do what's in the motion as a...

[01:14:26] As long as nothing is put in place permanently. Yeah, it would be right on the grass, so we... Because I had already said, is this a permanent, and you guys said yes. It is permanent, but if we found a new location, we would relocate it.

[01:14:41] I'd just be respectful of their deadline that they requested, and if we have to come back, we're going to miss it. And it's very possible that you all go over there and look and find something right away. I mean, that's also possible, and if so, you can let us know. But it's just more logical to me to do that, to put it all in one place.

[01:14:59] Yeah, the other thing was that that was the location where the declaration was read. Okay. Where the granite piece would be sitting. So that was, I believe, why that was chosen. Well, that does make sense.

[01:15:15] Okay. I'm fine with that. I would not be fine with the sheriff's name on anything. Understood. In fact, I would not be fine with that. Yeah. Okay. And I think we simply go back to SAR with that

suggestion. Have them prepare the plaque. Even if we can't get everything done in its permanent location by the 12th, they could still have their plaque for their ceremony.

[01:15:43] I would prefer, even temporarily, the name of the sheriff if it's not in the plaque. No, no, no. We would do that first. That would be the first thing we do. All right. Wonderful. All right. Okay. Thank you. Then I'm fine with that. Yeah. Okay. All right. Thank you. All right. Would you like a closing? Yes, Madam Chair, just to clarify so I know and staff knows.

[01:16:03] Are you then agreeable with the original proposed location for the SARS plaque? Okay. Yeah. So it will be only the removal of the sheriff's name that we change from this staff recommended motion.

[01:16:20] All right. Hope my colleagues can support this. Thank you. All right. Ms. Umstead, make the motion I seconded. All in favor, please say aye. Aye. Any opposed? That motion will pass 702 with Mr. Kirshner and Mr. Sains being off the day. Mr. Sains did text me. He said that he had just left work about 15 minutes ago. He probably won't be here until about 6.30 or so. And Mr. Kirshner will have some news to share when he gets here, so they'll both kind of just be running late. All right. Thank you very much. I know, Shereen, you don't get to go home quite yet, but do these guys get to go home? Wonderful.

[01:16:56] Congratulations. All right. I think that's maybe all we can do right now because of everything else either has someone speaking on it or it's it um is a supervisor who might be interested it interested in that item is not here and so how about miss bricksman um with a whole hour ago mr mr rogers can we do one and two in an hour you think yes madam chair i think so too mr mr bricks won't you read us into both closed sessions one and two please absolutely madam chair i move that the board of supervisors recess this public meeting and enter into closed session pursuant to

[01:17:31] section 2.2-3711A3 of the Code of Virginia to consider the acquisition of parcels or a parcel or parcels of property for public use in the Ashburn and Broadbent election districts. I move the Board of Supervisors recess this public meeting and enter into closed session pursuant to section 2.2-3711A8 of the Code of Virginia to consult with legal counsel employed or retained by a public body regarding specific legal matters requiring the provision of legal advice by such counsel pertaining to actual and probable litigation.

[01:18:06] Motion to be seconded by Supervisor Glass, discussion on the motion. So, Mr. Turner, I know you have to drop off from between 7 and 8.30 our time, but are you going to be going into this first closed session with us, sir?

[01:18:24] Yes, Madam Chair, I can join this one. So we'll meet you in there. Okay, wonderful. All right. All in favor, please say aye. Aye. Aye. Any opposed? That motion passed 7-0-2. Oh, if Mr. Kirshner or Mr. Sains comes into the closed session, I will note the time they come in, and when they come back out and affirm, they were only affirmed from the time that they were in the room.

[01:18:46] Thank you. We're in closed session.

[01:38:01] Got me?

[02:22:54] Okay, there we go. Okay, we're back. We're out of closed session. Is Mr. Turner back on? Could you let us know when he comes back on? He's there. Mr. Turner, can you hear me? I can hear you, Madam Chair.

[02:23:11] Wonderful, wonderful. Ms. Bricksman, would you please read us out of closed session? Yes, Madam Chair. I move that the closed session be adjourned and that the Board of Supervisors reconvenes its public meeting, that the minutes of the public meeting should reflect that no formal action was taken in closed session, and further move that the resolution certifying closed session be adopted and reflected in the minutes of this public meeting.

[02:23:39] Second. Motion is made and seconded by Supervisor. On stop. Discussion on the motion. I will say that Mr. Sainz joined us in closed session at 542, and so anything what he affirms to will be what he heard or saw or discussed when he came into the meeting at 542.

[02:24:04] Any other discussion on the motion, Ms. Briggsman? Discussion on the motion? No, ma'am. Anybody else? I want people to say aye. Aye. Aye. Any opposed? everybody please affirm. Mr. Turner, will you affirm first, please? I affirm. I affirm. I affirm.

[02:24:20] Affirm. Affirm. Affirm. Affirm. Affirm. And I affirm as well. We do have one motion out of closed session. I think it went to Ms. Glass. Ms. Glass, will you please read the motion out of closed session? Thank you, Madam Chair. I move that the Board of Supervisors direct staff to prepare a resolution to initiate condemnation and quick take proceedings as required pursuant to Virginia Code 15.2-1903B for the purpose of approving the proposed public use and acquisition of property located in the Ashburn and Broad Run election districts for construction of Farmwell Road, Smith Switch to Ashburn Road.

[02:24:59] I further move that the Board of Supervisors direct staff to advertise the resolution for the July 15, 2026 public hearing. I'm sorry, can you read that one more time, please? I'm sorry, seriously, and I apologize.

[02:25:15] Can you read that one more time, please? I move that the Board of Supervisors direct staff to prepare a resolution to initiate condemnation and quick-take proceedings as required pursuant to Virginia Code 15.2-1903B for the purpose of approving the proposed public use and acquisition of property located in the Ashburn and Broad run election districts for construction of Farmwell Road, Smith Switch to Ashburn Road.

[02:25:45] I further move that the Board of Supervisors direct staff to advertise the resolution for the July 15th, 2026 public hearing. Thank you. I'm sorry. Is there a second? Second. Mr. Maintain, seconded Mr. Supervisor Letourneau. Discussion on the motion?

[02:26:02] Yes, this is something that I have been having conversations with staff for a while now. regarding the construction of Farmwell Road and Smith-Switch Road along with turning lanes, trails, sidewalks. I know that there's a portion off of Farmwell Road where it's close to a neighborhood and there's a trail and then the trail ends. And so people who are

[02:26:37] taking that trail has to get off that and then to and have to walk on the side of a farm wall road so i'm hoping that um we can um make these improvements for the community thank you madam chair thank you mr turner i have no comments madam chair miss um i'm sorry uh thank you madam chair um if i may ask uh the county attorney a question through the chair yes my understanding

[02:27:08] going through the list of property owners from whom we would condemn either property or easements. In every case where it is a homeowner, I believe what we are looking at is a temporary construction easement. I don't see any permanent condemnation on any homeowner's property. Is that your understanding i i am not sure i have not seen that uh that is not that is that's not unusual

[02:27:45] but i have not reviewed that supervisor homestead i don't okay it's it's in the list of courses in the item um so i mean that that's certainly what it looks like to me at this time but we can settle that by the public hearing i suppose well we'll definitely be able to answer that by that time Okay. Ms. Glass, you said where the trail ends, you said they have to walk on Farm Well Road. Is that correct? Do they have to walk in the road, or is there grass they can walk on, but just not a trail?

[02:28:20] Well, I've actually taken that trail just to see how far it goes. And it looks like you—it looks like they have—there's a portion where they have to get onto the side of Farmwell Road because it goes into the neighborhood.

[02:28:39] It goes down a hill, and there's trees, and it becomes a brush area. So there is a portion of that area where they have to walk on the side of the road. Okay. I am uncomfortable doing a taking of land at all, unless it is a huge public good or a huge public safety issue.

[02:29:12] The way this reads, it's not just going to closed session, it's going to closed session, but we prepare a resolution to initiate condemnation and a quick take. I will vote for this today, but I will do a couple of things. One, I think Ms. Umstead asked a really solid question, if it's a temporary or not.

[02:29:30] I want to hear the public comments in public hearing, and I want to go out there and look myself, because it is one thing to say we want to do a taking of someone's property for the purpose of really a public safety issue. Public people are in danger.

[02:29:46] It's another thing to say they have to walk on grass. Walking on grass is uncomfortable, but you're not in danger if you walk on grass. And so if that turns out to be the case, I will not be eventually supporting this, although I will support it tonight for the purpose of public hearing.

[02:30:03] But, Ms. Glass, I'll give you a call, and we can go out there together so I can see what's going on, because I am loathe to take someone's property unless it absolutely has to happen. And I'm not convinced this absolutely has to happen, but I'll be fine. And we'll have a second bite at this apple when we go to closed session.

[02:30:21] Madam Chair. I mean, public hearing, I'm sorry. Madam Chair. Yes. May I just request when you go out there, just also consider that these are walkways that support others besides able-bodied individuals. And so often folks who could be families with a stroller, with children, could be people who have mobility challenges, they're not able to navigate this side of the road.

[02:30:50] And so they end up in the travel lane. Those are really not safe situations. and these are required so because of that our countywide transportation plan calls for sidewalks and shared use paths along all of our our roadways i do appreciate that i think i've been probably the person who's been screaming about ada compliance in our county more than anybody ever on this day as ever so i do appreciate that and i'll take that into consideration when i go out Would you like to have a closing?

[02:31:22] No, Madam Chair. All right. All in favor, please say aye. Aye. Aye. Any opposed? That motion will pass 9-2-0. We're going to go on and go to public comments. Supervisors, you haven't had a break yet. I know that. So if you need to step off just for a second to take a break, that's fine.

[02:31:39] But try to come back as soon as possible so we can keep a quorum on the dais. Not everybody at one time. So we can keep a quorum on the dais. but we are going to want to go to public comments. Okay. All right. I will call your name, three names in advance.

[02:31:55] When your name is called, please come to the podium closest to you. And if you don't mind offering your name for the record, you have two minutes to speak. When your time is up, please yield the podium to the next speaker. When you are speaking, please face the front because your comments are being directed toward the board.

[02:32:15] And when you turn around, you're not even on the mic anymore, so we do ask that you face your comments toward the front. If you are going to be speaking by phone, I'm not sure if we do have anybody speaking virtually, I will ask that you keep your own time because I cannot, if you cannot see the clock, I will not stop you at one minute, 30 seconds because you lose your flow.

[02:32:36] But I will stop you when you get to two minutes. And so keep your time yourself if you do not mind. I will call your names three names in advance so that you know you are the next person up to speak. The first person to speak would be Mara Walsh-Copeland, followed by Madeline Skinner, followed by Ava Terenshaw.

[02:32:53] Madam Chair? Yes, sir. I'm going to drop off. I will let you know when I get back on again. Thank you, sir. Thank you. Good evening, Ms. Walsh-Copeland. How are you? Good evening. Congratulations for tackling the final two Walrus motions that will benefit the entire county.

[02:33:10] Enforcement by complaint was by far the most referenced comment during ZOR input by residents and organizations. In place since the 90s, it's definitely time for policy revision for public safety. Staff produced an amazing report that describes the hodgepodge policies and citizen issues.

[02:33:29] It highlights the disparity between department policies, authority, entry, hours, cessation powers, and data sources. No wonder it's complex. Judy and Amanda made it crystal clear. Enforcement is not just one department.

[02:33:45] Compliance enforcement is a multi-departmental response that requires all departments to be properly staffed and cross-trained with equitable policy and procedures, as well as understanding the primary goal of enforcing compliances for the health, safety, and welfare for both residents and businesses.

[02:34:05] I hope the org chart view of staff's roles and data sources was helpful. Staff confirmed my preliminary inventory findings, saying staff are aware of properties operating without necessary county approvals. Tonight's motions will begin the process to fix them.

[02:34:22] Staff's recommendations for enhanced countywide zoning compliance will help alleviate citizen issues of communication and delay. Over time, we'll refine the policies and procedures across departments to be more efficient and consistent. We'll allow better staff understanding for up-front permit compliance, and, with ongoing review, we'll reduce overall noncompliance on the back end, county-wide.

[02:34:50] Set the right direction and approve your staff's recommendations tonight. Thank you. Thank you, Ms. Copeland. I appreciate it. Madeline Skinner, and you will be followed by Avis Renshaw. Good evening, ma'am. Good evening, Chair Randall and Supervisors.

[02:35:05] I'm Madeline Skinner, and tonight I'm here to support and thank staff for their great work during the phase of the Western Loudoun Rural Uses Project and for tonight's final motions for now. The enhanced countywide zoning compliance will be much more user-friendly and a timely process for our residents while producing a more efficient and consistent approach for the multiple Loudoun County

departments involved. Establishing more proactive compliance and enforcement policies and procedures that span multiple departments such as building and development, the fire marshal, health department, sheriff's office, and zoning enforcement will

[02:35:41] result in a product that will provide for better health, safety, and welfare for residents, businesses, staff, and customers. Any current or future compliance anomalies must be resolved. For some, it may be just an administrative fix. Others, it may take more time. But resolving any finding is the only answer to ensure public safety for all and just plain and simple being a good neighbor. It is critical that the zoning and compliance information on non-residential uses are continually monitored, updated, and reported on a quarterly basis to this board.

[02:36:16] The goal for industry is to be aware of the regulations compliance process through education so they can plan accordingly when their business plans evolve. Please support the pilot program with dedicated staff and extended hours covering nights and weekends and a call center to better support the residential complaint process with a streamlined and timely response from applicable county departments. Compliance, education, cross-department communication are all positive results of these motions, and I hope that you will support them. Thank you. Thank you, Ms. Skinner.

[02:36:50] Avis, excuse me, Avis Renshaw, followed by Trinity Mills. Good evening, Ms. Renshaw. Good evening, Madam Chair. I'm Avis Renshaw. I'm current president of Loudoun County Farm Bureau. A comment was made at a recent public hearing indicating that Farm Bureau had an adversarial relationship with Loudoun wineries. Farm Bureau weighs in on rural Loudoun issues as they intersect with official Farm Bureau policy. Our mandate is to advocate for farmers, support agricultural business development, and promote safe, fresh, locally grown food through lobbying, education, and resource programs. As such, wineries are firmly within the Farm Bureau

[02:37:29] wheelhouse of advocacy. What's not within the scope of our advocacy are rural businesses claiming agricultural exemptions for non-ag uses. That would be a barn utilized as an event center posing as an ag building built only to ag building code standards. Building codes are based on risk.

[02:37:48] A barn holding hay with an occasional human or two poses much lower risk to life than a building frequently hosting 100 people who need to have appropriate egress. An ag building has lower building standards and thus a lower cost to build. Your staff has well defined how the business ag exemption was crafted and under what circumstances and procedures it was envisioned to be utilized. Please respect the intent of the ag exemption. Farm Bureau is on guard to protect legitimate agriculture exemptions for legitimate agricultural enterprises. Legitimate farmers need

[02:38:25] those valid agricultural building code standards. Farm Bureau respects the work that staff has done on this issue and encourages them to help rural Loudoun businesses be in compliance with their appropriate building standards for a safer rural business experience. When you protect citizens with appropriately built public spaces, ag-exempt or not, you protect rural farming businesses.

[02:38:50] Thank you. Thank you, Ms. Rinshaw. Trinity Mills, followed by Ted Lewis. Good evening, Ms. Mills. Good evening, board. I'm Trinity Mills, speaking on behalf of Loudoun Wildlife Conservancy on both item 13 and item 1-0. While these items are, of course, decidedly unrelated, they do present a common opportunity for the board to demonstrate to your constituents a clear commitment to transparency, straightforwardness, and solid county policy. LWC supports motions one and two on item 13, each serving the purpose of giving much-needed credence to the county zoning ordinance. Motion one

allows greater agency for county staff to streamline a process that is presently an undue burden between neighbors.

[02:39:30] Combined with motion two, a clear public benefit lies in an ongoing analysis that puts non-compliance on the record to ensure that environmental and public safety concerns are addressed. A need for straightforwardness carries through to the considerations on item 10 concerning the support for the slate of round seven smart scale applications, namely the contrasting applications for the Route 15 Lockett's bypass. We at LWC understand fully that this is a complex issue requiring multifaceted inputs and careful consideration. This being said, no updates regarding the bypass have been announced by the county this calendar year. The Lockett's community has only been in conversation about these smart scale applications previously because of a citizen

[02:40:07] led FOIA and information disseminated by a local group following a couple of divergences from the currently slated project timeline and a lack of statements from the county to the public at large. The contentious nature of this project has done little to instill trust within the community and underscores the critical importance of open and consistent conversation between board members, the public, and all relevant stakeholders. As this is the first time an item related to the alternative mini-bypass has been before the full board and public forum, I urge you all to view this as a moment as an opportunity to reaffirm a commitment to transparent and forthright communication about how exactly the county proposes to address such long-standing challenges

[02:40:43] in a way that truly serves its community members. Approaching these discussions with openness and clarity will help build the public trust necessary to navigate each of these issues that I've addressed before you tonight. Thank you. Thank you, Ms. Mills. Ted Lewis, followed by Martha Polky, who is remote. Good evening, sir. Good evening, Madam Chair and members of the board.

[02:41:03] My name is Ted Lewis, and I serve as Executive Vice President of Cornerstones. Thank you for the opportunity to speak this evening regarding our request for tax-exempt status based on our non-profit designation. For more than 50 years, Cornerstones has provided critical human services to individuals and families facing food insecurity and housing challenges throughout the Dulles region. Today, I would like to briefly highlight our impact in Loudoun County. First, through our housing counseling program, we provided education and one-on-one counseling services to 37 Loudoun County residents, including first-time homebuyer education, pre-purchase counseling, and foreclosure

[02:41:41] prevention services. These programs help residents achieve and maintain stable housing. Second, Cornerstones is partnering on two affordable housing developments in Loudoun County. Tuscarora Crossing and Leaksburg will deliver 180 affordable housing units, while the old or Caldwell Elementary School project will deliver an additional 73 units. Along with housing, Cornerstones will offer wraparound services to help residents achieve long-term stability and self-sufficiency. Third, through our food rescue empowerment enterprise, we distributed more than

[02:42:16] 104,000 pounds of food in 2025 to Loudoun County food assistance providers, the equivalent of nearly 87,000 meals. These efforts reflect Cornerstone's ongoing commitment to strengthening Loudoun County communities, reducing food insecurity, and expanding access to affordable housing, as these challenges have no boundaries. We are proud to be a good neighbor and community partner in Loudoun County, and we respectfully request your support and a positive vote to advance our application for tax-exempt status. Thank you for your time and consideration.

[02:42:50] Thank you, Mr. Lewis, and thank you for your service. Martha Polke is remote, and then she'll be followed by Craig Bonds. Good evening. First, I'd like to thank county staff for all their work responding to the issues regarding zoning enforcement, compiling tonight's report describing the issues citizens have been articulating for at least the past decade, and identifying ways to better track, identify, and enforce the zoning rules, especially those that have to do with public health and safety.

[02:43:20] It is the duty of government to protect citizens now and into the future, and so there must be a regular assessment, not just a one-time inventory of whether venues operating in the county are providing that safe environment. We never want to have in Loudoun a preventable tragedy like those we've seen elsewhere worldwide with fires and crowded buildings or collapses of wrongly-purposed structures. Tonight, it is possible for you nine elected officials to show that you are indeed listening and are going to act on rural residents' intensifying frustration over the years of violations of the zoning rules pertaining to noise, overcrowded venues, environmental damage,

[02:44:00] blatant disregard of the zoning ordinance, and above all, the threat to public safety in a clear, measured, and responsive way. I've been a little disappointed in the PR campaign on the part of some entities protesting against these proposed changes, and I've also been disappointed in my own supervisor's rather disingenuous email a few weeks ago that seemed to claim that what was being proposed was somehow violating state law. I guarantee that you will hear cheering across the county when citizens hear that you have voted for proactive enforcement that is efficient and effective. Having staff dedicated to quickly responding to zoning concerns and violations with a dedicated line that citizens can call in evenings and on weekends

[02:44:40] will be welcomed. An initial review that identifies potential clients' issues, streamlines response, and works to get any problems addressed is something the public has long desired. We do want our rural businesses all to succeed, and I'm sure these updates to the ordinance will not interfere with that.

[02:44:57] Please vote for these common sense and popular rules that will protect our safety and quality of life. Thank you. Thank you, Ms. Polking, and you're right on time. Craig Bond, followed by Emily Johnson. Good evening, Mr. Bond.

[02:45:16] Good evening, Madam Chair. My name is Craig Bond, and I'd like to thank you and the members of the board for your efforts to lead our county forward. I'm here to ask you to support the staff motions that will form a base for more practical zoning enforcement.

[02:45:36] In light of the dwindling water supply, there was a great deal of concern about the time it took to shut off the individual pumping water and turning it into bottled water. I'm not sure it's a zoning or a coding issue, but people entering Loudoun County, crossing the Potomac River Bridge, get a pretty shabby impression of Loudoun County when they go by the business there.

[02:46:05] I'd like to ask the board to consider the road work on Route 15 be done at night, more of it be done at night. And I'd also like to ask the board to encourage the sheriff or VDOT to supervise the flag men on these construction sites.

[02:46:26] I've been involved in a couple of backups that were miles long. And when I get down to the point where the construction is going on, there's 15 or 20 cars trying to go the other direction. And the flag man doesn't seem to be moving the big backup, and he's letting all the short backup go forward.

[02:46:51] So, that would be something that would help alleviate the backups. So, thank you for attention to these concerns. Thank you, Mr. Bond. Emily Johnson, followed by William Marsh, who's also remote. Good evening, Ms. Johnson.

[02:47:06] Good evening, Supervisors. My name is Emily Johnson on behalf of the Piedmont Environmental Council. Tonight, you have before you a data center decision for a project called SDC Ashburn 1, formerly Project Nova. What I expect you all will discuss is how the majority of this project has already been approved. That's true, but it doesn't change that tonight you have a say in the scale of what is additionally built because the applicant has come back before you to ask for more.

[02:47:29] And it is your decision under no obligation whether to grant that. In 2019, seven years ago, a zoning map amendment changed the zoning of this property to allow for four data centers. but at site plan in 2023, the applicant removed this fourth building because the tenant wasn't ready for its construction. Now they're ready, but would like to realign and expand the building.

[02:47:49] That's a discretionary request, and you have every right to deny it and stay consistent with your established board policy, because data center development in this location is now out of alignment with our comprehensive plan. We as a county have not been on hold since 2019. We've revamped our county vision and comprehensive plan. We've learned from the impacts of other we have higher standards.

[02:48:12] While low carbon and 20% recycled architecture is nice for a land use we want, this applicant is still largely giving us a 2019 product that is no longer envisioned here. At minimum, it would be absolutely appropriate and responsible to ask for updated efficiency and sustainability commitments.

[02:48:29] Even at this stage of the application, we still find no reference to the cooling mechanism planned for this data center. And while the applicant has now specified that the generator will be Tier 4, we're unimpressed because that was forced by updated state law. It shows no proactive nor community-focused change from the applicant.

[02:48:49] While we understand the conversation on previously approved square footage, a footprint expansion gives the county an opportunity to rein in data center sprawl or to negotiate energy solutions, such as on-site solar panel with battery storage. Please remember, if this building is constructed, it will be constructed now.

[02:49:07] Thank you. Thank you, Ms. Johnson. I'm sorry. Yes, William Marsh, you is remote and followed by Elizabeth White. Thank you, Madam Chair, and good evening, board members. I'm William Marsh.

[02:49:22] I'm here on behalf of the Lab and Environmental Commission. I don't have a very long message, but it's actually a friendly reminder, right? On behalf of the Commission, I emailed you all on June 1st, as well as your staff, including a handful of recommendations for the 2027 legislative program policy recommendations.

[02:49:42] They include five recommendations related to natural resources, six recommendations related to sustainable energy issues, and an overarching recommendation that you consider a priority statement section in the document that is dedicated to energy and environmental issues.

[02:50:01] So that's pretty much it. I really appreciate you all taking the time to listen to the public and wish you well with your continued business tonight. And, again, just check the emails that you and your

staff received on June 1 from me, and feel free to reach out with any questions. Thank you again. Thank you, sir.

[02:50:17] Elizabeth White, followed by Shane Crow. Good evening, ma'am. Good evening. My name is Liz White. I'm here to talk about people like me, which are senior citizens. As you know, we are really strapped financially.

[02:50:35] I live on a fixed income, as many of my cohorts. I will be 74 years old in August, and I will continue to be as healthy as I can be. But as we know, cost of living is extensive. Last Thursday, I went into the tax relief program here in the county, thinking that I would qualify, seeing that I had filed my taxes and my income was less than what was accountable.

[02:51:00] But when I got in, they said no, I did not qualify because my Social Security, the amount taken out for my Medicare, which most of us depend on, was included, even though I didn't directly receive that Medicare.

[02:51:15] But the combined costs of Medicare and what we pay out of our pocket makes it really difficult for us. There is 87 to 88% of us that are over the age of 65 that are on prescription drugs that are at least four or five prescription drugs a year.

[02:51:37] Most of those drugs are fortunately in the class one and class two, which are the generic form. But some of us, like myself, have to take the ones that are in class three and class four or class five. The drugs that we take oftentimes have nothing to do with ourselves.

[02:51:53] They have to do with more of our genetics. And some of those drugs run \$2,800 for a two-week period. That's extensive. So what I'd like you to do in your simple proposal and what I love about your tax relief program is that it's great intentions, but the implementation of that needs to take into account that as income that we get from our Social Security is not the full amount that goes into our pockets, that there is a subset of it taken out for Medicare prior to us.

[02:52:27] So I'd like it to keep clean and simple for that, and I want you to be able to help support those of us that are strapped financially. Thank you very much. Thank you, ma'am. Thank you so much. Shane Crowe will be followed by Tia Ehrman.

[02:52:45] Good evening. Good evening. As always, my name is Shane Crowe, coming from the Algonquian District, proud Laudner, and consistent supporter of Ranked Choice Voting. We had mentioned, I had a brief chat with Chair Randall a little earlier. Today is primary day in D.C., and D.C. is using Ranked Choice Voting for their election today.

[02:53:06] And so, definitely wish I could have results. Unfortunately, I can't talk for another 12 minutes as much as I would like to. But I can perhaps give some fast roll of thumbs on how best to play pundit, Because I think that's something here in the United States we're not really comfortable doing.

[02:53:22] Because it's easy to explain how a voter would experience it. But for those who are running, who are analyzing the results, it's a different field. And so there are some rules of thumb that I think help better parse out the picture that we're expecting.

[02:53:38] So the mayoral race in particular has seven candidates. For the vote to split evenly across all seven is improbable. it's more likely going to be like what we experienced with the lieutenant

gubernatorial primary last year with the six candidates, where of the seven, there will probably be fewer frontrunners.

[02:54:01] So some of the scenarios that could come out of this is one candidate does get over 50 percent, in which case, when it's declared, no need to use the extra tabulation. But if one candidate doesn't quite reach the majority, but still has more than 40 percent, with the next challenger being more than 10 points away, most likely going to be that candidate.

[02:54:22] If you have two frontrunners, then it's probably going to be between the two of them, especially if they're below 40%. And then if it's really split evenly, then the tabulation will run through more rounds. But overall, the benefit that D.C. residents are getting is that they get a much clearer picture.

[02:54:38] They can provide more information on their ballot with ranked choice voting. And as always, I hope here in Loudoun County we can do the same too, starting next year. We look forward to see how it goes. Of course. All right. Our last two speakers are Tia Ehrman and James Russell. Good evening.

[02:54:56] Good evening, Supervisors. My name is Tia Ehrman, speaking on behalf of the PEC on item number 13, which addresses numerous issues with zoning compliance, enforcement, and the misuse of a vital state program, the Ag Structure Exemption. We agree with county staff that a pilot program of extended operating hours for the Zoning Enforcement Division covering nights and weekends is an appropriate place to begin, but support better connecting residents with staff via a call center for complaints. We agree there is a disconnect happening when it comes to compliance in the RPA, so an educational campaign seems appropriate, not only to explain when a change of use is needed, but with residents to help them

[02:55:36] navigate the complex Lex system. However, we disagree with staff on point four. Efforts to ensure proper county permits, health and safety inspections, and compliance with ag structure exemption should not be a one-time push but must be an ongoing effort to cultivate fairness and a culture of compliance. This is not specific to any industry or even a single policy area in the county as we see issues with compliance county-wide from unlicensed equipment storage yards negatively impacting streams to unregulated kennels to the misuse of the state ag exemption by businesses ranging from youth baseball facilities to breweries to wedding venues. This is an opportunity to move

[02:56:13] forward with all of our businesses on equal footing. We understand this effort looks a little different than the zoning actions of our surrounding counties, but that is because Loudoun is a little different. I'm not saying it is a bad difference, but we are a unique zoning environment which comes with both unique opportunities and unique challenges. Neither Clark, Fauquier, nor Albemarle support the number or size of high-impact operations or tolerate their negative impacts to residents' safety. All three enforce much tighter standards for agricultural use and number of people on site from the beginning and do in fact follow up with ongoing enforcement efforts, in particular

[02:56:51] when events are involved. Thank you. Thank you, Ms. Ehrman. And our last speaker is James Russell. Waving the flag of Palestine, I'm often asked, where is my American flag? My American flag was waving high on the USS Liberty on June 8, 1967, when the technical research vessel was attacked repeatedly over 23 minutes by Israeli jets and boats, cannons, torpedoes, even napalm. Israeli leadership feigned surprise at their supposed error, but in reality, these American soldiers

[02:57:29] were massacred for dutifully collecting signals intelligence, monitoring the nakedly illegal military activity of our ally in the region during the Six-Day War. 34 Americans killed, 174 Americans wounded. Corporations that utilize our extravagant data center infrastructure continue to provide support to this genocidal ethnostate at the expense of our local ecosystem.

[02:57:57] Ecocide towards the end of genocide. June 2nd, 2026, Sama Safi, an American citizen, studying in the West Bank, was pulled out of her home, 20 years old, American citizen, pulled out of her home at 3 in the morning by Israeli forces, by a foreign entity.

[02:58:20] No charges filed against her, abducted for no reason. Annexation and settler terrorism persist in the West Bank, with the unconditional support of our government. 1,000 people have been killed in Gaza since the so-called ceasefire went into effect, And not a single congressman representing this area, our county, has acknowledged these egregious violations of the agreement.

[02:58:46] We Virginians continue to resource the genocide against our neighbors' families, against our will. Also this Pride Month, I'd like to express solidarity with our LGBTQ neighbors, once again being used cynically as a political chess piece by desperate, maniacal fascists who have nothing to contribute to our communities but fear and hatred.

[02:59:07] Supervisors, that was all our speakers. And we're going to now go into disclosures and board comments. So if you have disclosures, take them out right now. We'll go to disclosures and board comments. I will go first to Mr. Crony.

[02:59:28] Thank you, Chair Randolph. So my disclosures are the following. On June 8th, my staff attended the Graydon Manor Banquet event facility pre-meeting. On June 10th, I met with Brian Elkland, Kirk Gallini, John Gallini, Justin Gallini.

[02:59:49] and Christopher Karpensky regarding the Residence at University Center application. On June 15th, I met with Ron Meyer and Aaron Swishelm regarding the SDC Ashburn application. On June 15th, I met with Aaron Swishelm, Anna Reeder, Marcel and Beatrice Erwin Milan regarding the Happy Paws K-9 application.

[03:00:17] All right, my board comments are going to be very short tonight. I would like to extend my congratulations to the graduating class of 2026 from Light Ridge High School, Independence High School, and all of our high schools across Loudoun County.

[03:00:33] It was an honor to attend Light Ridge's graduation ceremony yesterday evening. I think I shook hands with 526 kids, so that was a lot of fun. and I look forward to celebrating with the graduates of Independence tomorrow morning.

[03:00:49] These students have demonstrated remarkable hard work, perseverance, and resilience throughout their academic journeys. I wish each graduate success as they take the next step in their life, whether that be college, military service, trade school, or entering the workforce.

[03:01:06] Congratulations to the class of 2026. Thank you, Mr. Crony. Ms. Brixman. Thank you, Madam Chair. And by way of disclosures, I went to Happy Paws K9 on June 1st and met with Marcel and Beatrice Utam-Berog, the applicant, along with Aaron Swisshelm and Anna Ritter of Walsh-Kaluchi.

[03:01:31] I wanted to share that I will be holding a general town hall on June 24th from 6 to 7.30 at the Cascades Library. I am very much looking forward to the Juneteenth celebration this Friday, the March,

and then have been invited to the Basil Newman Cemetery and Park to share the story about the renaming of that park.

[03:01:57] So I'm excited to do that. I wanted to share that I've been really inspired by the graduations I've attended this year. Today we were at Broad Run, and then I was at Dominion and Robey last week, and it's just really inspiring to see our graduates cross the stage.

[03:02:18] And Anthony, if you haven't met him, Anthony Rodriguez, who is interning in my office this summer, graduated from Dominion last week and was one of the speakers on the stage. And his family story is incredible and interesting.

[03:02:35] And I have invited Ant, as they call him at Dominion, to actually write the opening of my monthly newsletter next week to share his inspiring family story. And I will probably also put it on social media.

[03:02:52] So I'm really proud of him and hope everyone takes the chance to read about his family. The Gun Violence Archive reports that we have lost 5,821 lives to gun violence so far this year, and actually 600 of those have been in the past two weeks since we were last together, 600.

[03:03:12] Of those, there have been—during that time, there have been also—sorry, this year there has also been 186 mass shootings, 389 of the deaths to gun violence were ages 12 to 17, and 105 were children under the age of 11.

[03:03:28] And I want to thank the Loudon Abused Women's Shelter for sharing that this is Gun Violence Awareness Month and the relationship between domestic violence and gun violence in their work. And that's all I have, Madam Chair. Thank you.

[03:03:45] Let's see. Ms. Umstead. Thank you, Madam Chair. I had one disclosure, although I don't believe it's mandatory because this company is not yet an applicant.

[03:04:05] But I met on June 4th with Tom Maloney and Ben Jonk of Amazon Web Services about a possible data center application that has not yet been filed.

[03:04:24] And we went over what the board's minimum requirements might be. That is the only disclosure. I do not have any board comments except to correct one of the speakers tonight.

[03:04:50] Israel is not a genocidal ethnostate. Israel is a country, it's a democracy in the Middle East, and they have Arabs, Muslims, Christians, Jews, people from all around the world, many people of color, and they treat all these people equally.

[03:05:18] These people have an opportunity to advance each as much as the other, and they do. And as I've said before, there are Muslim justices and judges, their police force and their army is made up of people of multiple religions and ethnic origins.

[03:05:44] So I just wanted to clear that up. Israel did apologize publicly for what it claimed was its accidental attack on the U.S. liberty. It compensated financially the victims of that attack. And unlike some who might hide the origin of an attack, the Israelis did come forward and claim responsibility. Thank you. Okay, Mr. Laterno. Thank you, Madam Chair. By way of

[03:06:23] disclosures, on June 9th, I spoke with Matt Holbrook of St. John's Properties about the Dulles-Lanning South application. And then a few days later on June 11th, Mr. Holbrook spoke with my staff

member about the same application. And then today on June 16th, I spoke with Ron Meyer about STC Ashburn 1.

[03:06:45] I did have to miss the public hearing, which I apologized last week or was it last week? Yeah, last week due to a kidney stone. So I was following and I know that application is coming back to us. My one comment today, going back to October, when we had our legislative dinner, I asked a question to a member of the General Assembly about RGGI, the Regional Greenhouse Gas Initiative, and I expressed some concern that rejoining RGGI, as seemed to be the intent of the new majority in Virginia,

[03:07:22] would raise electricity prices. I'm not going to say I told you so, but Dominion just filed a new case asking for a 7% to 8% increase, which is specifically due to rejoining RGGI.

[03:07:38] They waited until this was signed into law, and they're calling it essentially a RGGI fee because that is, in fact, the cost increase, and that is because the requirements of RGGI cost money. And I just don't think there was ever really a particularly honest debate about whether that juice was worth the squeeze and whether Virginia could not, through its own legislative practices, attempts to continue to drive down emissions rather than joining a regional effort that has certain requirements that make it difficult. I am doing some work on the issue of electricity

[03:08:14] prices just in terms of talking to constituents and sharing information. Obviously, I don't have to tell anybody up here that many constituents are convinced that data centers are the cost of electricity rate increases, and that could very well be the case in the future if appropriate steps aren't made, but there is sufficient evidence both from the General Assembly itself and from Lawrence Berkeley National Laboratory and others that have shown that the current rate increases that we're experiencing are a combination of policy plus inflation plus tariff impacts,

[03:08:50] steel, aluminum, plus the labor market, all these things that cascaded coming out of the pandemic that are raising prices for all the utilities, for better or for worse, we have our frustrations, certainly many frustrations here, but this is a regulated industry, which means every rate increase has to be approved by the state corporation commission, which means there's far more transparency than there is in almost any other sector that we deal with. Like when you go to the grocery store, you can't tell why the price of cereal is going up, but you can on electricity.

[03:09:21] So that data exists, and I think it's important that we kind of just address it factually. Thank you. Ms. Glass. Thank you, Madam Chair. I have a couple of disclosures. Monday, June 8th, my staff met with representatives of the R&D Baseball Academy application.

[03:09:40] Thursday, June 11th, my staff and I spoke with representatives of the SDC Ashburn 1 application. This past weekend I went to a Loudoun Symphonic Winds Jazz Concert featuring a Swedish artist, Gunhild Carling, which was very interesting.

[03:10:02] We have a wonderful music community, and it was very interesting to see her perform. She played at least seven, eight instruments, harp, different wind instruments, horns.

[03:10:23] It was absolutely amazing. Also, I would like to say congratulations to all of our graduating seniors. I'd like to give a shout out to Nathan Vargas, who's graduating right now at Riverside High. And this morning I went to Broad Run High School, and I want to give a shout out to one of my colleagues' daughters, Mira, Mila, who graduated today.

[03:10:52] You all should be proud of the achievements that you have from graduating from high school and to our college graduates as well. So I wish you all the very best in your endeavors, and just I want to say congratulations to the proud parents, families, and friends who, and teachers, educators who've helped them along.

[03:11:15] That's all I have to say, Madam Chair. Thank you, Mr. Kirshner. Thank you, Madam Chair. So a couple things. First of all, disclosures. My staff met with the representatives of R&D Baseball on June 9th, and I think also June 8th visited their site with some of the county staff to go over.

[03:11:33] some issues that have arisen. Thank you for the county staff who did that. I have nominations, but I guess I understand we're going to do those later. The only other thing that I really haven't announced, because I've been a little busy, is apparently someone stuck a balloon behind me.

[03:11:48] It says, for all those who are wondering, the seventh boy came to the Kirshner family on Saturday. His name is Gideon Joshua Kirshner. Oh, my gosh. there they are right there look at that you look at that family thank god they look like their mother um he came he came on the he was appropriately given he was the seventh boy mama and all his brothers are in seventh heaven there and he weighed seven pounds and seven ounces so yeah we're very

[03:12:25] grateful for um the new addition everything was safe mama had to have a emergency c-section but She is back home resting, and her mother's helping her because it's a little difficult to recover from surgery, obviously. But everyone's doing well. Baby sleeps well, and sometimes I wonder if daddy's really needed.

[03:12:43] But they're a very happy family. So thank you for all those who support and gave me well wishes and are just finding out now. Thank you very much. Appreciate it. I don't look that good on my best date. Look at her. That's crazy. She looks up.

[03:12:59] Yeah. She has a little hairbrush. She's just beautiful. They're having fun. Baby's getting handed around like a little football quite a bit. Yeah, well, congratulations. I love his name. I love his name. Mr. Sains. That's the news from Contoctin.

[03:13:17] All right, that's good news. Thank you, Madam Chair. Mandatory disclosures on June 12th. I spoke with Ron Meyer regarding his application for SDC Ashburn. That's in front of us this evening. I wanted to announce that the Loudoun County Public School Summer Meal Program has started on June 15th and run until July 31st.

[03:13:40] So please, this will be providing free meals this summer for students ages 18 and younger at several locations throughout Loudoun County. The Summer Food Service Program provides funding for free meals to children during the summer months when schools are closed to ensure children retain access to nutritious meals when school is not in session.

[03:13:57] So please visit the LCPS website to get more information and sign up. I'd also like to share that the Star Spangled Sterling will be kicking off on June 26th at the Sterling Middle School field.

[03:14:18] As always, well, I shouldn't say always, but the last few years, Sterling, Star Spangled Sterling, I say that three times fast, Always kicks off our fireworks season here in Loudoun County. It's free to residents living in Sterling and countywide.

[03:14:34] You can come out and enjoy with your family and friends in a friendly environment. There will be food trucks, music playing. You can bring your picnic blankets, your chairs, and have a good time and then watch the fireworks in Sterling. And one more announcement.

[03:14:51] I just lost it. Excuse me. I find it. Oh, excuse me. That is it. All right. All right, as far as disclosures, June 9th, my staff spoke of the applicants of Happy Paws.

[03:15:15] I spoke today at the MBIA breakfast, and I do want to announce that I have a data center town hall that will be held on July 6th here in the boardroom from 7 to 9:30. I do want to talk just a little bit about Juneteenth, because a lot of people don't know what Juneteenth is.

[03:15:32] On June 19th, 1885, Union troops arrived in Galveston, Texas to tell the last of the people who were still enslaved that they had been free. In fact, they had been free for two years, over two years. They just were not told that. President Lincoln, of course, issued the Emancipation Proclamation on January 1st, 1883.

[03:15:51] So it's two years later that they were told that General Order No. 3, in accordance with that proclamation, freed all enslaved people. In my life, all of my life, we've had Juneteenth. I grew up in Colorado mostly, and I've never not had Juneteenth celebration, which is part of my life.

[03:16:08] So I got to Virginia, I was just, I was like, where's the Juneteenth celebration? I was shocked that there was no Juneteenth celebration. I just thought everyone did it everywhere. Some people have been calling Juneteenth the other Independence Day, or some people have talked about not celebrating the 4th of July, but instead celebrating Juneteenth.

[03:16:27] I totally disagree with both of these takes, totally. This country was built on the backs of the formerly enslaved. This is my country, and I love it, and I will certainly be celebrating July 4th. When Frederick Douglass said, what does the 4th of July mean to a slave, he wasn't saying don't celebrate it.

[03:16:44] He was saying that the country should tell the truth about what we have been through in this country. And I think people, if you read his whole speech, and it is brilliant, go read it. You'll understand what he was actually saying. The question is not whether or not I should celebrate the 4th of July. I absolutely should.

[03:17:01] The question is, why isn't everybody else celebrating Juneteenth? Why aren't Juneteenth celebrations completely full of people? Both days speak to our independents as citizens. Juneteenth is not a black holiday any more than 4th of July is a white holiday. Together, these two days tell and make up the American story.

[03:17:21] So I reject the idea that we don't celebrate Fourth of July, and I reject the idea that it's the second Independence Day. It's not the second Independence Day. It's just Juneteenth. I believe our American story has room for more than one place and more than one day where we celebrate our independence, and we don't have to put these in rank order.

[03:17:42] So I really want to encourage everyone to come out this weekend. There are four separate Juneteenth celebrations on Friday. I will be making all of them. And then the Berks Family Reunion has a Juneteenth day on Saturday with one of the best go-go bands you're going to ever hear.

[03:17:59] So come out and celebrate Juneteenth, celebrate this American holiday, because you're American. So that's all I will say for that. Let's do disclosures really fast, and then to let the staff know after

disclosures. I'm sorry, nominations.

[03:18:16] I'm sorry, nominations. the nominations we're going to go to um um the item one zero which is a smart scale round um seven applications we're going to get mr razzi out this door so let's do nominations um miss brixman thank you madam chair um i would like to nominate dr linda silverman to the disability services board. Ms. Umstuck. Thank you, Madam Chair. I would like to nominate for reappointment

[03:18:51] Bobby Desai to the Disability Services Board. Ms. DiProni. Thank you, Terry Randall. I would like to nominate Wendell Shemblis to the Family Services Advisory Board for an at-large seat, and then Elizabeth Scotto to the Rural Economic Development Council for the Arts and Culture Representative. I know Wendell, he's a really good guy. And Mr. Kirsten. Thank you, Madam Chair. I have two nominations. I nominate Bill Junda as the at-large representative on the Housing Advisory Board, and I also nominate Stacey Metcalf as the Rural Economic Development

[03:19:29] Council Representative on the Zoning Ordinance Committee. And for those who may not have heard, Stacey recently lost her husband to a battle with pancreatic cancer. Our hearts and certainly our love go out to her, and I hope she's doing well this evening. Thank you, Madam Chair. I have spoken to her.

[03:19:45] The services will be on Friday, and she has a lot of support around her. She has a lot of love around her. We've all been talking to her on a pretty regular basis this week. So, yeah, thank you for saying that.

[03:20:02] We do. We love Stacy. All right, that's all. And so I'm going to have is I don't see staff in the room. Yeah. Come on down, and we will do that one. Oh, one smart scale round seven applications.

[03:20:24] How you doing? Ms. Brickman, will you please take the meeting for a sec while they do a presentation or whatever? Sure. Thank you.

[03:20:44] Do you guys have a presentation? Yes, please. Supervisor Brickman, we do not have a presentation, but we are here and available if there are any questions. Okay. Are there any updates on anything?

[03:21:03] No? Okay. No, ma'am. Colleagues, questions? could you it was on consent somebody came and spoke yeah yeah the item was pulled off consent because there was a speaker and so if the board is okay with it a motion would be in order yeah i okay that sounds great i mean i don't have a motion but um hang on a second i'll make a motion

[03:21:39] let's talk within a motion yeah that's fine i is okay go ahead thank you supervisor seems i move the recommendation of the finance government operations economic development committee that the Board of Supervisors approve the resolution indicating grant application support for the smart scale application for round seven provided as attachment one to the June 16, 2026 Board of Supervisors Business Meeting Action Item. I further move the recommendation of the finance, government, operations, and economic development committee that the Board of Supervisors direct the Department of Transportation Capital Infrastructure to submit smart scale applications provided as attachment one to the June 16, 2026 Board of Supervisors Business Meeting Action Item.

[03:22:15] Thank you. Motion made by Supervisor Sainz, seconded by Supervisor Umstead. Thanks, guys. I was caught off guard there a little bit. We did talk about this in finance, and are there any comments in the motion? I think Supervisor Turner has stepped out of the meeting.

[03:22:34] So, Supervisor Tacroni? Yeah, I know his was about the STP, but mine is more about having—and I mentioned this because I thought this was on consent. I mentioned this during my consent comments, but having two projects being submitted for the Route 15 Lockett's bypass, I mean, that's kind of unusual.

[03:22:55] Am I correct? Usually you just submit one, right? We are still reviewing all possibilities, and so we're getting all the information that we can. We start in the refinement stage and the refinement period. So we did, and I did hear your comment that you did make on the DS earlier today, as well as in our briefing.

[03:23:14] So we are aware, and so we're just still kind of reviewing both opportunities at this point in time. Yeah, and I think I made it clear, you know, I support the mini bypass because it can be done a lot sooner, in two to three years, and it's a fraction of the \$320 million. It's about \$50 million.

[03:23:31] So I do support that over the larger four-lane bypass that will take 85 properties. and then the James Monroe Highway and Lime Kilm Road intersection that that will be to be determined what that looks like right whether it's turn lanes or a roundabout correct yes ma'am okay great that's it thank you okay with no further comment motion made and seconded all in favor please say aye aye any opposed that motion will carry seven one seven zero two with supervisor

[03:24:06] sorry, Vice Chair Turner and Chair Randall off of the dais. Why don't we move on to 1R and stay in finance? This is non-profit organization's request for property tax exemption by designation. Colleagues, without objection, I'll go straight to a motion. Okay, great. Unless you have some updates. I do not have an update, Madam Chair. Okay, okay, great.

[03:24:33] I have the motion right here. I move that the recommendation of the Finance, Government, Operations, and Economic Development Committee that the Board of Supervisors refer all eligible applicants identified in Attachment 1 of the June 16, 2026 Board of Supervisors Business Meeting Action Item to a future Board of Supervisors public hearing for consideration of an ordinance granting the requested property tax exemptions.

[03:24:53] Madam Chair, I think we subtracted out Willisford in finance. Yes, we did. So, point of order, wouldn't you neither name the ones that we're recommending? Well, I am, I believe, just moving for the recommendation of finance, and that was without the Willowsford.

[03:25:16] So I think we're okay. But thank you. I kind of had that question, too. Any comments, colleagues? Supervisor Letourneau. Yeah, broken record department. I'm the reason this is not on consent, because I don't support property tax exemptions for anyone.

[03:25:32] I prefer applicants to use the process that we have for nonprofits. I will also point out that if you look at the actual amount of property tax exemptions here, some are as low as \$87. I'm quite sure that we've spent far more time and staff time of even putting this item together than the actual property tax exemption is, so it's really not an efficient thing that we do with this. You know, Just the hourly rate of all the employees that it takes to put this together is for some, not all, for some of the applicants that are so small.

[03:26:08] It just, we ought to at least have some kind of a, you know, cap or a minimum floor or something if we're going to even consider these. But I will continue to beat that dead horse year after year

and vote no. Thank you. And just to be clear, it has nothing to do with any of the organizations, which I'm sure are all wonderful.

[03:26:26] Okay, point of clarification, I think Mr. Hemstreet may have his light on for this reason. It does say all eligible applicants, so do we need to change the motion to make sure that it matches what finance recommended? Well, my question was who seconded the motion. That's a good question.

[03:26:44] Thank you. Okay, we have supervisors saying second. But we are okay, even though it says all eligible, because the recommendation of finance removed Willowsford. It would be all eligible in attachment one. Okay. Okay, great. Okay. Supervisor Takroni.

[03:27:01] Yeah, thank you. So, I don't sit on finance, but I did get an email from Willowsford, and they would like some guidance on how to strengthen their application. You know, they do have a 501c3 now, and they do, you know, there is a difference between the conservancy and farm and the HOA, and maybe it's a way of splitting out the farm from some of the other, you know, other parts of their community, but I do think they could use some help with that.

[03:27:39] I don't know if you provide help to applicants. This is totally at the discretion of the Board of Supervisors relative to grant a tax exemption to this organization. So I don't believe there's any guidance we could give them in order to strengthen their application.

[03:27:56] I think it's fairly clear what their organization does. And it's totally at the discretion of the board as to whether to grant them an exemption or not. Okay. Well, I do want to let the board know that, you know, their farm has donated more than 30,000 pounds of fresh produce.

[03:28:12] to other nonprofits, you know, they do have this, um, uh, public serving, uh, you know, food at with food access, volunteer engagement and community partnerships. So I know they will continue to apply, especially since they have their 501 C three status. And I'm hoping that they can, um, you know, put in an application that the board could support. But, um, you know, I did get they did reach out to me to ask that question of how they could strengthen their application.

[03:28:45] So I would say one thing I would recommend is that they reach out to board members individually to sit down and have a conversation about the application and about the organization that what the organization does in an effort to persuade board members because it's totally up to them to persuade board members.

[03:29:09] it's not up to me to make a recommendation. Thank you. Would it be, oh, Madam Chair, did you have a comment? Yes, I will. But are you finished, Mr. Crony? Yeah, I am. It was just about Willowsford. I'm happy to support the other organizations. Thank you. Mr. Hi, how are you, Mr. Wirtz? So we have really discouraged nonprofits from reaching out to board members individually because what that devolved down to, I shouldn't say devolved, that might never

[03:29:43] be the right, what that actually resulted in was board members, there's no way you can meet with everybody. You have a better understanding from some than others, you're closer to some than others, some nonprofits than others. It resulted in board members kind of having favorites and that type of thing.

[03:30:01] So we've kind of left it to be a staff-driven process, both the grant process and this. And this item is both. We've left it to be a grant-driven process. I don't agree with Mr. Letourner on this issue, but he

is the most consistent person ever on this issue.

[03:30:16] And so we really would prefer not – I would encourage my colleagues not to start meeting with all nonprofits individually because we worked really hard to get away from that and to put this in place instead.

[03:30:33] It seems it is very hard, but it's because our nonprofits are doing good work and we want to talk to them and put on their heartstrings. There's other ways to talk to your nonprofits, to get to know them, to spend time with them, all those things. But when it comes to this tax-exempt process or the grant process, meeting with them one-on-one is not something that we actually encourage.

[03:30:57] So thank you, sir. Thank you, Madam Chair. I guess just one thought, would it be possible for Willowsford to, and I'm not sure if they're asking for tax exemption for all of their property, and maybe they could divide out the property that they're using for food, for the farm.

[03:31:22] So that's just a thought. Also, to Supervisor Tacroni's point, part of the conversation in finance was that we have a competitive nonprofit grant application process and award process that has very specific criteria or sort of what's the term I'm looking for very specific reasons why people can apply for grants from the county and I believe food assistance is falls in that category and sustainability and those sorts of things. So another thought might be that since they are

[03:32:01] doing all of that food assistance, that they may be able to apply to the non-profit grant process because that is one of the key areas that we're trying to cover and support. So that was another thought. We were talking about that during finance, just FYI, and maybe if they're listening.

[03:32:19] I think that's all the comments on this item. Go ahead. I know. Can I let them speak first? Yeah. Speaking of that, Willisford did actually apply recently to the Loudoun County Human Services non-profit grant for 2027, and they were granted \$5,000 through that.

[03:32:43] Okay, so they get a mini grant. Okay, okay. Did you have a point of clarification? Well, I was going to kind of— Or did you not comment before? I didn't comment before. Sorry. I'm sorry to see you're lying on. To Supervisor Crony's questioning, I think what would possibly help is maybe they separate the farm and what they're doing there and those activities, which are good, separate those out from the HOA activities that they're doing and have two distinctions.

[03:33:12] You have the Willisford Farm Organization and that arm doing the work that they're doing and the Willisford HOA activity. So if they were to separate the two, maybe things might be different. And then same thing, as Supervisor Brisman pointed out, again, if they were to separate the farm activities and then apply for the nonprofit grant for the sustainable feeding program and all the stuff that they're doing, things might be a little bit different.

[03:33:36] Just a suggestion. Thank you. Category was the word I was looking for, the sixth category. Anyway, okay. Motion made and seconded. All in favor, please say aye. Aye. Any opposed? That motion will carry 7-1-1 with Supervisor Letourneau voting no and Vice Chair Turner off the dais.

[03:33:58] Thank you. Thank you. All right. We're going to go to item number six, which is a pilot commuter bus route into Loudoun County update. I have been—I've literally been waiting to hear this. I'm so curious about this item. So, come on down, please.

[03:34:16] Good evening. Good evening. Well, good evening, Madam Chair, members of the board. Scott and I are here this evening to make a request to the board to consider ceasing the pilot program. As you may recall, last year the board approved the pilot program to run two commuter systems, one out of Frederick and one out of Dale City.

[03:34:39] We've run it for approximately eight months, and the highest ridership in any one route was five people. Overall, over that time frame, we've had approximately less than half a rider per route. We are not looking at the trend lines. We're not seeing it improve.

[03:34:56] And so our recommendation, hence the purpose of doing a pilot study, is to evaluate the effectiveness and the efficacy of the potential. And we believe there's sufficient documentation to go ahead and make a decision to cease that. Our recommendation is that we allow it to continue through September, which is where the grant money terminates as well, that we have for the program.

[03:35:18] And it also allows us plenty of time to notify the current riders. And call them all individually and call them all one by one. We will. I think the highest rider day was 10 total. Is that correct? Yeah. Yes. So I know, Mr. Kirshner, you have a motion that will be made after the packet motion.

[03:35:41] I'm going to go on and make the packet motion, and then I'll go to you to make the motion you want to make. Okay, Mr. Kirshner? Is that okay? Yeah, you want to just ask some questions? I may not make my motion, but I probably will. Well, can you ask your questions within the motion? Okay, wonderful. I move the Board of Supervisors direct staff to discontinue the commuter bus pilot service operating from Dale City, Virginia, and Frederick, Maryland, until Loudoun County, effective September 30th, June 26, and return the estimated unspent local tax fund appropriations of \$950,000 budgeted for these pilot programs to the general fund.

[03:36:11] I further move the Board of Supervisors direct staff to execute a budget adjustment to carry \$170,000 from fiscal year 2026 fund balance into fiscal year 2027 within the General Fund for Department and General Services to operate both pilot services for three months. Motion is made in second. First of all, I want to thank Mr. Letourneau, because this actually was his idea to do this, and I thought it was a good idea. Pilot programs are for a reason.

[03:36:37] Well, no, I'm serious. Pilot programs are for a reason. You don't know what something's going to do or not do until you try it and see it and find out, and so we did, and we wouldn't have had this information, and truthfully, we hear from the people who didn't get on this bus, on these buses, that we really need these buses out here, we really need some mass transit, and then we did it, and then we got, so it really helps us understand that when people say things to us, we try to accommodate, and sometimes it just, that's how it goes,

[03:37:10] And so, you know, all I would say, though, is especially the bus from Frederick, Maryland. I hear all the time about the traffic on Route 15, and it is horrible traffic. But on the other hand, there's carpooling, there was this opportunity, there's other ways to get yourself maybe so the traffic doesn't have to be as horrible.

[03:37:33] And so we, you know, we gave it a try. I will be supporting Mr. Kirsten's, I think, follow-up motion. I do think it was a good idea to try. And I think that's why we have pilots. And so now we know. And I thank staff for carrying it out and completely agree that we should now discontinue it.

[03:37:52] Mr. Letourneau. Yeah. So it was. The only thing I'll say in my favor is I did say at the time. I was actually complimenting you. I'm just kind of having fun with it. But I did say that I thought the Frederick, Maryland route would do better than the Dale City route, which the consultant said was not the case.

[03:38:12] And it did, albeit, you know, we're talking. Not by much. But it did actually do better. And, you know, as a general blanket statement, this is why sometimes when we have consultants come to us with these things, I'm Mr. Skeptical over here, because they, you know, anyway, I think we can all agree that that consultant report was not ultimately very accurate.

[03:38:36] So, yeah, I mean, you know, at some point you have to throw in the towel. It was worth a shot. I do think there's something to perhaps people might wish this existed when construction starts and traffic gets worse. And I know that's where Mr. Kirshner is going.

[03:38:52] And I guess I'll listen to that argument and discussion. So what this does, if we cease the route, then I think we have a remainder of, I think it was \$950,000, did I read? So that just goes back to the general transit fund or is used for other service.

[03:39:11] Right now, it's proposed to go back to the general fund to be used for whatever the board is. Just general fund in general, that doesn't stay within transit necessarily. Okay. Okay. Well, you know, it was worth a shot. I think the problem really was that people are too dispersed on this end, right?

[03:39:30] It's not that there aren't a lot of commuters, but they're going to so many different places within the county that we couldn't really get critical mass on where to go. Is that a fair guess as to why this really didn't work? That would be my take on it. What makes the commuter bus service work in the county is we can connect with the constituents, right?

[03:39:50] We can't really do that in Maryland. And we tried through various means to connect over there, but that is the issue. And trying to figure out where they're going in the county that's going to bring us critical mass. And when they go to, you know, the Pentagon, there's a critical mass. When they go to downtown D.C., there's a critical mass. You know, but when they come here, we're pretty big and we're pretty spread out.

[03:40:09] And so, you know, somebody who works a mile from here, that's still not a very easy last mile kind of situation. So, you know, for wherever the bus is going. So I guess that's, you know, lesson learned on sometimes these solutions don't work in suburban areas.

[03:40:25] They just don't. People, I like transit as much as anybody, but sometimes we see this with the local buses as well. In areas like mine, they just aren't effective. So that's, you know, at some point you have to adjust to what people are actually going to use. I was being genuine.

[03:40:44] Okay. I think it was a good try. Ms. Bricksman? Thank you, Madam Chair. The packet motion has us ending this on September 30th, correct? Why wouldn't we just end it July 1st at the end of the fiscal year? Contractually, we have to notify the contractors.

[03:41:02] So there's a 45-day kicker in there for the contract. I gotcha. Okay. We're actually recommending to go through September 30th. We've got grant funding for that. Okay. Plus, it also allows our contractor, that's five more drivers that, with driver turnover, we think we'll still be able to maintain those drivers.

[03:41:20] for our services that we'll need them for. - Okay, thank you. I'm unfortunately supportive of ending the pilot and sad that it didn't work. I think it was a great concept to try and ease the traffic on 15 and other places.

[03:41:41] And unfortunately, we just didn't get the critical mass, but A for effort. Thank you. - All right, is this for the, you want to pick on this up, Mr. Kirsten? Yeah, sure, sure, sure. So, good afternoon, gentlemen. Evening, 738.

[03:41:57] All right, so I have another motion coming potentially in a minute that would potentially reconsider doing this once traffic starts. So, first of all, I'm very disappointed that there wasn't more ridership. It was a very lonely bus at times, it sounds like. Do we have any sense, I mean, I know you spoke some to Supervisor Letourneau, but have we really done any sort of analysis as, okay, why is this not working?

[03:42:23] Do we feel like we have the appropriate stops? I mean, I know it's hard to advertise in Maryland to Maryland drivers. You mentioned that, and we talked about masks, where people are going. But do you feel like there is merit in the possibility when the traffic actually starts as well in earnest because of the construction that this might have greater ridership?

[03:42:47] I think, obviously, I think it has merit. We did the pilot. I absolutely do believe that. What I, the issue that we have is getting companies to communicate with us, right?

[03:43:03] They have to share their employment with us, right? Where are your employers coming from, your employees coming from, so we can start to figure out that route map that might make a little more sense. We have an employer outreach person that has a pretty good rapport with most of the larger companies in the county.

[03:43:20] um, we just couldn't find a route in stops that would work. Um, that's the hardest part for this whole thing is really just making the determination of where to get people to go. And even if you find out where they're going to the critical mass piece, um, if it takes them, if there's, we're going to sit in the same traffic, they're going to sit in. So if we can't get them to their stop within a reasonable amount of time, they're just going to drive their own car. It's going to defeat the purpose. Okay. Do you feel like, is this something that is worth staff's time to,

[03:43:59] if we get into, in other words, I guess also is it, what's the ramp up period? So for example, we end this in September because I support this motion as it's currently written. We start construction sometime next year on route 15, at least the initial part. And it's just getting horrible because it's going to be, it's a big project. It's going to take a few years to get done. Is this something staff would potentially look at or would you need a motion from us to consider this? So I would recommend a motion because there will be probably as much as we love the consultants on this. I think there is going to be some expense to really look at

[03:44:34] some data sets to include things like what is the right size vehicle and how do we really target specific center mass employers? For example, does Loudoun County, as an employer, have sufficient employees coming in from that area to actually garner two smaller buses, right?

[03:44:58] Does another large employer have the ability to carry that kind of mass? I think there's merit in exploring it. I can't say at this point that there's merit in actually implementing it, but I think there's value in the board becoming informed on some of that information. So I think that exploring it is worthwhile

because I think there were some challenges when the buses were too big coming out of Frederick. We were too dispersed in our endpoints, and we don't have a robust enough local system to really be that last mile solution for a lot of our employees at our larger employers,

[03:45:33] And we really weren't able to capture that critical mass. So I think there may be some opportunities to improve on that, especially when you have the pinch of construction, which is going to exacerbate the problem, that maybe they can use that time, not behind a gripped wheel, but maybe doing something more beneficial at the end.

[03:45:51] Thank you. So as I do a closing, Mr. Kirshner, you know, what we could do instead of doing the motion and having staff go off and do stuff is maybe just kind of, you know, put it out there in our newsletters, even go out there and have community meetings and ask the community, do they want it?

[03:46:10] Because, you know, well, I know, but listen, I'm not. I understand. No, I just I don't. You know, if this had been close, if it had been, you know, 20 writers and we were kind of on the margins and, you know, but we're talking about five writers, right?

[03:46:34] So it was not even—and I will say it was well advertised. It was in the paper. It was, you know, I got people screaming at me about how we shouldn't do it. And so it just wasn't—it wasn't picked up at all. It wasn't close at all. So I don't know.

[03:46:55] At first, I almost want to wait to see when we start doing the whitening, what it looks like and how people... I don't know that I'm ready to do this right now, because all that we have to go on is what we just learned, which is people don't want to get on buses.

[03:47:12] And truthfully, people don't want a carpool either. I have put myself in traffic on purpose many, many times out there, and it's all single occupancy vehicles. They're not even caught pulling out there. So yeah, anyway, so you can decide if you wanna make the motion or not, but this is the first motion.

[03:47:33] I made the motion, did you second the motion? It was seconded by Mr. Crony to discontinue. Thank you all for all that you've done. We appreciate it. All the people who say aye. - Aye. - Any opposed? That motion will pass 801 with Mr. Turner being off the dais.

[03:47:48] Mr. Kirsten, what do you think you wanna do right now? - Well, I liked Mr. Brown's idea of exploring it. Obviously, that's different than coming back with proposals, but as to it's – so I will make a brief motion and just speak to it, and then we can vote on it.

[03:48:07] Okay. I move that the – I move the staff report back to the Board of Supervisors after exploring proposals providing transit services between Frederica, Maryland, and Loudoun County to be available during road construction on Route 15 widening project in coordination with appropriate Maryland transportation staff.

[03:48:25] Motion's made. Is there a second? Uh-oh. Well, now I feel bad. Yeah, you should. You talked everybody out of it. Okay, okay. I did, but I'm also right. That's fine. That's fine. We can move on. She's going to vote down. So that would die for lack of a second.

[03:48:42] I'm sorry, Mr. Kirsten. I feel bad about that. Thank you all very much. We did. We tried. A newsletter will let know I couldn't even get a second. But Chair Ronda was right. Say that in your newsletter.

[03:48:58] Say that. All right. Item seven, the county residential traffic management guide update. Hello, hello. Mr. Lott, have you moved to Loudoun County yet?

[03:49:15] No, no? I'm still adjacent. Okay. County adjacent. Thank you. All right. We're ready when you are. Do you have a presentation? Yes, ma'am, we do. You guys have a presentation, right? Yeah. Okay.

[03:49:31] We're ready when you are. Is anyone else having trouble with your iPad not loading and take – you are?

[03:49:47] Okay, it's not just me. None of my staff presentations under the staff presentation items loading. You have to go to the item to do that. It's kind of making me a little bit crazy. It's also not working with my facial recognition.

[03:50:05] I haven't changed my face. It's the same – pretty much, pretty much. I'm willing to, but I'm not. I don't know. Usually in this building, it just, it works. So, I don't know.

[03:50:21] It just, it's... If I go into the presentation, mine just uploaded in two seconds. Did it? Yeah, go back. Okay. Oh, well, there it is. Okay. It just took you, squishing it all over to me and asking me. You just uploaded, yours hadn't been uploaded before.

[03:50:39] It just did it. Okay. You guys ready? Yes, ma'am. We're ready. Okay. So, good evening, Madam Chair and members of the board. My name is Everett Lott, Assistant Director with the Department of Transportation and Capital Infrastructure. And I'm joined here by Elisa Thring, Program Manager for the Department of Transportation and Capital Infrastructure.

[03:50:57] Tonight we have six slides covering items number seven on the agenda, titled the County's Residential Traffic Management Guide Update. For some background, in September 2019, the board endorsed the county's Residential Traffic Management Guide, also commonly known as the RTM Guide.

[03:51:12] This guide was developed through a board member initiative in 2017 to create a more organized and consistent approach for evaluating and addressing traffic safety concerns in residential neighborhoods. It established a uniform set of criteria for roads that are VDOT maintained with posted speed limits of 25 miles per hour or less.

[03:51:31] At a high level, the process relies on input from residents, county staff, VDOT, Loudoun County Sheriff's Office, Loudoun County Public Schools, the Fire and Rescue Department, and other stakeholders to help identify traffic concerns and develop appropriate solutions. The RTM guide consists of two programs, the traffic calming and the cut-through traffic.

[03:51:53] The traffic calming focuses on addressing speeding concerns by evaluating existing traffic conditions and identifying the appropriate mitigation measures. And the cut-through traffic looks at drivers who use a neighborhood as a shortcut, meaning that they enter and exit the community without having a destination or origin within it.

[03:52:10] This particular graphic on the right illustrates that the types of traffic safety concerns that DTSI regularly receives, as well as the various sources of those concerns. And typically, these concerns are addressed through a three-pronged approach, education, enforcement, and engineering.

[03:52:30] And since the board endorsed the RTM guide in 2019, which consists of two county programs, traffic calming and the cut-through traffic, VDOT has updated its neighborhood traffic programs and established new guidelines. To ensure the county's RTM remains current and effective, we are updating it

to better align with VDOT's latest program requirements and practices, while also enhancing service delivery and improving project management.

[03:52:53] This particular slide here just expands on the prior slide and illustrates the types of signage that we use to address traffic safety concerns related to various traffic safety programs. And before you, you have DTCIs proposing two amendments to the RTM guide for the board's consideration.

[03:53:15] The first amendment would extend the ballot period from 30 days to 90 days. This change would give community members more time to obtain the required level of support, particularly in larger neighborhoods where outreach can take longer. The extended time frame would also allow residents additional time to discuss the proposed safety improvements, ask questions, and organize any community engagement efforts needed to achieve the required ballot support.

[03:53:40] The second proposed amendment would reduce the reevaluation waiting period from five years to two years. Currently, if a community is unable to obtain support from more than 50 percent of the residents within that ballot period, the traffic calming process ends, and the community must wait five years before requesting another traffic calming initiative.

[03:54:01] After reviewing the program, we recognize that the five-year waiting period is excessive, particularly in cases where the traffic data documents ongoing speeding concerns. So we are proposing to reduce the waiting period to two years, providing communities with an earlier opportunity to revisit the process and request a follow-up to review.

[03:54:17] The final slide summarizes our staff recommendations. So staff recommends that the board endorse the proposed amendments outlined in Item 7 on the agenda, authorize the necessity editorial updates to the county's RTM guide, and apply the approved changes to current and future traffic-going initiatives.

[03:54:35] Current DTCI is reviewing the overall process and requirements of the RTM guide programs to ensure alignment with current VDOT guidance and to further enhance service delivery and project management. We anticipate additional enhancements to the RTM guide in the near future, so we also recommend that the board direct staff to report back with those updates for consideration at a future board business meeting.

[03:54:56] Thank you. Thank you. Supervisors, can you ask questions within the motion? Sure. Okay, let's go then. I'm with the Board of Supervisors to endorse the extension of the, that is not the right motion. It's about voting. What did I just do? Madam Chair.

[03:55:11] I did do that. Miss, hold on, Miss Tacroni as Chair of T-Lock, no, no, no, that's right. I'm with the Board of Supervisors to endorse the extension of the voting period from 30 days to 90 days in the County's Residential Traffic Management Guide and make the necessary editorial changes to the County's Residential Traffic Management Guide and apply them into the current and future traffic calming measure initiatives as outlined on the June 16, 2026 Board of Supervisors Business Meeting Action Item.

[03:55:39] I further move the Board of Supervisors to endorse the reduction of the waiting period from five years to two years in the County's Residential Traffic Management Guide and make necessary changes to the County's Residential Traffic Management Guide and apply them into the current and future traffic calming initiatives as outlined on the June 16, 2026 Board of As far as the business meeting action item, I

further move the Board of Supervisors direct the staff to report back of additional updates to the Kansas Redlands Traffic Management Guide for a future Board of Supervisors business meeting.

[03:56:07] Second. Motion is made. Second by Supervisors. Sayings. First of all, thank you for this. My couple of questions. So a lot of times when we have these discussions, this is a countywide item.

[03:56:24] Are you finding that the same issues, traffic issues, are in the rural policy areas as you find in the suburban policy areas? And would some of these same recommendations apply equally, do you believe? The short answer to that is yes.

[03:56:40] We are seeing that we have aggressive behavior, speeding violations, and things like that that are happening in the rural districts as well as in our more denser areas. In the rural areas, what I have noticed very often is some of the main rural corridors are, I hate to say this because it sounds not nice, people who are not from this area, they're from, you know, down Route 9.

[03:57:04] What's the main street down in Hamilton, the main drag down in Hamilton? Business Center. No, in Hamilton, is it, what's it called? Is it called Business, but there's another. Colonial. Is it Colonial High? Yeah, I mean, the traffic right there, I mean, is going incredibly fast.

[03:57:20] I went out there and I drove that, I mean, I walked that the other day, And what I found out is one thing we do sometimes for traffic calming is speed bumps. In areas where, especially Western Loudoun County, well, I guess anywhere, where you can't put a speed bump because on that street, the fire and rescue, that's a main street that they come down for many areas of Western Loudoun County.

[03:57:46] What do you do for a street like that where some of the normal traffic calming measures that we might put in would not apply, especially a speed bump? In cases like that, Chair Randall, it's contact sensitive as well.

[03:58:03] We consider that as part of our consideration with traffic calming measures. We look at the roadway classification of the road. In this case, Route 7, that segment of Colonial Highway, it's not a residential street, even though it has a posted speed limit of 25 miles per hour.

[03:58:27] Well, there's residences on both sides of the street, all the way down the street. Correct, but VDOT would not allow us to install a speed hump on that road. Yeah, sure, sure. So on roadways like that, typically we propose pole mounted speed display signs. Those are the signs that tell you what your speeds are.

[03:58:45] Yeah, which we have, and it doesn't seem to be doing much. And then finally, I will ask before I do a closing, Tell me your relationship with VDOT and how much you'd have to work with VDOT on this motion. Because I have found that, well, I have found that there are times that for traffic calming, VDOT does not always have the same opinion that we might have.

[03:59:08] I don't want to say that, but yeah. So we can sell with VDOT regularly. And because a lot of these roads are VDOT-maintained roads, we have to be in consultation with them. So we try to work in partnership with them. If they do have a difference of opinion, then we'll sit down at the table and try to work those things out.

[03:59:25] But we've had a pretty good ongoing relationship with them, so it has allowed us to be able to move forward with some things that they may have had differences in opinion. Okay, I'll follow back up

with that question on my closing. Ms. Bricksman? Thank you, Madam Chair. Staff, could you describe the genesis of this item?

[03:59:44] Yeah, a couple things, Supervisor Bricksman. And so we've had approximately over the past five years about 23 projects that we've initiated. And approximately about 10 of those, I think actually 13 of those were unsuccessful because they did not meet the 51 percent, 50 or above threshold.

[04:00:04] So to give residents, neighborhoods, HOAs more time to be able to corral their neighborhoods, to be able to talk and get more information, we thought it would be prudent to allow for just additional time for that. I'm sorry to interrupt you, but I meant, wasn't this item, in fact, something that you worked on with my office at length over the last couple months?

[04:00:28] Yes, it was based on the Sugar Land Run. Based on the Sugar Land Run item, right. Okay, and in fact, the clerks had put this item on the agenda for the past three meetings, And then staff was fortunate that staff brought it up to put it on the agenda tonight.

[04:00:49] Yes? Yes, ma'am. Thank you. I'm definitely going to support the item since we've been working on it for months. And you are correct. Between 2020 and 2025, 23 traffic calming projects that proceeded to a ballot. Of those 13, only 56 percent were unsuccessful.

[04:01:09] So 56 percent were unsuccessful. Ten of them were unsuccessful due to non-responses. meaning that fewer than 50% of households within the survey area that had to vote within a 30-day window were—basically, they didn't make the cutoff, right?

[04:01:25] They didn't get enough votes. And unfortunately, a no—not voting counts as a no vote, unfortunately. So the idea is to extend the time for communities to be able to vote and, you know, get their neighbors informed about this and extend the time to vote.

[04:01:42] I actually have had, since I've been in office, five traffic calming measures, and Aloysia, you can correct me if I'm wrong, but I think four of them failed at the vote because they just weren't able to have enough time to get their neighbors to vote. And I do also appreciate the two-year window to bring it back versus five, because I've had questions from folks who wanted to bring back traffic calming, and I had to tell them no, because you have to have a five-year waiting period.

[04:02:13] I do have, and I further move, Madam Chair, I don't know if you want me to make it as a friendly to your motion, or would you like me to make it separately? Where is it? It is, let's see, it should be on a pink sheet. we sent it out this morning it's uh number seven the pink sheet but you can make it as a friendly okay great uh oh i'm out of time uh i will give you you can make it as a friendly okay thank you um i further yes if it's a friendly you don't need you to say it and it's accepted but yeah

[04:02:50] okay okay i further move that extensions to the voting period may be granted administratively on a case-by-case basis at the direction of the loudon county department of transportation and capital infrastructure staff. As the, Madam Chair?

[04:03:05] Yes. As the seconder, I will not accept this as a friendly. I think it should be separated from the main motion and taken separately. All right, so then it won't be, so we will take this up after we finish the main motion. Okay, thank you, Madam Chair. All right, Ms. Glass. Thank you, Madam Chair.

[04:03:21] I think this, I think my question may be about this, but I appreciate you all reducing the number of years because I can recall last year when I had conversations with one of the Broadlands

communities that wanted some traffic calming, and I think it was maybe three different areas, and two of the areas weren't able to get the number of residents on board,

[04:03:55] but there was one that did get the traffic calming with one of the speed humps, so i appreciate that um so by extending the voting period from 30 days to 90 days does this mean that communities can still opt for a voting period of just 30 days i'm thinking of maybe smaller communities that are um may not have as many people but and can are very enthusiastic enthusiastic and can get their neighbors on board with a, you know, signing up to, for

[04:04:34] the things to mitigate, sorry, mitigate their traffic calming issues that they may have. So Supervisor Glass, the way that I believe we wrote that intended is that it'd be 90 days just for the full, for anyone that's submitting a resolution for some type of vote for a traffic calming type of initiative.

[04:04:58] So I think it would be 90 days across the board. We did not specify that 30 days for some neighborhoods and 90 days for others, so it's 90 days across the board. Yes, ma'am. Okay, thank you. Mr. Sainz.

[04:05:14] Thank you, Madam Chair. Thank you, staff, for the presentation. Mr. Loyce, good to see you again. It's been a while. I actually am happy to see this item. I think reducing from five years to two years is a good start.

[04:05:31] But I would ask staff, would you have any heartburn, say, if we were to suggest to go down to one year? And also in that same breath, I'll ask the question, instead of going from 30 to 90 days, would you have any heartburn going from 30 to 60 days? Reason being, I think the goal is to reduce the time from five years, which is definitely too long.

[04:05:54] But I think even two years, to be honest with you, is too long as well, because some people might forget what the, you know, why the initiative was brought forward. And I think having the voting period from 30 to 90 days is, again, maybe a little too long of a window as well. I think 60 days is a sweet spot.

[04:06:10] And then going from five years to one year, I think, is a good sweet spot as well, because it's still going to be fresh in people's minds. Say if the vote failed for whatever reason, being able to come back in one year is still going to be fresh in people's mind. and people can continue to talk to neighbors, and when that one-year time hits, then they can vote again. But if you have to wait two years, maybe people are going to forget and move on to something else and so on.

[04:06:30] So I just wanted to hear staff's opinions on those suggestions from five years to one years and 30 to 60 instead. I think we're comfortable, Supervisor Sainz, with if it was 60 days. I think that's something we're comfortable with.

[04:06:47] We're comfortable with the 90 days as well. I think the one-year time frame versus the two-year, I think the staff would be more comfortable with the two-year time period simply because of the amount of resources it also takes for us to go back and have to revisit these type of issues. So for 60 days, we could definitely, I think, agree with that.

[04:07:05] But the one-year would be a little bit more challenging for us on a staff perspective. Okay. Madam Chair, I'd like to make it friendly. You can make it friendly. All right. With hearing from staff, I would offer the friendly amendment to paragraph one to reduce the extending voting period from 30 days

to 60 days and then offer a friendly amendment to paragraph two to reduce the waiting period from five years to two years.

[04:07:31] You went backwards. You can't reduce something from 30 days to 60 days. Oh, sorry. Extended. Sorry. To extend the voting period from 30 days to 60 days and reduce the waiting period from five years to two years. Uh, uh, okay.

[04:07:51] Oh, okay. I mean. Oh, yeah, it's already two years, but yeah. Yeah. Yeah, so to withdraw the second part, it's only the first. Offer friendly amendment to paragraph one to extend the voting period from 30 days to 60 days. No, he said 60. 60. But it was 90 in the...

[04:08:07] They're proposing 90, but they're fine with doing 60. I think 60 is a sweet spot. Okay, I will... Madam Chair, point of clarification. Yes. the the original item had actually 120 days and and staff and we discussed and we made it 90 days so we already reduced it once well we didn't reduce it once but yeah and again i mean it's a 90 days is three months people to make a vote that's a long time yeah it's a two months is

[04:08:42] perfect i'm fine you said 60 60 days i'm fine with that i'm fine with that as a friendly i'm with that three three months to make to vote that's okay guys guys guys guys do you have anything else you want to add mr saints i would just say speaking no i'm sorry i'm sorry i don't know what i'm doing your time is up my bad my bad um mr mr mr leterna can i make a motion to make it back to 90 days well you can't not a friendly you can but not until you have to refinish this because it's it i would i would consider that emotion in direct conflict with

[04:09:21] the friendliness on the table okay i will do that and the reason i'll do that is because i'm speaking to the issue in its entirety these hoas aren't just sitting around for this like it takes them a month just to get a meeting together so they can even decide to go out and start getting signatures and stuff so i really don't think 90 days is an extraordinary period of time when you're talking about a bunch of volunteers trying to do something like this it's part of this process. Well, okay, but for the rest of us, this kind of hurts us. So I think it's a stronger overall package with 90 days, and I think that there's no reason to shorten it to 60.

[04:10:00] The reason, I'll close. The reason I hesitate is because I will say, you know, this is the difference between being a supervisor and being chair. Like I always say, a chair is not like a supervisor on steroids. It's a different position altogether. So I don't work as much or as closely with you all's HOAs as you do. And so I don't always know the ins or outs of what it takes for an HOA to pull things together. 90 days, which is three months, does seem like a long time to me, but I'm not as familiar with the HOAs. And so I'm not really wedded to any one of these numbers.

[04:10:40] 30 days, 90 days, 60 days, I think 120 sounds a little bit long because I just don't have as many conversations with the HOAs as you all. And so what I would do on this vote is we'll see where it goes and then we'll go to Ms. Bricksman because I think she was the first one.

[04:10:57] And then Mr. Letourneau for any other motions on the dais. But I don't go to Ms. Bricksman for anyone who has any other motions on the dais. But in my head, that sounds like a reasonable amount of time.

[04:11:18] If I am wrong, I apologize. Like I said, I just don't deal with the HOAs as much as you all do. But it does seem like a reasonable amount of time to me. So I made the motion. Madam Chair, I'm sorry. I'm really confused now. Did Mr. Letourneau make an alternate motion?

[04:11:35] He cannot make an alternate motion, no. Okay, so in order to do the 90 days, then we have to vote no on this. We have to have five people vote no on this. Because, in my opinion, the 90 days is in direct contrast to what's already on the table. I just wanted to clarify how we get to 90 days.

[04:11:53] Thank you. So on the table right now is 90 days. I'm sorry, 60 days. It's on the table right now, 60 days and two years. So that's on the table right now. Okay. I made the motion.

[04:12:09] Mr. Sainz second the motion. That is right, right? and make the friendly. All in favor say aye. Aye. Opposed? No. Okay. All right. So that motion will fail. It just stands with me voting yes. And now we'll have another motion again. I don't really always know what HOA means. So HOAs want or how they function as much. So I will go to Mr. Letourneau for a motion. Which I think I'm making the packet motion at this point, right?

[04:12:37] Yeah. Which is I move the Board of Supervisors endorse the extension of the voting period for 30 days to 90 days in the county's residential traffic management guide and make necessary editorial changes to the county's residential traffic management guide and apply them to the current future traffic calming initiatives as outlined in the June 16, 2026 Board of Supervisors of Business Meeting action item. Further move the Board of Supervisors endorse the reduction of the waiting period from five years to two years in the county's residential traffic management guide and make the necessary editorial changes to the county's residential traffic management guide and apply them in the current and future traffic calming initiatives as outlined in the June 16, 2026 Board of Supervisors of Business Meeting action item. I further move the Board of Supervisors direct staff to report back on additional updates to the county's residential traffic management guided a future board of supervisors business meetings second second i'll give that second to

[04:13:17] ms well i will give the second to ms briggsman would you like to speak on the motion i think we've beat the dead horse at this point i think 90 days is a good time if you have a large hoa in a large area for those that don't know they have to go door to door to get these signatures and you're asking volunteers to do that so if you give them three months i think that's reasonable So, that's the motion.

[04:13:39] Maybe the better way to do this is to have electronics and send out something like that and not make them go do it there. But either way, it's fine. Ms. Briggsman? Thank you, Madam Chair, and I appreciate Supervisor Letourneau for making the packet motion. And, yes, I've been through a number of these, and the 90 days will hopefully help.

[04:13:59] And also, it takes, just to Supervisor Sane's question about the two years, Sometimes it takes us the better part of a year to start this process for staff to collect the data, to do the research, and then to meet with VDOT, and then to meet with the HOA to decide which traffic calming measures the HOA agrees to put on the ballot that are approved by VDOT.

[04:14:20] So by the time you get done with all that and you actually get to a vote, it's almost a year, maybe at least a year probably. And then you go to the vote, and it's so heartbreaking when the vote fails after all of that work, and there are people going door-to-door trying to get their neighbors to vote in favor of this, because, as I said before, if they don't vote, it's a no vote.

[04:14:41] So it's really hard to get to that 50 percent threshold, especially in the larger HOAs. So I appreciate my colleagues' support on this. Thank you. Why is door-to-door—I'm sorry, Ms. Sainz. Thank

you, Madam Chair. I'm well aware of the process, Ms. Bricksman. I've had numerous votes in my district. Some of them have passed. Some of them have failed.

[04:15:00] And if everybody remembers, Sterling District, we do not have a lot of HOAs. So we do not have paid professionals that are helping to go door to door and do this process. It actually truly is volunteers that are living in the neighborhoods who are not represented by HOAs. They're doing the legwork on this. And that's why I feel the shorter period is better for what we're trying to do here. Because the longer period, people will forget. You only get one mailing of that postcard which can get lost and you have that one or two meetings in HOA or whatever have you or non-HOA your volunteer is going to go door to door and talk to their neighbors so again by having

[04:15:37] the longer period people are going to forget people will be on vacation holiday travel etc etc so that's why I actually proposed to reduce the time frame for those particular reasons and to madam chair's point unfortunately and actually I'll ask staff this question but this has to be a in-person driven process where they go door to door to get the signatures to validate and make sure somebody who's living in the district or living in the neighborhood is actually signing these petitions and whatnot. So to staff, to Chair Randall's question about that and to staff, could we with this process maybe look into updating this process and modernizing

[04:16:15] with the times? We have modernized the petition process, Supervisor Saints. We send out postcards to all the households within the impact area. Each postcard has an alphanumeric information. They go on the website.

[04:16:32] They enter the alphanumeric information on the website and they indicate their votes. Sorry, I'm confusing with the parking district, which is... But we did, yes. Yes, sorry, I'm confusing the two, but anyway. Yeah, so that's why I was proposing to reduce the time because in my district, which is predominantly non-HOA, This is a more heavy lift with the extended period.

[04:16:52] So, anyway, thank you. Okay, so I'm fine voting for this. Again, I don't really, I don't deal as much of HOAs as the chair. And so I will take, I understand everyone's point of view. I do. I understand everyone's point of view.

[04:17:10] I actually think we should do something different because a lot of people don't want people at their doors for lots of different reasons. And so, I mean, like we're reading cameras and this and that. I don't know why we couldn't figure out how to have HOAs send this out electronically or whatever, and have people kind of go into their, if they're part of their HOA, go into their portal, do an electronic signature, send something in.

[04:17:34] I don't know why somebody at your door is required. I'll tell you, if you come to my door like on a Saturday morning, I'm not opening my door no way. This is not happening. And so I think I'm fine voting for this. Either way was fine with me.

[04:17:50] I just, I don't think that, I think in this day and age, you can find something different than demand people go to people's doors in person. That's all. So, Mr. Yeah, I feel like I need to clarify now. They don't have to go door to door. Okay, well, now I'm just confused. They just said that. Like, they do, they send a postcard and you can vote online.

[04:18:07] In practice, though, that doesn't ever get you anywhere close to the number. Gotcha. Okay. So, the people, usually the HOA board members, it isn't the paid managers, believe me. the HOA board

members will then go door-to-door to try to get people to actually pay attention to the postcard.

[04:18:28] It's like us trying to get people to vote, right? Like, yeah, they all know the election's coming, but you still go because you're trying to get people to show up. So that's kind of what the deal is. And, you know, I understand. Maybe things are different in Sterling, and I appreciate that, but, you know, that would have applied to everybody.

[04:18:44] So thank you. So, Mr. LaTurna made the motion. Ms. Bricksman second the motion. I'll be able to say aye. Aye. Any opposed? That motion will pass 9-0. Welcome back, Mr. Turner. Mr. Turner actually asked to be back in time to do the...

[04:19:04] Oh, gosh. We have another motion on this. Ms. Bricksman, you have another motion on this? Well, I do because it wasn't accepted as a friendly, Madam Chair. Yeah. Yeah. She did ask. Mr. Sainz said no. Yeah. She did? No, she did. She asked. Oh, for God's sake, people, be quiet. Please be quiet.

[04:19:24] Miss Rixman, would you like to go? Apologies, friends. You're right. I should have done it with Mr. Letourneau. I move that extensions to the voting period may be granted administratively on a case-by-case basis at the discretion of Loudoun County Department Transportation and Capital Infrastructure staff. Second. Thank you. So this is just in case the neighborhoods are really, really close to reaching the threshold, and DTCI decides administratively that they could extend the voting period for these traffic-calming measures.

[04:20:01] Thank you. It's fine with me. I second it. Y'all want to be involved in this HOA stuff, because it's just not that fun, but that's fine. Mr. Saints? Well, then, to me, then you should have accepted the friendly for the one year.

[04:20:19] So I'll go to staff on this because you said one year is a little too short of a window for you. You prefer two years if a vote fails. So how would you work this? So say, I guess, in theory, this is if a vote fails by a few votes. Are you saying you're going to arbitrarily give them extension to try to do a vote again in the short window?

[04:20:42] Or how would you implement this? The way I understand that friendly motion is that we would have the flexibility to extend that period of time. So if we reach the 90-day threshold and they're less than the 51% or 50%, then we could extend it by, let's say, another week or two weeks or something like that.

[04:21:00] That's my understanding of the friendly amendment. So hypothetically, how would you work that? Would you add that to every case? I think it would be done on a case-by-case basis.

[04:21:16] And so, you know, if it was a very close, at 48, 49%, we might look at extending it. We haven't fleshed that all the way out yet, but we would kind of work that and work it in consultation with each of your offices if we got to that point. All right. Yeah, we can talk.

[04:21:32] I'll vote to have your staff do some homework on that and have some more conversations when you bring this back fully. But, again, to me, that goes to my point, well, instead of doing five years or two years, make it one year. But we'll see. Thank you. Okay, Ms. Brickson made the motion. I second the motion on people who say aye.

[04:21:52] Aye. Any opposed? That motion will pass 9-0. All right, let's go to the next item. Mr. Turner, you're on, correct? Yes, ma'am, I'm on. Okay, and you want to be on for this item.

[04:22:07] It's the item number 12, the SDC Data Center. Well, I shouldn't have said Data Center, but Data Center. Will staff please come to the table? Hello, hello. Good evening.

[04:22:37] Good evening. Do you have anything new to tell us that we don't know already? Yes. You do? Yes. Okay, we're ready. Okay. Good evening, board.

[04:22:54] Oh, okay. So staff has prepared a presentation, but we are happy to forego presenting to provide just the updates?

[04:23:27] Yep. Okay. Just the updates would be great. So, following the board public hearing, the applicant has committed to one Tier 4 compliant generator to serve Building D, which is conditioned to be installed by December 31st, 2027.

[04:23:47] Please note that only one generator will be serving the proposed building, and the generator will be located behind the screen wall shown on the graphic presented. Okay. That has the only update for the application.

[04:24:03] That was the only update? Yes. Oh! I thought there was an update update. Mr. -- well, let's go to the motion. Mr. Sandro, make a motion. It's your district. Yes, I can go to the motion. We can speak within the motion, hopefully, if anybody has any questions or commentary.

[04:24:19] I move that the Board of Supervisors approve Leji-2025-0015 SDC Ashburn 1 Specs-2025-0031 to the conditions of approval dated June 10, 2026, and based on the findings for approval provided as attachments one and two to the June 16, 2026 Board of Supervisors' Business Meeting Action Item.

[04:24:42] Second. Motion made. Second by Supervisor LeTerno. Discussion and motion, Mr. Sains. Thank you, Madam Chair. Yeah, as you just heard from staff, there was an update since the last time we had this in front of us where they proffered to do a Tier 4 generator. And if I heard staff correctly, you said there's only going to be one generator for the structure, and I think the overall square footage that we're approving is, is it 832 square feet?

[04:25:10] So approximately 800 to 1,000 square feet. 800 to 1,000 square feet. Can you show the illustrative that shows the, yes, that one, thank you. No, go back. This one here, so thank you. So the building in question is that light yellow color, correct?

[04:25:30] Yes. And the red line is what is approved. Everything to the left of that dotted or hashed red line is what's already been approved and they can build by right right now. Is that correct? That's correct. And then everything to the right of that hashed red line in orange, so you have these three triangles, that is what we're potentially approving tonight if this is the pass.

[04:25:55] Is that correct? That's correct. Okay. And the applicant in the application has said they're going to do some low-carbon concrete as well. Is that correct? Yes. Okay, which I believe will achieve about a 30% reduction of carbon dioxide when compared to baseline products.

[04:26:13] So some green initiatives in here, if you want to say. So the reason why I ultimately end up coming down to supporting this is this is not your typical regular data center building.

[04:26:29] Your typical data center building is definitely a lot larger, will consist of 10, 12, 14, 15 or so, and more backup generators. So I think having only one backup generator, this does illustrate how, you know, the small square footage this building is ultimately altogether.

[04:26:51] Yes, the applicant could have done a Tier 4 generator by themselves. That is very accurate. Yes, this applicant could have, instead of wasting, I don't know, how much money they spent on this staff's time and whatnot and built this data center, what was approved, They removed items to do some bonding and, you know, all those things, which I'm definitely not happy about.

[04:27:13] But ultimately what brought me to make the decision to support this is the small size of it and knowing that the data center can already be built here and we're getting some extra things to go along with it that ultimately persuaded me to vote yes for this application. Thank you.

[04:27:29] Thank you. Anybody else? Mr. Turner. Thank you, Madam Chair. I really appreciate you giving me the time here to talk. I was considering this application—I'm sorry I'm out on the street here, but I was considering this application, and I had a pretty wild and crazy idea today.

[04:27:49] And while I loathe horse trading and the last vote for an applicant, I would like to throw this idea out there. If the applicant's in the room, I'd just be curious what their response is. That's fine. That's fine. They don't need to come to the table. Here's the idea. We've got an opportunity here.

[04:28:05] Now, this is a small building. It's 800 to 1,000 square feet, and it's a single Tier 4 generator. I think it would be very cool if the applicant, as part, could submit an additional proffer that they commit within a certain finite number of years.

[04:28:23] The supply chain is pretty extended. That is part of this application that they would proffer to convert all of the backup generators on this entire data center complex within two or three years to Tier 4 backup generators. You don't have to do that.

[04:28:39] I think you've got the vote tonight. But there's an opportunity here. You're using green concrete, a Tier 4 generator. You're making a real bid to design a new kind of data center for Loudoun County. You would be the first in the county to have all of your backup generators be Tier 4 generators.

[04:28:55] Take as much time as you need to meet the supply chain issues and submit a proffer to convert all of your existing data centers on this larger property to Tier 4 generators. And I think you would set the standard for the country. I think it's a real opportunity, and I just wanted to throw it out there to hope you consider it.

[04:29:20] Mr. Crony? Yeah, I mean, that's a great idea, but I don't know that the applicant has time to put that in their proper statement. Great idea, Supervisor Turner. They don't. And I don't think he was asking them to put it in his proper statement right now. I think he was just saying, put it in your head.

[04:29:37] So while I appreciate all the sustainability and environmental proffers, and in fact, this will set a new standard for applicants as we go forward, I'm not going to support this.

[04:29:52] I know it's a small expansion, but, you know, this is about land use and reigning in data center sprawl. We have too many data centers in Loudoun County. We are oversaturated. I understand the majority of the project is approved.

[04:30:10] However, the applicant has to come to us for realignment because they're adding a fourth building. And, you know, this is in the urban transit center place type, so there is an incompatibility with the 2019 general plan.

[04:30:29] And it's not—data center use is not envisioned within the UTC place type. I thought it was interesting that a resident came forward and said, what about the cooling mechanism? That is a good

question. I don't know what cooling mechanism the applicant is using, but that's a good question.

[04:30:47] And another thing, Supervisor Turner, that I'd like to see is battery energy storage at every single data center. I don't think we should have to do a huge BEST system in the middle of the transition policy area to get battery energy storage for data centers.

[04:31:06] I think they should be at the site of the data center. Thank you, Chair Randall. Thank you. Ms. Brixman? Thank you, Madam Chair. I'll just associate myself with Supervisor Tacroni's comments, and I'll be voting no. Thank you. Mr. Letourneau?

[04:31:21] Yeah, certainly I understand the concern around data centers and the proliferation that we've had, but this is literally less than 6,000 square feet to be added to a campus that's already existing, that's buildings that have been there now for four years.

[04:31:38] So it does, at some point, it is a little ridiculous to kind of hold this one up as an example. I think, quite frankly, the applicant, the owner, screwed up several years ago and took something off a map that they shouldn't have.

[04:31:54] And so this is just sort of going back. And in return, you know, we're kind of, you know, they did go to a higher standard than they were required to do, which is good. I don't know if it's even technically feasible to retrofit in that way. I'm sure, you know, we can all ask the applicant, but, you know, not obviously on the spot here.

[04:32:12] So I will support this one just because it's so minuscule. It really makes absolutely no difference in the scheme of things. But, you know, obviously going forward, I think we're giving all of these projects a great deal of scrutiny. Thank you.

[04:32:29] Mr. Kirshner? Thank you, Madam Chair. First of all, to Supervisor Turner's point, I think this is a specs. I'm not sure we can really make any proffer on a specs, just as a point of clarification. If I'm wrong, perhaps the county attorney could correct me, but -- so great idea, but not -- wouldn't work in this situation as far as I know.

[04:32:49] As far as some other comments that remain, I agree with Supervisor Letourneau. If we just say no on everything, such as some of the supervisors saying on this day, it just shows we're not working with these businesses to really provide the absolute best product. I get the idea of proliferation of data centers, but when we start going through and just know out of some level of principle, it's really not principle.

[04:33:11] It's an idea that we are just shutting everything down, and it's just not, it's impractical. And I find that to be pretty anti-business, and quite frankly, I think we need to take a different approach on this, which is, okay, what is practical here?

[04:33:28] What is best for this business project? Because obviously, if they build this in a man, it's going to be less practical, be less efficient, it's not going to work as well. And sometimes you have to let the free market work a little bit and not just say no, because you have the word data center behind you. Again, it is minimal and increasing.

[04:33:45] You can see how minimal it is. So I would, quite frankly, I obviously support this. But I understand the concern going forward with the proliferation. I think this board has made it pretty clear and has voted against a number of applications. But something like this, just to say no, I think misses the whole point of what we're trying to do here as supervisors when we look at things.

[04:34:11] And when businesses come to us and say, hey, I want to make this tweak or this tweak or change this, we look at it with a level of scrutiny. But we also have to be practical. And this is not practical just to say no to this. Thank you. Thank you. Mr. Coney, I think it's really disingenuous to go. This is an urban transit center place type when we know, and you know very well, that there's nothing there but data centers right now.

[04:34:30] Nothing. The whole area, that's all that is there is data centers, so it might be an urban transit center and that might have been a great argument 15 years ago, but there's nothing there but data centers right now, so I think that's a disingenuous argument. This is a 5149 issue for me.

[04:34:49] One thing in my data center town hall I do want to do is literally use this example as some of these specs would look like. To say no says that we say no to a Tier 4 generator.

[04:35:06] To say no says we say no to the carbon concrete. To say no says we say no to some pretty positive things in this application. To say yes says that, you know, am I listening to my constituents?

[04:35:26] I hearing their concerns? Does 8,000 more square feet of data center really matter? Probably not. Does the voice of constituents have to matter? Absolutely. These are these moments where it's tough because it's never our job to defend data centers or any of that. Mr. Kirsten, by the way, I think no one in the right mind can say it loud as anything but very pro-business.

[04:35:55] It's never our job to defend data centers ever. It's also never our job just to pander because of all the noise that's out there right now. We're not supposed to do either one of those things. So this, to me, comes down, I mean, this was a very hard vote because it comes down to, like, what's logical versus what's the voice of constituents and how do you explain it?

[04:36:23] This is going to pass. I'm probably going to vote no on it, but I also think that on this one, I literally, it is \$51.49 because it's such a small amount, and I do want to have the green concrete, and I do want to have the tier four generator.

[04:36:43] What Mr. Turner said was not a proffer. Basically, it's like, you know, think about doing it from here forward. So this one's tough. But I do want to say to my colleagues, it is important going forward that we try to have honest conversations in these moments and not just completely fold to what an applicant may want or fold into misinformation that sits out there, which is all the time.

[04:37:14] So these are hard discussions, especially now. So I just want to say let's try to be as honest as possible. Uh, I'll go back to Mr. Sainz. All right. All right. You want to close?

[04:37:50] Yes, I'll close. So again, ultimately what came down to me for this was if we voted no and there was going to be no data center built, then I would have voted no. If we vote yes, well, if we voted no, the data center still would be built.

[04:38:12] So either way, if we said yes or no, the data center still would be voted yes, or be built, excuse me. With us saying yes to this, we get the tier four, one tier four backup generator. And again, that shows how small the structure is. Because usually, again, as I said earlier, data center has 10, 12, 13, 14, 15 backup generators and so on with it because it's so large in scale. Also, when you look at the site, yes, Supervisor Draconi pointed out that the area was changed. The zoning area was changed to urban transit. Urban transit says no data center. However, when you go and park your car and sit and look at this location, Loudoun County Parkway,

[04:38:52] and you do a 360, there's nothing but data centers there, except for the Verizon campus that's across the street, which is, I mean, I know we have an applicant that's proposing to put two data centers in front of the Verizon campus, which, by the way, I'm not going to be supporting that application when it comes back to us in October and November. I'll just put that on the record because those are huge data centers that do not need to be built. And we are listening to our constituents. I hear my constituents hear what the talk in Loudoun County is about data centers.

[04:39:27] I think we, I think we, a lot of us have had our fill, but again, ultimately, like I said, we voted this no, the data center is still going to be built. We vote yes, we're getting some um, some additional things. Could the applicant just automatically do those things? Yes. And again, could the applicant not even come in front of us for such a small square footage? Yes. And I wish they did. Um, but ultimately again, that's why I decided to vote yes. And this was a very difficult vote for me. I didn't really made my decision until probably about 30 minutes before I got here

[04:40:04] to the meeting today, to be quite honest with you. Um, so thank you. All right. Um, motion was made Second by Supervisor Sainz, second by Supervisor Turner, all can you please say aye?

[04:40:20] Aye. Opposed? No. That motion will pass 5-4, with Supervisors Bricksman, Brando, Turner, and the crony voting for the motion.

[04:40:37] Against the motion. I'm sorry, against the motion. So thank you. I'm sorry, we're having—I'm sorry, having a whole other discussion. Ms., I thought we read—that item's done. Thank you very much. I thought we read a number—did we not do 1A on consent? No?

[04:40:53] 1A is—the staff is here. I was—the staff is here for whenever you want to take it. Well, I don't want—Mr. Turner—Mr. Turner, um— I've got to drop off, Madam Chair. No matter what, you have to drop off. Yeah, I've got to drop off.

[04:41:08] Okay, well, then it doesn't matter, then. All right, then we're—I'm sorry, supervisors, I didn't realize—I thought we had done—I'm Sorry, thank you, Mr. Crony, for bringing that up. Okay, actually, we actually haven't had a break at all. So let's actually take 10 minutes and then come back and finish out the rest of the items before the last closed session we go into.

[04:41:34] All right, let's take a break.

[05:12:19] Supervisors, if everybody come back to the dais, I'd appreciate it. I know we have, I think we have people in the room for some of the BMIs that we have, And I kind of want to get those out the way to get people out the room.

[05:12:43] But we also have staff in the room. So just give me a second, folk. Let's see. Okay, yeah, we're going to have to go in and do 1A because I missed it anyway.

[05:13:04] So we'll do 1A, and then we'll go to the BMIs. And then Mr. Turner wants to come back on the line for the zoning discussion. So we'll bring him back on the line at that point. So let's do 1A and then go to the BMIs and then go to the zoning discussion. Good evening.

[05:13:26] Good evening, Madam Chair. And board members, at the table with me is Beth Hilkemeyer, and Megan Burke is online. The item before you is the 2025 capital intensity factor. This item was discussed at the Finance Committee in February of 26, with the recommendation that the board advertise the proposed capital intensity factors for a future board public hearing.

[05:13:52] Given the timing of the next public hearing, being July 15th, staff also has recommended that Phase 3 of the 2023 CIF that is scheduled to be effective on July 1st be paused as the discussion of the 2025 CIF, which would replace it, is still ongoing. Since the discussion with the Finance Committee, responses to questions posed by committee members have been provided in the item, and the proposed effective date has been updated after discussions between staff and industry representatives to be effective as of the date the board adopts the 2025 CIF

[05:14:32] and apply to all rezoning applications that have not yet been acted upon by the board. Those are the updates that I have this evening, Madam Chair, and we can take any questions you have. Thank you very much. Can we take questions inside of a motion? Because I would so. We will go to a motion if anyone, if everyone's okay with that, and if I can find the item myself.

[05:14:57] Madam Chair, this is 1A? This is 1A. Related to FIC and finance? Yes, it is. I'm happy to make that motion. I'm happy to make it as well. Normally, those motions, if they're in committee, are made by the committee chair.

[05:15:19] But when they come out of committee, usually if they are countywide items, and this is not new, I usually make the motion because they're countywide items. But, Ms. Prixxman, if you feel very strong about it, you go on and make the motion. Thank you, Madam Chair. I move the recommendation of the Finance, Government, Operations, and Economic Development Committee that the Board of Supervisors advertise the 2025 standard capital intensity factors, urban multifamily-attached capital intensity factors, the by-size differential option, as recommended by staff, along with the age-restricted and continuing care, retirement communities' capital intensity factors, and the road capital intensity factors,

[05:15:55] as recommended by the Fiscal Impact Committee for a future Board of Supervisors public hearing as shown in attachments 2, 5, and 7 to the June 16, 2026 Board of Supervisors Business Meeting Action Item. I further move that the Board of Supervisors pause the implementation of the 100% phase of the 2023 capital intensity factors for the standard capital intensity factors, age restricted and continuing care retirement communities capital intensity factors, urban multifamily attached capital intensity factors along with the by size differential option until

[05:16:28] the future effective date of the 2025 capital intensity factors. Second. Thank you. I thought this was on consent so I made some comments during the consent agenda on this item and although it doesn't really say it in the motions the big news out of FIC is that we have eliminated the school facility fees. Thank you, Madam Chair. Mr. Crony? Yeah, thank you, Chair Randall. And I don't, I'm not on the finance committee. I do have a question about the roads CIF. Back when we were

[05:17:06] discussing the 2023 road CIF update, I asked about using differing road projects, such as interchanges and overpasses. And at that time, the response was that it could be looked at at a future CIF calculations, was there any consideration given to using varied road projects, like roundabouts and interchanges? Because it looks like it was just a few additions to create a

[05:17:36] calculation that I think was only \$100 to \$400 more from the 23 CIF. So the road capital intensity factor was updated based on some more and more recently completed road projects to give us a more representative sample. At the time that we did the 2023 CIF, we did not have a very large sampling of completed road projects. And since that time, only a few more have been completed.

[05:18:09] So the goal of that road CIF is to get representative costs of roads that have been completed at this time. Um, so further evaluation of those can be done as we have more information for different iterations of this year. Yeah. And I, I just would like to see interchanges, you know, in roundabouts because it, you know, the cost for road miles and right of way has increased. And so to only have it go up like a hundred to \$400 from 23 to 25, am I correct about that? It really hasn't gone up that much. Um, I think we're not maybe using the right, um, the right projects, you know, we could use projects that have a bigger value

[05:18:49] because that is what we're doing countywide. We're doing all different kinds of projects, varied projects. So I'm wondering if we could do that. Cause I had, I did ask that at the last, uh, CIF, uh, update. Yes. Staff will continue to evaluate the types of road projects with each iteration of updates to the CIF. Okay. And then I also have a concern about having zeroed out the schools, especially for the UPA, the urban policy area. I know we're building an elementary school in Silver District West, but I think there will be a need for like an urban design

[05:19:26] middle and high school. And so to say for 10 years, we're zeroing out the schools. I wonder if there could be a reevaluation of that at some point. As future information becomes available and the need for schools as it relates to new development comes available, that that can be evaluated as the CIF is updated every two to four years.

[05:19:51] Okay, thank you. Mr. Letourneau. Thank you. Just to piggyback on that, so the process normally with the Fiscal Impact Committee is that they meet every, I think, two years, or do they meet annually for different parts of their standards?

[05:20:09] Yes, the Fiscal Impact Committee meets annually, but the CIF is on a two-year. Two-year, yeah. So if we think there is enough new student generation coming in a particular planning district, we can go back and add back in a capital intensity factor for the school ratios, right?

[05:20:30] That's what you were just saying to Mr. Coney? Yes, if we have information from the schools that they do project to have a future need to build new schools based on new development, then yes, that can be. The key is there has to be new development. I had asked a question about renovations and things like that that cannot be used for that.

[05:20:46] It has to be used specifically for new development. It pains me to vote for this because I kind of agree with Supervisor Crony that I'm a little skeptical with all the housing that this board is approving and wants to approve. I know we have school capacity in different parts of the county.

[05:21:03] I'm just not 100% convinced we actually have the school capacity in the places where the growth is going to be. And so then it gets into a discussion of how far you're going to bust somebody and all of that. You know, I don't think we have a choice but to vote for this because this came through the process.

[05:21:19] It's staff's recommendation. It's legitimate. The schools are not identifying need. It's going to be hard for residents, I think, to understand that. It's hard a little bit for me, you know, emotionally, if not intellectually, to understand that. But I will kind of hang my hat on the fact that if new information arises, then we can come back and revisit this with the Fiscal Impact Committee, and I think we certainly would need to.

[05:21:42] Thank you, sir. Ms. Umstead. Thank you, Madam Chair. Nikki, thanks for all your hard work on this. Put me in the same box as supervisors to Crony and Letourneau. I do think we need to have the option to update this and bring the schools back in as the need demonstrates itself.

[05:22:07] Thank you. I think two things are going on. One, Loudoun's population is changing and aging. For those of us who moved here in the 90s and early 2000s and at the time we had little kids or were having children, our children have aged up and many people haven't sold their homes or left because it's hard to downsize in Loudoun because at this point you could buy another home, but it's not going to cost less and you're going to get less home for

[05:22:43] the same or more money. And so we are having a shrinkage in school population just because people who, the young families have grown up and they're not here as much anymore. Thus you have less need for schools. That's one thing that's happened. Secondly, if Mr. Letourner is right, there is a lot of capacity in some schools and not capacity in others. I have had this discussion with school board members who said that they need to do, like put everything on the table and do a full overhaul of school districts and move everybody, which if you've ever had a school boundary line change, it is a cage match. It is just the toughest conversations.

[05:23:22] So I do not envy the school board at all and having to look at the entire county holistically and move people. I don't know how much further they would be bused, maybe a little further. I have no idea, but it doesn't make much sense to have some schools at three-fourths capacity and other schools completely over capacity.

[05:23:42] They're going to actually at some point just have to do that. So it's more than one thing that's going on right now. I don't know, and I don't think any of us knows because, you know, what's going to happen in the future. I will say I did meet with NBBIA today, and they have, you know, I said to them, we've been using the same school generation numbers for years.

[05:24:02] I don't think they're right. I never thought they were right because we've been using those numbers, even though we have schools, even though we have capacity in the schools. We've been using the same capital intensity factors. Even though we have teachers and staff, we're putting another person in the school. That doesn't mean that if a class has 25 kids and you put 27 in there, that child is not costing what it would be if you're now building the school and hiring more teachers and that type of thing.

[05:24:31] And so I don't think we know what we don't know. And so I do think that it's a better idea to pause it and then take a look at it later. And later would be after a full haul of the attendance boundaries for the schools have been done.

[05:24:50] And so actually, that's why I think that's a better idea. But there's a lot of things that's gone on. And truthfully, all of it's good. We're becoming a mature, built-out county. So we can't expect to have young families all the time. And that's a good thing. And Ms. Bricksman, would you like to have a closing?

[05:25:08] Yes, Madam Chair, thank you. Just briefly, I want to assure my colleagues that LCPS has a seat on FIC. It has been Mr. Lewis until his retirement. And so we are continually updated on FIC about the potential enrollment growth or decline in the schools.

[05:25:30] And I think the FIC schedule is to look at these every two years. And so it will be monitored. And it does feel a little bit like falling off of a cliff to say, we're not going to need any more schools in Loudoun County.

[05:25:46] But, you know, the schools have done a deep analysis in this. And, again, there is a seat on FIC for the schools. And hopefully they'll bring it back to us if they feel like we need to start building more. Thank you, Madam Chair. All right. Ms. Bricksman make the motion. Did I second the motion? I think I did. All in favor, please say aye. Aye. Any opposed? That motion will pass 8-0-1 because Mr. Turner's not back on yet. So let's go on and do the two, and Paula, thank you for waiting so long.

[05:26:22] Let's go on and do the two BMIs and then we can get Mr. Turner back on the line for the last two items. So the way BMI's work is this. Staff is not supposed to have a lot of interaction with us for BMI, nor are we supposed to be asking staff for a lot of things, and they should not be doing any new research or creating new material because it's a BMI.

[05:26:49] So I usually ask the person whose BMI it is to do about three minutes on what it is and why, and then make a motion, and then we'll have discussion inside of the motion. So that's what we're going to do right now. The first BMI is Ms. Glass or Ms. Bricksman?

[05:27:06] Which one of you are going to be talking? It's number 15? It's 15? It's 15. 15. It's 15, yeah. And it's Ms. Glass and Ms. Bricksman and Mr. Crony.

[05:27:26] So, no, it's the compensation. So who am I handing this to, to do with the three minutes before we go make a motion? Who am I handing this to? Ms. Glassman, Ms. Bixman, Mr. Crony, who am I handing this to? I don't care.

[05:27:42] Just tell me who. No one's cleaning, so I will. All three of you are on it. Somebody take it. Excuse me? What's that? Yes? Go ahead, Laura. I mean, the supervisor to Crony. So I'll make a motion? Yeah.

[05:27:57] Make a motion? Well, you might want to take a little bit and say what we're doing and what it is, and then make the motion. Okay. Okay. So this is the compensation structure for the next term. So by state law, we are not allowed to increase our compensation for our term. This would be for next term. And what we're doing with this BMI is bringing it up to the individual area medium income and the cost of living in Loudoun County. So again, it would be for the individual area median income and cost of living in Loudoun

[05:28:35] County. We are not allowed to also say it's full-time. However, this job is full-time. I do this job full-time, and I'm very proud of that, and I think it shows to my constituents that I'm there for them. We're a public servant 24-7, and we're always there in one way or another doing our job. And supervisors should be able to devote their full-time attention and give that

[05:29:08] full-time commitment. I started office hours, and they're very popular. So I do that like at two or three o'clock, throughout different HOAs, I go in their clubhouses, and I have lines out the door.

[05:29:27] So it shows that being accessible and being there for your constituents makes a difference. And with the largest concentration of data centers in the world, I think this job is full-time.

[05:29:46] And I think, you know, this compensation structure provides the opportunity to give the attention that this really requires. And again, it is for next term, and it's aligned with the individual AMI and the cost of living.

[05:30:06] I also would like to see us start business meetings during regular business hours. I'm still going. No, no, no, make the motion. Oh, I thought you said I had to go through my talking points. Well, at

this point, make, okay, you're still in three minutes.

[05:30:21] I'm still doing my talking points. So, you know, we used to have business meetings start at 9 or 9.30 in 2004 and 2011 during those boards. It would be nice to have business meetings start during regular business hours.

[05:30:41] You know, other counties do that. Fairfax County does that, and so does Prince William. And I think there's a quality of life that goes with staff to be able to have meetings during normal business hours. I think that would be lovely. So anyway, this is to look at the compensation structure for next term.

[05:31:01] Again, we're not doing this for ourselves, but it's next term. And to bring it up to the area median income of an individual, that would be the starting for a supervisor. And then the chair would get 10% more. Okay, I'll make my motion.

[05:31:18] Okay, so the motion is I move that the Board of Supervisors approve the Board of Supervisors 2028 to 2031 term annual compensation structure as provided in Table 4 of the June 16, 2026 Board of Supervisors Business Meeting Action Item.

[05:31:40] I further move that the Board of Supervisors direct staff to bring an item to the Board of Supervisors meeting in the year prior to each regularly scheduled Board of Supervisors election once that year's annual median income is released, which recommends Board of Supervisors compensation for the following term to be aligned with that year's area median income.

[05:32:02] Second. Motion's made and seconded by Supervisor Briggsman. Discussion on the motion. Are you good? I already did that. Okay. That's why I was trying to get you to -- that's kind of the point I was making. Madam Chair? Yes. Can I move to split the motion so we have the first motion by itself and then the second motion by itself?

[05:32:27] Of course. If you ask to split the motion, I'll always allow that to happen. I'd like to split the motion. Oh, okay. Yes. So then we're going to have a discussion on first. I move the Board of Supervisors to approve the Board of Supervisors 28 to 2031 term.

[05:32:45] Compensation Structures Providing Table 4 of the June 2026 Board of Services Business Meeting Action Item. That's the motion. That's the second still, and that's what we're going to discuss first. Mr. Letourneau. Thank you, Madam Chair. I have a lot of respect for my colleagues and the work that they put in, and I know that's where this is coming from.

[05:33:03] But I was a co-sponsor of the last large increase that we did in 2019, and we hadn't had an increase at that point in 12 years. And so we went through, I think, a pretty methodical way of trying to essentially catch up for what we would have been getting had we been increasing salaries by sort of a normal 3% to 5% kind of range for that period of time.

[05:33:27] The hope at the time was that we wouldn't have to have another big jump up and that we could just sort of continue on that path. And that's what we did in this term. And that's what I was comfortable with. I'm not comfortable with the amount of increase that this is.

[05:33:43] And I'm particularly not comfortable from a process standpoint of the fact that I just feel like I understand this is in the packet, but there's been absolutely no public discussion about this whatsoever. Like this is, I found out when I opened the packet and I read the item, this has not been any kind of community conversation at all.

[05:34:04] When we did this in 2019 for that term, for better or worse, there was community conversation. We made sure it was very transparent. There was a lot of explanation of what the process was and what the amount was. People were for it. People were against it. Ultimately, you know, some of my colleagues said you shouldn't vote for this.

[05:34:22] The voters will kick you out. That didn't happen. But I think one of the reasons it didn't happen was because we did a good job of explaining it and there was a public process around it. And this this is not like this is just something that's, you know, item 15 in a board packet that unless you know to go look for it, you wouldn't know it was even here.

[05:34:37] So I'm not comfortable with that approach to doing this. And then I also don't think the amount is just appropriate to go increase by that much. If you go back from the 2019 levels, this is like a 101 percent increase.

[05:34:54] And, you know, I don't doubt everybody works hard. With respect to my colleague, though, I think some of us do have other jobs, and I think there's an advantage to that. I always have. I think living the same type of life that your constituents live with the same pressures and the same time and the same commutes out of the county sometimes, there's also an advantage to that. And so I think it's been a benefit to the board that we've had people, some of whom are here full-time and some of whom have other work, and I would put my representation of my district up against anybody's, even though I have another job, because I put the time in every other time. So

[05:35:30] I don't like framing it like that at all. I don't like using that sort of frame and that type of full-time, which is not a legal thing. That's one thing we discovered way back when, is there's nothing in the code that says full-time, not full-time. There are members of the Fairfax Board that have other jobs, even though their salaries are higher. A lot of them don't.

[05:35:48] But, you know, it's really up to the individual supervisor in terms of their representation and whether the voters are happy with that. So, that's my kind of discomfort tonight. Again, very respectfully, but I can't support this motion. Thank you. Mr. Brixman.

[05:36:04] Thank you, Madam Chair. I obviously worked with my colleagues, Supervisor Glass and Supervisor DeCrony on this. We've been talking about it for a while. We thought the fair thing to do would be to peg this to a single person's household AMI, which means that a full 50 percent of those in the county will make less, and a full 50 percent of residents in the county will make more.

[05:36:35] than the single person's ami um and so we thought that was a fair way to kind of peg this and move forward with it so it's not kind of a debate that is not based in some sort of rooted in some sort of facts about what what it requires to be able to live in this county um for me this is not about whether we are full-time or part-time whether we start meetings earlier or later or anything like that because we cannot require future boards to have their meetings at a certain time we can't

[05:37:10] require future boards to to to really do anything we just can't um some of us choose to do this job full-time and some of us don't and i think that we all do this job well in in in the best way that we can and we serve our constituents well i mean i think that everyone up here is pretty decent supervisors, to be frank, whether you have a full-time job outside of this or not. And I don't think anybody should, nobody should be dictated to as to how they do this job, nor can we dictate

[05:37:42] to anybody how they do this job. For me, it's about allowing perhaps new voices to be able to consider public service as a path for their careers. And if it is a position that only pays, like it says in the item, 69% of the 2026 AMI, this may not be the first choice, say, for someone coming out of college or for someone, you know, folks that aren't here now, right? Like, for me, it's about the folks of the future, not necessarily about the folks that are sitting on

[05:38:21] board right now. And the disparity in the pay can present barriers to entering into public service. And we want individuals who do not have a second household income, who do not have independent wealth, and those who may not be able to have another job on top of doing this job.

[05:38:43] So I would in no way criticize any of my colleagues for how they do this job, whether they have full-time or part-time job aside from that. I mean, I've had a couple different jobs aside from this one. So, anyway, that's what it's about for me. And if we need to have more public discussion about it, I'm fine with that as well. Thank you, Madam Chair.

[05:39:04] I don't know who was next. Ms. Umstead. Thank you, Madam Chair. I'm pretty much where Supervisor Letourneau is on this. I'm comfortable with rate of inflation increases on an annual basis, but this is a lot more than that, and I might make the argument that it's the bottom half financially of our constituents

[05:39:43] that I worry about and I if we if we want to understand what they go through then I think we need to limit what what we take in in taxpayer money so I I understand the logic behind this

[05:40:08] I can accept the logic, but I think when you serve the public, you need to try to serve those who are less well-off than you are, because they're paying the taxes that would pay for these salary increases.

[05:40:26] So I cannot support this amount. Thank you. No idea where I'm at. Ms. Glass, Ms. Bricksman, do you need something else? oh i'm sorry madam chair no uh thank you madam chair um i feel that this is an opportunity um for those who may want to get into office who find that that they want to be part of public

[05:41:02] service and it should be open you know to all regardless of of financial background so i i believe aligning the board salary is you know with the area median income will increase the possibility of more diverse candidates running and with very varying backgrounds and living experiences. I always think that's that's a positive thing. So having supervisors with different life experiences and backgrounds I believe that will it can strengthen the board's

[05:41:38] ability to make decisions for the best interests of everyone in this county. Thank you Madam Chair. Thank you. Mr. Sains. Thank you, Madam Chair. I agree in the principle of increasing the funding for the Board of Supervisors' salary, because, yes, I agree that that will open up the possibility for more folks to run for these positions and sit up here and make these decisions for our county, which I think is a great thing.

[05:42:13] I split the motion because the second motion will dictate to future boards in advance you're going to review and make pay salaried decisions where Supervisor Bristman just mentioned in her comments I don't want to dictate to other boards how they do their meetings and et cetera.

[05:42:36] So, in that spirit, that's why I split the motion, and I cannot support the second motion. To the top motion, again, like I said, I agree with increasing the salaries for the supervisors. This will open it up

to more folks to be in these roles and these positions. It will give people the opportunity to make those decisions for themselves.

[05:42:54] If I have a good salary, I don't need to work another job, and they can work this as their sole income for themselves and their families. We have some folks up here that do have other jobs, including myself. I work this job as hard as I can, just like my other job, to be quite honest with you, and take it very seriously and work a lot of hours during the weekday and weekend, and will continue to do so.

[05:43:21] But I supported the motions that we've done in years past to increase the salary, but unfortunately tonight I cannot support this increase that's being presented in front of us right now. So I respectfully ask that my colleagues withdraw and let's go back to the table and work out this, do some more conversations, because I'll be honest, I didn't see this until it was in the packet, unlike previous years.

[05:43:45] Because I think going from having a 40% increase from 2027 to 2028 is not the right number. Again, I support increasing it, but by 40%, I cannot do that.

[05:44:04] So I'll just say that you don't withdraw. I will have to vote this down, and we'll see where it goes. But I think we should pull this back, have some more conversations, and come back again with some different numbers. But again, an increase. I do support the spirit of doing an increase, but not at these numbers that are being presented to us right now.

[05:44:21] I cannot support. Thank you. Mr. Kirshner. Thank you, Madam Chair. Yeah, I think I did not oppose the last pay increase that we had, but I didn't support it either. I said, listen, if my colleagues feel like they need a bump in pay or the next board needs a bump in pay, then I'm not going to oppose this.

[05:44:39] I am going to oppose this. And let me explain why. First of all, it's a massive increase. I think the board prior to 2019, when they made the increase, was making about \$40,000. I think they bumped it up to about \$60,000, somewhere in the 60s.

[05:44:55] And then for this term, it got bumped up into the 80s for the standard supervisor. The chair gets a little bit extra on that. I actually am, I do believe that the chair is really a full-time position. I do believe that these numbers are probably a lot closer for where the chair should be.

[05:45:12] I'm very cognizant now, having been on this board for six years, and I think some of the other supervisors have been here a long time, know how much Chair Randall does and know the responsibilities for the chair, and it probably should be a full-time position. I disagree with my colleagues as to the fact that this needs to be really a full-time paid position.

[05:45:29] What that compensation number is, we should have a fuller discussion. I think these numbers just kind of pulled out and said, oh, it's the median income, that's what it should be. I mean, this is 116, for the standard supervisor and the vice chair on these programs, this is starting at 116,000. That's a lot of money.

[05:45:44] And to Supervisor Brisbane's point, I don't have independent wealth, and I don't have a second income in my home. I work two jobs. I work 30 to 40 hours a week at this job pretty steadily, and I work another 40 to 50 hours at my other job, plus I've got lots of children, as you can see.

[05:46:00] so I'm pretty busy, maybe too busy. Anyway, my point being is, yes, we want other people to participate, but sometimes being a public servant is actually that. It's being a servant. It's not being a paid

employee, and I really am a big believer in preserving the citizen kind of legislative model, similar, maybe not to the extent that as little as they get paid at the state level, but I think there is something to be said. There's sacrifice to step into this job.

[05:46:26] It's not just another job, and it shouldn't be – I feel like there has to be a level of sacrifice because I don't do this for the money. I'm going to be quite frank with you. I could bill a lot more money at my law firm for the time that I put in here and make – I'm not going to say how much, but I'm guessing four to five times more money based upon the hours that I'm putting in here.

[05:46:46] I do this because I love the county. I love the process. It's fun for me, quite frankly. And I do think that sometimes when you create this concept of full time, we lose some of the efficiency that we need to have at these meetings.

[05:47:03] Because those who may not have other jobs and other things going on, sometimes there's a lot more time that's spent on something. That's not necessarily a bad thing. Efficiency is a good thing, especially in government, which is kind of historically known as being inefficient. So I would not support this.

[05:47:18] I would support some level of increase. This is a huge jump. I would also support probably something in that range for the chair, but not for the standard district supervisor. That is my position. And if we want to kick it back another time, I'd be happy to consider it further. So, Mr. Kirshen, that's very kind, and thank you.

[05:47:36] I don't know, again, I've never been a, well, I won't say a standard supervisor. I've never been a district supervisor. So, I don't know. I'm the deluxe model. I don't know how I would do this job anything but full-time.

[05:47:53] My husband jokes that I make about \$4 an hour, which is probably true. I mean, I will say I started this morning at 8.30, and I will finish tonight when I finish tonight, and that's a normal day for me. I would say that no matter when we do this and how we do this, I would ask to pull myself out of the discussion for the chair's salary, because I would abstain for that discussion.

[05:48:17] Last time we did this, when we came in, we were making \$50,000, which is ridiculously low, ridiculously low. And so we needed to raise it. And I do think that, I mean, listen, I don't know how, well, if you have another full-time job in this job, then you're working the same hour as I'm working probably.

[05:48:37] It's very hard to have another full-time job. And truthfully, I do think that part of my job as chair is to say to, especially my colleagues who have other full-time jobs, how can I help you? And I do that all the time. How can I go to the ribbon cutting for you? How can I do this event for you? Because this is my full-time position. And as chair, one thing I try to do is be there for my colleagues. And as you all know, I'm the one that makes the phone calls to you if something happens and all those things. I do all that. And I'm supposed to do all that. And truthfully, you know, as tough and hard as this job is, I heard a quote the other day that I thought was one of the best quotes I've ever heard.

[05:49:16] It was, what a blessing and a privilege it is to be challenged by a life you chose for yourself. I love that so much. I wake up every morning, and I'm like, I get to be chair of the county today. It has not gone away. I love this position. It's fun. It's interesting.

[05:49:32] It's very, very hard. But it's what I feel led to do and what I chose to do. So if we do get to a vote, and I don't think we will tonight, I would pull myself out of discussion for the chair's salary, and I will leave it to my colleagues to decide that.

[05:49:48] I do have one question, though. Mr. Cronius, the maker of the motion, I'm going to ask you to go to page two, and I'm going to ask you to go to the second paragraph that says, and I quote, the AMI in Loudoun County in 2026 is \$116,300 for an individual and \$166,000 for a family of four.

[05:50:15] In that sentence, when you say for an individual, because it does say AMI, in your head and the way you guys are talking, does an AMI, I'm sorry, does for an individual mean per capita?

[05:50:32] Is that the same thing? I'm talking to the maker of the motion. Does four in individual mean per capita? It's effective May 1, 2026. It's the area of medium income. But does four in individual also mean per capita? No.

[05:50:48] No, it doesn't. Okay. A family of four in Loudoun County, according to, and I brought it with me, according to our numbers that we had in our packages when we did the credit rating trips, They Came Here, which we just did, has an income level for a family of four being \$177,000, not \$166,000, just to say that.

[05:51:20] And it has the per capita income, if it's per capita, and it would be \$71,000. So there's a lot of numbers being sloshed around. I just want to make sure the numbers are right, because I'm not quite sure all the numbers are saying the same things to all the people.

[05:51:38] And I want to make sure those are right. So I'm not ready to vote for this tonight. I think we should do more outreach, talk to the public more, get more input, bring it back. And when we do, I don't want to vote for my own salary one way or the other.

[05:51:56] Would you like to have a closing? Madam Chair, I have a point of clarification. The area median income was released by HUD, effective May 1st, 2026, and there's a link to it in the item. Ms. Bricksman, I didn't ask a question. I'm just doing a point of clarification, Madam Chair.

[05:52:14] I don't need a clarification. I didn't ask a question, and I was talking to the maker of the motion. If I needed a clarification from you, I'd ask you. Okay, well, there's a link in the item. Ms. Bricksman, you're out of line at this point. Mr. Crane, would you like to make a closing? So, I think based on what my colleagues are saying here tonight, I think it would make sense to table this and discuss more and do more public outreach.

[05:52:39] But I do want to say, you know, I don't do this for the money, either. I know somebody brought that up. I do this because I love working for the constituents. The constituents are the reason I'm here. But I do think it provides opportunities for future leaders.

[05:52:58] I do. And I heard that. I think Supervisor Glass made that point, and I think that was really a well-made point. Other people might want to be part of public service. You know, the youth. The youth are our future. And I think they are, and especially with the environment, I will say that.

[05:53:16] And so I think it makes sense to look at our salary. And this is not unreasonable, and I think we are all efficient and effective, and some of us choose to make it a full-time commitment.

[05:53:35] It is correct that we can't say it's full-time or part-time, but I make it a full-time commitment. And I think that that's just a choice, but I also think it's a choice for us to look at paying people a livable

wage. So I think that's a choice as well.

[05:53:52] So I will table this because I do value public input, but I think we will have further discussion if that's okay, Chair Randall. So a motion to table has no discussion, so I need to make sure which a motion to table is.

[05:54:08] So, because once you make that motion to table, there's no discussion. No discussion. So are you tabling it to a date certain, or are you tabling it after something happens, or when are you tabling it to — Tabling it after discussion with colleagues, with more colleagues, because it sounds like Like some people, like Supervisor Sains, would like to have a discussion, and that's great.

[05:54:24] And also for public input. Would you like to table it to the first meeting in September? That sounds good. Is that okay? First meeting in September. That's fine by me. Thank you. All right. So make that motion. Okay. So I make a motion to table the Board of Supervisors Term Compensation Structure, BMI, to the first meeting in September.

[05:54:51] Second. Okay. Second. Unless you want to second it, Ms. Glass or Ms. Bricksman? Okay, Ms. Bricksman will second that. I've said that because you're the three that brought it forward. All right, there's no discussion on the motion to the table. All right, please say aye. Aye. Any opposed?

[05:55:07] That motion will pass 9-0. Thank you. All right, let's go to Motion 16, BMI. This is my BMI. I hope to do this really quickly before I go to a motion. And by the way, pull out your red sheet because I have a further move on the motion that you guys got today. So a couple of weeks ago I read that Governor Spamberger did an executive order that disallows federal ICE activities on state property or in-state buildings.

[05:55:39] So it got me to thinking, is this allowable to do on county property or in county buildings? This motion is asking Mr. Rogers' staff to go look at the legality of putting an ordinance in place that allows for us to say there can be no federal immigration activity on county property or in county buildings.

[05:56:05] Because I have no idea if we have the legal right to do it or to say it. Today, or a couple days ago, I was watching television, and it also, some, the Secretary of Homeland Security, Federal, was talking, and they were talking about having ICE agents at polling places.

[05:56:26] That is chilling, and most, many, if not most, of our polling places are schools. Thus, I came up with the second part of this motion to have that this discussion sent to the Joint School Board of Supervisors meeting for the same purpose, to find out if we can legally do that, if we can legally do it.

[05:56:50] So I'll make the motion, and that's how I got here. All right. I'm with the Board of Supervisors direct staff from the Office of the County Attorney to study the legality of prohibiting federal immigration enforcement on county-owned properties and in county-owned facilities and to prevent signings to a future board supervisor's business meeting.

[05:57:13] I further move the discussion on the legality of barring federal immigration officials from conducting operations on Loudoun County Public School properties or inside of Loudoun County Public School buildings be referred to the Joint School Board and Board Supervisors School Board Committee.

[05:57:31] Mr. Sains is doing this one with me first. He asked me first, or he signed them first, so I'm going to have him second it. One thing that I think should be noted and is very important to say that there was an actual code section that was signed and will go into effect on July 1st.

[05:57:50] It is Virginia Code Section 15.2-1726. It's about immigration enforcement agreements with federal law enforcement and the required provisions. I will read one part of that provision because it's germane to this conversation.

[05:58:07] G in that provision. Nothing in this section shall be construed to prohibit the director of the Department of Corrections, a sheriff, or jail superintendent upon receipt of federal immigration detainer from U.S. Immigration and Customs Enforcement from transferring custody of an adult as authorized by 51.1-220.2. So I read that because this can't apply to the 287G programs in the jail. It's not allowed to apply because in code that has already been

[05:58:46] signed and goes into effect on January 1st, the governor has said that a 287G program can happen for adults in our jails and prisons. And so this does not apply to the 287G program because it cannot. What I am trying to do, though, is this. If there's a person who needs to come to the county building for whatever reason, maybe she needs or he needs to get help for whatever, they can come there and get that assistance without having to feel like that them coming

[05:59:23] to the county building will mean that they could be harassed. If somebody goes to court for their asylum hearing or they're hearing for their green card. They don't step out of court and then get arrested when they're actually following the law that they're supposed to be following to get their asylum or their green card. I have done a lot of research and we have found out that a hundred thousand children are now misplaced without parents because their parents have been

[05:59:57] um uh arrested or deported what does that mean when kids when we have that you know what that means those kids are so vulnerable to being trafficked or something happened to them there's things we can control or maybe not control we can impact and we can't can't impact and i want to know if legally we have the right to say on county property and on county buildings with the except in the section of the 287G program, we can do this on county properties and county buildings.

[06:00:29] So that's why I put this in place. Mr. Turner, do you have any comments on this one? I do not, Madam Chair. Anybody else? Ms. Umstead. Madam Chair, would you consider adding in the exclusion of the 287G programs at the adult detention center?

[06:00:53] Well, I don't think it's needed because it's the law. It's literally the law. True. I mean, what— But the way this is phrased, it would indicate an interest in violating that law.

[06:01:10] I would not be ever interested in violating—well, I might be interested in violating the law, but I would not be interested in violating this law. So are you asking for a friendly? I am. And the friendly would be with the exception of— With the exception of the adult detention center.

[06:01:30] Based on? Based on. And then that language? Yes, ma'am. If that's, then I would, yes, I would, because that's the law now, and that's the language, and so I would put that, if I could put that language in there, so the language is cited, that would be fine with me.

[06:01:45] All right, thank you. Mr. Kirsner? Thank you, ma'am chair. I'm not going to support the motion. I think for obvious reasons, this is a fairly politically charged issue. I will say that I'm not aware of any problem that we have in Loudoun County of harassing those who may be here illegally.

[06:02:02] I know that there may be one or two instances that have been raised, but I have not been able to verify those. It would be one thing if we had a problem. We don't have a problem in terms of ongoing

harassment of people in our county buildings that I'm aware of.

[06:02:18] What I am concerned about is we know that coming over the border is obviously a misdemeanor. I think the purpose of this, obviously, is just to look at it, but I think the long-term purposes is what can we do to prevent to—I don't want to use the word obstruct, but I think that ultimately what could potentially boil down to the immigration officials from conducting business of, uh, of investigation, deportations, et cetera, in, in the county building. Um, and I don't want to, um, I mean, obviously there are, there are due processes

[06:02:58] through that process. There's the immigration courts. They have to follow those in, in to some extent. Um, I know there were some problems early on in some of our counties and areas, and obviously that has been suggested I mean that that has been widely reported but here what we're suggesting is let's look at what we can do in our county buildings and I'm a little uncomfortable with that I do not want to be an obstructionist I know it's a misdemeanor I mean if other misdemeanors were being committed or people were who were had pending charges for misdemeanors were in our building I don't think we would be talking about how

[06:03:37] we could what we could or couldn't do in terms of what our role was here in in the building we wouldn't prevent our local police from having to conduct business as needed it would be one thing if they were coming in creating a lot of ruckus that's a different story that's not happening so i'm i'm just not supporting this um in in its current form i appreciate what the supervisors are trying to do but truthfully i just we fundamentally disagree on this process thank Thank you. Thank you, Mr. Kirsten. Mr. Letourneau? Yeah, just briefly, I think there's a couple issues. I'm not going to support this because ultimately, regardless of what the answer is on legality, I probably wouldn't support the follow-on action, so I'm not going to charge staff with

[06:04:16] going out and doing this. The issue for me is a couple-fold. First of all, the state actions are being challenged by the federal government right now, and that has not been adjudicated, so we don't know. I think there's going to be a long period of not having clarity on this issue to begin with. Number two, the specific issues that immigration is going after vary widely, and there are some very concerning instances and cases out there, but they're not all that way.

[06:04:48] We are fooling ourselves if we think that every single person who has been arrested is completely innocent of everything other than being here. That is not the case. And so those instances, you don't want to create a situation where you have essentially a shield against some sort of legitimate law enforcement action because somebody then goes into a place that they know that they can't enter. I question the legality of that anyway, and I'll be very curious what the answer is here. But there's some unintended consequences here. The final one is which I have no desire to make Loudoun County a target for any sort of additional enforcement, and I think this kind

[06:05:25] of thing just does that. I don't think, you know, look, I don't know exactly what's going on out there. I'm not agreeing with it. I'm not disagreeing with it. I don't know. I do know that I have yet to see any reports of our actual county PRCS facilities and things like that being used in this manner. If anybody else has seen it, I'm all ears, but I have not seen any reports from constituents that that's happened. Um, I also think it's practically speaking, if immigration is, is wanting to go after an individual and the individual enters a county facility and then

[06:06:01] leaves, then the same thing's going to happen eventually anyway. So I'm not sure really what we've accomplished. So I get the argument about the chilling effect, the polling places. Um, I, you know, again, I haven't seen in our elections here that happened. Um, I, you know, I would have some concern if that happened. I also think that those individuals are not voting, so I'm not sure exactly what that impact would be. But I'm not going to support going kind of down this road tonight. Let's see what plays out with the state actions. I'm also not comfortable, as I said, with everything that's actually happened on the federal level.

[06:06:40] But that's something that we unfortunately can't fix ourselves as this body. But it would be nice if others would. Thank you, sir. Mr. Turner. Yeah, I know. I have no comments, Madam Chair. Thank you. Mr. Sainz. Thank you, Madam Chair. I'll support the motion. There's definitely some hesitation, some fear out there in the community. So if this, you know, after staff does some more research and homework and comes back and this can help our constituents and residents in Loudoun County to feel more safe and more secure, then I

[06:07:19] I don't see what the issue is, so thank you. So the idea that ICE is just going after people who are not here in a documented manner is just not true. ICE is going after—ICE has arrested hundreds of people who are here legally and as well as citizens and have deported them, and we've had to try to get them back.

[06:07:46] And so that's not at all a true statement. I am very worried about how many families are being distraught. In fact, one of the things that, if you read the item that's led me to this, is how many families are being torn apart, absolutely torn apart.

[06:08:07] And no one has said that everyone is just their only offense is overstaying their visa. And if somebody has a, or entering the country illegally, If somebody is committing a crime, a real crime, and they're in jail, then they can be picked up.

[06:08:27] No one has said that. But we also know that there are quotas that are being set and that there is a goal to pick up a certain number of people. We know that is happening. And I don't know, you all may not be getting phone calls. I am getting phone calls.

[06:08:42] I get phone calls on a regular basis. Usually it's in Leesburg and not always in the county, but it's been on Leesburg property. I get phone calls all the time. So I don't know what we should do.

[06:09:03] I don't know that sitting here and doing nothing for me is an answer. And, of course, what I'm not going to do is let the perfect be the enemy of the good. This is not perfect, and we're not going to be able to get to perfect. But we've got to try to do something, because what's happening out there is not just wrong, it's cruel.

[06:09:26] And listen, if somebody has committed a crime, a serious crime, I want them arrested. I want them deported. But there are people who are literally going to court and trying to do exactly what they're supposed to be doing. They step out of court, and they're getting arrested.

[06:09:44] That's happening all over the country right now. Why do we think we're exempt from that? We're not. We're not exempt from any of that. Somebody trying to get to a meeting. The Homeland Security secretary said yesterday there will be ICE agents at polling places.

[06:10:00] Why do we think we're exempt from that? Most of our polling places are schools. Who said that we're in some kind of bubble that that doesn't apply to us? That's horrible. That's absolutely horrible. So we

have to try something.

[06:10:21] And this is, to find out the legality of this is what I'm doing right now. I make the motion. The motion was seconded by Mr. Sains. All in favor, please say aye. Aye. Aye. Any opposed? No. That motion will pass, 7-2, with Mr. Kirshner and Mr. Letourneau voting against the motion.

[06:10:45] Okay. All right. We have the motion. Mr. Turner, now that you are on, you did want to do the item on zoning, right? Not the next one.

[06:11:03] Yeah, I just have a few comments, but we can go through the normal process. Yeah, we are. We are going to go through the normal process, and that is item number 13. All right, item number 13. Staff, come to the table, please.

[06:11:36] Good evening. Good evening, Madam Chair. How y'all doing?

[06:11:52] Members of the board. Okay. Hey, so I'm Amanda Johnson, the Acting Enforcement Division Program, excuse me, Manager. With me tonight is Planning and Zoning Director Dan Galindo, and tonight we will be presenting on Zoning Enforcement Policy and Staffing Action Item.

[06:12:10] Okay. I'm going to try to do Retired Enforcement Program Manager Keith Fairfax Pratt, so bear with me. Okay, the purpose of this item is to seek policy direction from the Board for the Zoning Enforcement Division of the Department of Planning and Zoning, hereafter referred to as dpz specifically one reaffirmation or modification of the existing county-wide zoning enforcement policy guidance two guidance for the enhanced county-wide zoning compliance positions three interest in pursuing a compliance and educational campaign in the rural policy area referred to as rpa and four interest in conducting a one-time analysis of non-residential uses conducted on

[06:12:49] properties in the rpa as a result of actions derived from recent truck recommendations the board directed staff to seek board direction, excuse me, board direction on their interest in pursuing proactive zoning compliance for non-residential uses in the RPA and a one-time analysis of non-residential properties in Western Loudoun to support zoning compliance in the RPA.

[06:13:13] The board budget work session on March 12th, 2026, three zoning compliance positions were added to the fiscal year 2027 budget for DPZ for non-residential uses countywide, inclusive of weekend and night compliance with a focus on resolving issues caused by unpermitted uses and investigating activities that may be in violation of the Code of Virginia and the Zoning Ordinance and to return to the Board to review existing policy guidance for zoning compliance across the county, staffing requirements to address the expanded zoning compliance service level, and receive directions to reaffirm the existing policy guidance or adopt changes to the policy guidance to include a definition for the levels of zoning compliance.

[06:13:51] To help facilitate the Board's discussion, the following definitions clarify the meaning of certain enforcement-related terms that appear throughout this item. Proactive enforcement is defined as an enforcement response that is initiated for a suspected violation detected through first-person observations by zoning enforcement division staff.

[06:14:08] Reactive enforcement is defined as an enforcement response that is initiated for a suspected violation that has been reported to the zoning enforcement division staff by parties outside of the division, such as constituent complaints and referrals from internal and external agencies. Immediate cessation

powers is the authority granted by the state to issue a legally binding written stop work order upon finding that work is being executed contrary to the provisions of a code, or any pertinent laws or ordinances, or in a manner endangering the general public. Following the issuance of such an order, the work must cease immediately. Authority having jurisdiction, referred hereafter as AHJ, is defined as an organization, office, or individual

[06:14:47] responsible for reviewing, approving, and enforcing compliance of applicable regulations within the purview of their authority for the health, safety, and welfare of the public. Endowed right of entry is defined as legal authority to enter onto a property to inspect it without express permission by the property owner, occupant, or user. Without this authority, inspectors such as those in the Zoning Enforcement Division are relying upon consent from authorized parties to conduct site inspections. Over the past 30 years, Zoning Enforcement has evolved and expanded to be comprised of a diverse portfolio of assigned duties and responsibilities. While Zoning Enforcement performs proactive enforcement initiatives in board-designated areas of the

[06:15:25] county, Zoning Enforcement largely remains reactive with a consistent focus on compliance achieved through education and community collaboration prior to any progressive punitive actions. Table 1 in the staff report on pages 7 through 9 provides a more detailed summary of the zoning enforcement division's evolution. Presently, the county's zoning enforcement program includes responding to and resolving any confirmed violations of the zoning ordinance, including the 1972 zoning ordinance, the provisions of the Virginia Property Maintenance Code as amended and currently adopted under the codified ordinances, and designated provisions of the codified ordinances, whether

[06:16:00] proactively or reactively detected, as well as participation in litigation before various boards and courts of law. Zoning enforcement staff also perform occupancy inspections for new construction, site inspections for various uses, and proffered in special exception conditions. Zoning enforcement staff provide support to Virginia Department of Transportation and the Town of Leesburg in various capacities pursuant to current memorandums of understanding and conduct various public outreach and information sessions. As noticed previously, zoning enforcement staff enforce provisions of ordinances and codes within their designated purview of authority through proactive and reactive measures. While the caseload of zoning enforcement staff varies

[06:16:39] depending on individual roles and responsibilities, currently zoning inspectors average a caseload of 65 to 75 cases each, with the acting enforcement division manager averaging a caseload of 100 to 120 cases. Ideally, the caseload capacity of a zoning inspector would average between 30 and 40 cases each when fully staffed for more effective management.

[06:17:04] The current staffing levels within the Zoning Enforcement Division of DPZ are based on program offerings approved by the Board. The growth of the Division's staffing capacity is included with associated summary details of additional duties assigned to the Zoning Enforcement Division on pages 4-7 of the Staff Report.

[06:17:21] The Enforcement Division is presently staffed with the following 13 full-time positions: A Division Manager acting also as the Maintenance Code Official; an Assistant Division Manager; two supervising field inspectors, an environmental compliance specialist who's dedicated to investigations and enforcement of the solid waste ordinances, an enforcement program inspector who is dedicated to residential overcrowding complaint investigations and enforcement, and seven zoning inspectors. They

are supplemented with an administrative assistant position within DPZ administration who spends approximately half of their working hours aiding the zoning enforcement division. From the receipt of an assignment by an inspector through abatement

[06:18:00] and collection proceedings, the reasonable timeline of enforcement with an uncooperative property owner is approximately 300 days. More if an appeal is filed. A high-level description of the process from when zoning enforcement staff receive a complaint of a potential violation to abatement follows. Unless a violation is observed in a board-designated proactive area of the county, a formal complaint is required for responsive action from the division. Complaints are received through the Loudoun County Express Request or Lex platform or receipt of a signed written complaint form. While anonymous complaints are not accepted due to litigation needs,

[06:18:39] confidentiality provisions are provided in the Code of Virginia for zoning ordinance and building code violations, which includes the Virginia Property Maintenance Code. These provisions do not extend to codified ordinance violations. Current policy guidance stipulates that upon receipt of a complaint for an alleged violation, zoning enforcement staff respond to the complaint within 48 hours of inspector receipt, and an initial site inspection is to be conducted within one week of receipt of the complaint.

[06:19:06] It should be noted that these target benchmarks are based on when the inspector assigned the complaint receives the case assignment, not when the complaint was submitted by the complainant, and that these benchmarks are goals, not requirements, as staffing levels, workloads, and division operations can impact achievement of these timelines.

[06:19:22] Zoning enforcement staff strive to respond to all complaints as expeditiously as possible. verification of a violation, staff first attempt to obtain voluntary compliance through education and collaboration initiatives to property owners for remediating identified violations prior to issuing a notice of violation. Once an inspector determines that the property owner does not intend to remediate confirmed violations and return the property to a compliant state through approved corrective measures within determined timelines, notices of violation are issued within 60 days of confirming a violation. Generally, when a notice of violation is issued for a zoning ordinance

[06:19:58] violation, property owners are afforded a mandated 30-day appeal period. No action can be taken by staff during the appeal period. Prior to initiating civil penalties for the continuity of cited violations, all appellant rights must be exhausted and civil penalties are only then pursued if the cited violation has been confirmed to remain. Civil penalties can be issued no less than 10 days from the last issuance of a civil penalty for the previously cited violation. Civil penalties shall not exceed \$5,000 and should the previously cited violation remain following achievement of the maximum allotted fee assessment. Litigation proceedings will be initiated for collection

[06:20:35] and or abatement actions. Overall, the service delivery requirements, appeal period, appeal body, fee schedule, and maximum allotted fees of the enforcement process vary dependent upon the violation, code, and ordinance. Due to the diverse body of codes and ordinances enforced by the Zoning Enforcement Division, a time frame for case file resolution is not standardized.

[06:21:00] Every violation is unique and specific to the regulations applicable to the subject property and activities occurring. Although the Zoning Enforcement Division cannot provide a uniform standard for case file resolution, for illustrative purposes, the Enforcement Division has an 88% case file resolution

success rate for the time period of March 1st, 2023 through March 31st, 2026. The existing policy guidance has consistently proven effective in successful complaint resolution through staff's focus on violation mitigation and prevention measures driven by education and collaboration achieved through strong community relations.

[06:21:37] Comparatively, as indicated in Table 3, page 17 through 18 of the staff report, few other municipalities polled in Virginia perform proactive enforcement. The vast majority instead employ a reactionary operations model for complaint-based responses to zoning at other community-related code enforcement concerns. In the Board's consideration of whether to direct staff to maintain existing policy guidance or adopt revisions, it is critical to delineate between the county's various enforcement agencies and the distinctions in their roles as the designated AHJ in their respective fields. While there are various regulatory agencies within

[06:22:14] county, the AHJs most relevant to the subject matter of this item are briefly summarized in Table 2, located on pages 11 through 12 of the staff report, and followed by a more detailed explanation on pages 12 through 14. The table also indicates the AHJ's work hours, whether the AHJ has immediate cessation powers, and if the AHJ has endowed right of entry authority when specific designated circumstances are present. Staff is seeking additional board direction regarding the enhanced county-wide zoning compliance that will be performed by the three new zoning compliance

[06:22:48] positions granted in the fiscal year 27 budget. In consideration of the board's desire to focus on potential violations on nights and weekends, staff offer additional information regarding the Zoning Enforcement Division's authority and limitations.

[06:23:04] There are challenges that could limit the effectiveness of staff achieving the board's goals, including lack of endowed right of entry, lack of immediate cessation powers, multi-departmental response and resource needs for nights and weekends. Responding to properties for inspection and enforcement purposes during regular daylight hours already frequently results in confrontational encounters with varying degrees of escalation, especially concerning uses which frequently entail large crowds and the consumption of alcohol.

[06:23:30] And there is greater inherent risk to staff safety at night when less light limits visibility for staff. Accordingly, zoning enforcement division staff would require regular support from Loudoun County Sheriff's Office and or the Fire Marshal's Office staff. A potential delay for implementation is also identified as a potential challenge.

[06:23:51] Should the board direct enforcement policy changes such as expanded days and hours of operation as indicated in the board motion on March 12th, DPZ would require ample time to implement any revisions to current policies and or new initiatives. Minimally, staff would recommend a deferral and effectuating this action until April 2027. This would afford staff the ability to assess and modify current operations to accommodate for the evolving workloads and customer service delivery expectations resulting from the board's revised policy guidance. It would allow adequate time for staff to update standard operating procedures and acquire any additional materials equipment and resources needed with an april 2027 implementation date

[06:24:29] dpz could perform competitive recruitment and hiring measures between august and december of 2026 on board new staff in january 2027 and conduct targeted training of new and existing staff in february and march of 2027. staff is seeking direction regarding the board's interest in pursuing a

code compliance and educational campaign for non-residential uses within the RPA. The three zoning compliance positions added in DPZ to the fiscal year 27 budget would head up this effort as recommended by TLUC at a recent meeting as part of the Western Loudoun Rural Uses and Standards Zoning Ordinance Amendment. Staff is also seeking the board's direction regarding

[06:25:08] whether to prepare an analysis of non-residential uses conducted on properties in the RPA and whether such properties have received the necessary county approvals, permits, and inspections. This effort would require collaboration and staff resources from multiple departments, including the Department of Building and Development, the Fire Marshal's Office, and Health.

[06:25:26] Issues two and three go hand in hand. The analysis would be necessary in order for staff to carry out the compliance and educational campaign discussed in item two. Excuse me, issue two. Staff recommends that the board direct staff to, one, establish a pilot program lasting no less than six months for extended on-call operating hours for the Zoning Enforcement Division covering nights and weekends.

[06:25:48] The pilot program would include warmer months when outdoor activities are more likely to occur. The pilot program would allow the county to collect data and determine if there are a sufficient number of zoning complaints received during the extended hours of operation for complaints that are time sensitive within the extended coverage period.

[06:26:06] DPZ will work with the Office of Public Affairs and Communications to inform the community of the pilot program and the Enforcement Division's extended operating hours. At the end of the pilot program, DPZ would return to a future board meeting to assess activity over the duration of the pilot program, the efficacy of the effort, and the staff resources needed to continue the extended hours of operation permanently.

[06:26:27] Given the heavy workload carried by existing staff in the Enforcement Division, DPZ proposes the board allow the three new positions in the fiscal year 2027 budget to be hired as standard inspectors to reduce the heavy caseloads carried by existing staff. During the pilot program, a rotation of these three new positions would serve as on-call inspectors to cover extended hours across the division.

[06:26:49] Two, implement a telephone call center service dedicated to receiving new complaints, ensuring sufficient information is submitted with the initial complaint, and directing specified alleged violations such as noise and unpermitted special events to the scheduled on-call Zoning Enforcement Division staff members for responsive action.

[06:27:07] DPZ often hears from residents and constituents that are confused about the process of submitting a zoning complaint and or are uncomfortable about having their name attached to a complaint. Zoning enforcement staff also do not currently receive immediate notice of submitted complaints in the LECS system, so it would be necessary to develop a process that would provide timely delivery of complaints to make the best use of any extended operating hours.

[06:27:29] Three, conduct a multi-departmental compliance and educational campaign for non-residential uses within the RPA. The three zoning compliance positions added in DPZ to the fiscal year 27 budget would head up this effort and work interdepartmentally through the existing referral process to assist property owners in bringing their properties into compliance with zoning, building, fire, and health provisions to help ensure the health, safety, and welfare of visitors to rural businesses.

[06:27:57] Four, prepare a one-time analysis of non-residential uses conducted on properties in the RPA and whether such properties have received the necessary county approvals, permits, and inspections. The analysis would be necessary for staff to carry out the compliance and educational campaign. This concludes staff's presentation, and we are happy to answer any questions the board may have.

[06:28:16] Thank you. That was an amazing presentation. That was tons of work put into, I don't know, a 15-minute presentation.

[06:28:34] Mr. Kirsten's about to completely tear it completely apart, but that was still an amazing presentation. So thank you, thank you so much. There's so much going on in the days right now with this item. I would like to go straight to a motion, but I do think we probably need questions because there's a lot of, I guess it's fair to say, a little bit of confusion about this item right now.

[06:28:57] So we're going to go on and do questions first. Ms. Bricksman? Thank you, Madam Chair. Um, number one, does number one, does number one, would number one require zoning staff to go out alone on nights and weekends to a wedding venue or a brewery or something like that?

[06:29:35] It is possible. If we thought that it was something where we needed assistance, um, potentially if there two zoning inspectors covering at the time they could go together, or as Ms. Johnson noted, we could contact the sheriff's office or fire marshal's office, depending on the situation, to potentially have assistance that way. Okay. And staff is recommending that the three new positions be hired as zoning enforcement officers, but not necessarily only for proactive

[06:30:09] zoning. So not only for nights and weekends. Okay. Okay. All right. I think that's a good idea to provide flexibility in what those three positions would be doing. I'm really uncomfortable.

[06:30:25] I want safe buildings. I want everyone to come up to code. I'm okay with three and four. I think I'm okay with number two. I'm very, very uncomfortable with sending our zoning staff out to do something that I think LCSO should be doing.

[06:30:48] So, would there be any scenario, do you think, in which the process of the analysis would turn up housing violations that may result in the displacement of farm workers or other residents?

[06:31:07] Would you be looking for anything that's not business related? So, housing for seasonal working is a use. We would be assessing whether that is a permitted use within this specific zoning district. If it is, we would provide education and pass forward to remediate the violation through administrative approvals.

[06:31:29] If it is not, then we would also provide education on zoning districts which do permit the use so that they could potentially transfer that. Okay. And then what's the anticipated timeline for doing the one-time analysis?

[06:31:45] I don't think I could give you one at this time. Okay. It would come after, it would probably happen, though, after the walrus is passed. So we've had that discussion with some board offices the past couple of days.

[06:32:03] The way that we've laid out the item right now would be that the staff could be ready to operate prior to when we project the walrus project to be done. But it also could very easily make sense to delay that until the action to happen afterwards.

[06:32:23] because of the potential that we could start down a certain path towards education and or enforcing violations, and then the zoning ordinance changes in some way that negates the need to have done that for however many months ahead of time. Okay. All right. Thank you.

[06:32:39] Mr. Turner. Thanks, Madam Chair. Staff, I'm interested—I have asked my staff to make a—to draft up a policy change for the next General Assembly session to give the county immediate cessation authority and right-to-enter authority.

[06:33:09] And my focus is on that would give us some flexibility, not just in the issues we've been talking about in the walrus, but also with noise issues with data centers. Do you have any thoughts on that? Would that help you? is there a desire for you to have immediate cessation and right to enter authority?

[06:33:31] I kind of got the sense from the tone of the item that you did. But before I do that, I just want to check with you. Vice Chair Turner, as I noted earlier, every situation is unique, dependent upon the property as well as the activities occurring thereat.

[06:33:50] In some instances, that could be of value and beneficial, certainly. But there are also potential unintended consequences, such as increased escalation of confrontations, strain on additional multi-departmental resources to assist with effectuating immediate cessation powers and right of entry.

[06:34:09] Okay. I absolutely take that point. But that speaks to me to careful governance of the power if we can get it from Richmond rather than not trying to get it at all. But that's all right. I'll take that into consideration.

[06:34:25] Thank you very much. Thanks, Madam Chair. Thank you, sir. Mr. Crony? Thank you, Chair Randall. So, the positions were included in the FY 2027 budget, so are you going to hire them in July or—? So, unless we receive different guidance tonight, our intention would be to post them as soon as possible with the new fiscal year and try to basically get them on board as quickly as we can.

[06:34:49] Yeah. So it is on a different track than Walrus, because Walrus won't be approved until kind of the end of 27, correct? Correct. Yeah. So this is more about compliance with existing regulations that have been our regulations for decades, right, as far as change of use, building codes, fire protection codes, just zoning permits, correct?

[06:35:16] Yes, it would be trying to work towards compliance for whatever regulations are on the books. On the books, right. So that's what these are about. It's zoning, we're calling them zoning compliance officers. Is that what we're calling them? You can call them zoning inspectors. That language was used in an earlier motion, but all the same idea.

[06:35:34] It's similar stuff to what we're using now. Okay, but do they have to be trained a little differently? Is that the idea? Because right now we're not doing that. we're not doing that kind of, um, we're not doing that work as much, right? Like to put a focus on this, will they have to be trained differently, have different resources?

[06:35:52] If I could just clarify, as noted in the staff report and presentation, there are clear distinctions between the authorities having jurisdiction and you referenced several just in that sentence, ma'am. Right. Zoning inspectors routinely go out and if we observe another regulatory body violation, we send a referral, but we cannot enforce that.

[06:36:12] We can provide education, but there is nothing that we can do from an enforcement perspective to effectuate compliance with that regulatory body beyond a referral to the appropriate authority having jurisdiction. Special training is going to be dependent upon technical requirements.

[06:36:28] You know, we have light meters, we have noise meters. There's various needs, but on a regular basis, they would be performing as standard zoning inspectors at this point. It should also be noted that Virginia Property Maintenance Code requires an additional certification, so they would require the prerequisite trainings, as well as successful completion and passing of an examination through the ICC.

[06:36:51] Okay, but these, there might be a multidisciplinary team is what you're thinking about, because it might require kind of looking at it from interdepartmental because of the different jurisdictions, you know, like cessation and right to entry.

[06:37:08] So, I think a lot of this goes to the intention, whatever the board's intention is, from having conversations about, broadly about compliance, yes, because to Mr. Johnson's point, we cannot, we as zoning enforcement cannot pursue things under the fire code, under the building code.

[06:37:27] We would have to bring in the other departments that have those authorities in order to help us work on those kinds of issues. Okay. Thank you. Thank you. Mr. Letourneau. Thank you, Madam Chair. So getting to the questions that Supervisor Bressman was asking on the first part, which is the on-call operating hours covering nights and weekends.

[06:37:48] So are we currently on call during the day? No, we are not currently. Would we be? This is not the proposal. Would we be on call during the day? Right. So we have staff available during the day right now. Do they act like that? Like if somebody calls in, do they just go out?

[06:38:05] They do not, no. Okay, so they're not really on call then. Well, to clarify, yes, we do have immediate responses depending upon the priority or the severity of the alleged violation. Or if there's time intermittent dependent situations such as an unpermitted special event, if there's a noise violation that's actively occurring, we would immediately respond.

[06:38:28] So right now during business hours, that would happen. So this is a proposal essentially to have a call center that's operating nights and weekends, I assume 24-7, with staffing to be able to go out and respond should, should somebody call in with that type of violation? So my expectation would be that ideally that that would operate 24/7 and could be utilized by staff working days and nights. The, I think the, the issue that we discussed when we were trying to prepare the item is that if we are going to have staff that's devoted to coming in on weekends and nights, presumably that's to go take action in that moment on whatever's occurring. And so having a call center that can help ensure that they can process things quickly,

[06:39:07] that they can provide sufficient information that they can then contact the enforcement officers directly instead of waiting on things to come in through email or having someone have to check a system um be really curious is i mean it makes sense to do it as a pilot i'm a little skeptical that the volume is going to be there for these type of things but the other issue i wanted to touch on was the safety which is what supervisor brisbane said so it's hard for me to evaluate the level of risk and whether that's higher at night my assumption would be that it is because someone's approaching and you don't see them and you might not be expecting them.

[06:39:41] But has there been any conversation about that in terms of any concern from staff about sending zoning staff into those situations? And then, you know, I'm always confused on the line of where the sheriff's office steps in on noise complaints versus zoning staff, but are they available to assist with staff should staff feel unsafe in one of those situations? So there has been feedback from staff. As you may or may not be aware, even during business hours, we have had confrontations,

[06:40:14] some of which have escalated to physical altercations. Staff is wary of this. There are concerns for physical safety. It would be our intent to collaborate in partnership with the multi-departmental approach with the sheriff's office or the fire marshal who have criminal enforcement powers, arrest powers, immediate cessation, who could provide not only education from their authority-having-jurisdiction perspective, but also escort staff in high-risk situations as needed.

[06:40:53] I think, I know, I think it was Mr. Kirshner who was next, Mr. Kirshner. Thank you, Madam Chair. So, I'm a little bit confused by this whole motion. I'm going to be really frank with you. This is not at all my understanding of the instruction that we gave staff.

[06:41:11] We agreed during that, so much of this is already in the ZOAM, so I don't know why we're bringing it forward right now, because it still is going through the process of the Aurora. All right, I think staff is completely jumping the line on this, okay, especially number three and number four.

[06:41:28] Those were put forward in the Aurora, why we're doing that. We did have a discussion, and so I think staff has taken a lot of this on themselves and said, we're going to create this whole process, and you haven't been given guidance, in my opinion. And you can go back and read the motion if you want to do everything that's being done here.

[06:41:45] What we did, and we had the discussion, it was kind of an unofficial discussion during the budget process, is we're going to agree to three, and there was some discussion was going to be proactive or reactive, et cetera. And I appreciate the language that you are using, and this is just zoning compliance policy.

[06:42:03] And I agree with you that making them standard in-person or standard inspections is probably the right way. But how are we going to utilize them? the discussion that we were going to have here. And you touched on some of that in your presentation. And I have always said, and I'm going to tell you, my office gets 99% of the complaints or at least 90% of the complaints. And it's mostly noise, sometimes traffic and sometimes lighting. Okay.

[06:42:26] That's why in large part, these individuals were, were, um, were, we approved them because we don't have anyone to go out. And the answer is Supervisor Letourneau's, um, question is that the distinction is very clear. Sheriff's department can only bring penal codes, or they can only bring a criminal charge, and they have to be in the house. And zoning sits there with a meter for noise purposes, for example. I'm just using the noise as an example. And they have to listen to it. But no one's available to do that on weekends, at least in the RPA, which is partly why we're discussing this, okay? So we want to kind of get ahead of that a little bit, and that was the reason for

[06:43:05] these three. The other thing is this talks about the RPA a lot. We were very clear in the motion that we made in approving this, this is going to be, these individuals will be countywide. And I understand, well, they're just standard inspectors, but there's a lot about the RPA here. And this is what we did. We wanted to avoid to just kind of single that out. I will tell you number four in your motion. I'm just going to

oppose it unless we put in there the language that I suggested, and that is until the standards and ordinance, and that is to conduct a one-time inventory, because we don't know ultimately what's going to happen there. I'm going to suggest we oppose number three, unless, of course, it's done after the Western allowing uses, and that is

[06:43:44] have a multi-department compliance educational campaign. I mean, you guys don't even have the time to do what you have now, let alone add these three and do the compliance on you. Now, one and two, I can live with as long as I understand exactly what we're going to be enforcing when we get this call center in. And I'm out of time, but I do have one question. What do you mean by unpermitted specific events? Is that going to be ABC uses? Or what is it?

[06:44:09] Okay, so any unpermitted specific events, special events, would be anything that we are receiving calls about, essentially large parties, weddings, things of that nature if there's a complaint about it. But I think the language you're referring to is when we're talking about the call center, was just saying that any complaint will get forwarded from the call center to the enforcement staff.

[06:44:32] If something comes in at 10 o'clock at night and someone's complaining about what's happening in their neighbor's backyard, that's not a timely issue, we wouldn't send somebody out at that time of night to go look at that. That'll get saved until Monday, Tuesday. But if there's something happening in that moment that we could only confirm is occurring by going out in that moment at night, is what that is seeking. To your earlier points, one and two are responding to the motion that came out of budget, and that is the three positions focusing countywide. But items three and four came from the May 4th meeting on walrus that forwarded those first two recommendations to this meeting to be in

[06:45:10] conjunction with this that's why they're they're packaged together here we potentially could have handled them as separate items should have to better separate them but this was how we packaged it mr saynes well i'll start with how you ended i 100 would agree with you on separating these things because that was not that we did not give you direction to bring these back together from the discussions that we had.

[06:45:36] We had the walrus, then we presented the item in the budget. We had that discussion, tabled that to have further discussion because we didn't like what we're hearing because we were saying what we're not done with the walrus and reviewing all that stuff, so then we brought it back in another budget conversation once we all got together and said, okay, let's move forward with the rapid response team and gave you guys a direction to do your homework, come back with a job description and how this could possibly work.

[06:46:06] That was how I remember the conversations. So how you ended with your comments to Supervisor Kushner, that's what could have happened was these things should have been separated and not brought together, unfortunately, with what you did. So I think we need to table or continue to have the conversation with the walrus and a separate thing and continue to have a conversation with the budget discussion in those three positions as it was presented.

[06:46:34] Because I would have loved to hear more about how you would like to respond in the evening hours as we directed with working with the sheriff's department with working with the fire marshals to make sure you guys are safe and feeling comfortable to go out and do the response that's good and getting to the heart of those issues that are happening in the evening hours in the eastern part of the county in the western part of the county because the direction was to do county-wide enforcement and activities so i'm

fine with if we want to do a pilot program but i still feel we need to move forward and get these three positions as you said that we're going to move forward with so we can get this ball rolling. I have a question regarding the call

[06:47:11] center. So does that mean are we going to need to hire folks to do the call center or are we going to go and find a third-party vendor to do the call center? So can you answer about the call center please? So our intention right now would be to find a third-party vendor. Other county departments do use third-party vendors for similar purposes. Obviously this will be unique. I truly right now cannot tell you how common this would be for something specific to zoning enforcement but I think the idea holds that having somebody that we could contract with that would help us input things into the system to make it easier for staff to then take it and utilize it would be the ultimate goal all right well with respect and i do mean with respect when i say this because i

[06:47:48] value you guys work and you guys do a great job it's a lot of work too and there's a lot of work that goes into this i know this but i we need some more information especially regarding the call center working with the sheriff's department and the fire marshals to continue this and i think that should have been more of the conversation than what was presented tonight.

[06:48:14] Okay, I'm trying to figure out how to do this now, because that was all just the questions, and we haven't even made a motion yet, and we haven't even got to the motion yet, and I know if I make all these motions at one time, the motion is going to be divided, so why even bother doing that?

[06:48:32] So what I'm going to do is I'm going to make the second part of the motion first, and then I'm going to do the other three parts and see where we go in this discussion. I think the second part, I further move to implement the call center part may be the easiest part, maybe, and then we'll see how the rest goes right now, okay?

[06:48:56] So I'll do it like that in pieces, and hopefully we'll get through it. So I'm with the Board of State Advisors of Rec staff to implement a telephone call center service dedicated to receiving new complaints, ensuring sufficient information is submitted with the initial complaint and the rectings specified alleged violations such as noise and unpermitted special events to the on-call Joint Enforcement Division staff for responsive action.

[06:49:25] Second. Okay. So that's the first part. I do think that we did talk about this. Obviously, this is supposed to be countywide. And what I'm hearing for this is the goal of this is to have faster action.

[06:49:47] That's the goal, which was what we've all said that in the past. So I think this is the one that seems to be the most kind of common sense and easiest part. But just in case it's not the common sense and easiest part, I will go to comments on this motion.

[06:50:04] Mr. Crony? Yeah, thank you. Yeah, I think this is probably the easiest of the four. And this also resolves the confusion with Lex that residents have. Sometimes it's a challenge to put in a complaint through Lex.

[06:50:20] And also people want to remain anonymous, and sometimes they can't. And so, you know, it puts the burden on the neighbor to make the complaint. And a lot of people don't want to go to court against their neighbor.

[06:50:36] So I think having this call center is an easier way to get it done where you know you have immediate acknowledgement of your submission. And it's a quick response, correct? So I think it provides that quick response that residents, I think, will appreciate.

[06:50:55] So I support this. Okay, you guys, just to be clear, I'm trying to do the motions from my think, but it's the easiest and the more difficult. So that's why I made this one first. So Mr. Sainz just said, we haven't done that motion yet. I did, and I did a whole preamble before I did it, which shows how important my words are to you, Mr. Sainz, which is clearly not at all.

[06:51:16] Ms. Brooksman? Madam Chair, so this is just number two, correct, on the call center? Thank you. What happens now if somebody calls the county with a complaint? Are they just directed to file something in Lex?

[06:51:35] Are you speaking during normal business hours? Sure. So we do have a hotline because, as you are aware, we are field staff. So there are times when there may not be someone immediately available to take that call. We check that hotline at least twice a day. We respond back.

[06:51:51] We document that. We log it. We provide them education and guidance, depending on what the nature of the complaint is. So the hotline is they leave a message? Yes. Or we also have a repository email. We also have the letter submission. Okay, and then if this were to pass and we set up the call center, would it be a new number?

[06:52:16] I don't think we can answer that tonight. We'd have to look into it. Okay, because I guess, I think I'm going to vote yes on this, but I just wonder if people are used to calling the hotline or emailing, it's going to be a whole education process to teach them a brand new number to call.

[06:52:37] Right. I agree completely. It'd be ideal if it could be a number that transfers over. I just would have to work that out. You need to work that out, hopefully, with whoever.

[06:52:54] I guess what I'm worried about is the extra work it's going to take to then teach people about a new number when they're used to calling the hotline. How many complaints would you say you get a month? That varies, especially seasonally.

[06:53:10] Okay, say in June. I would say easily probably 100 because of tall grass. You have a lot of seasonal, like, weddings, events. This is just in the RPA or countywide?

[06:53:27] Countywide. Countywide. Okay, that makes more sense. Again, that is not, you know, that's an approximate. That is not a definitive number. Okay. And then this call center would be set up just to take complaints about the RPA or to take complaints countywide?

[06:53:43] So, just, I would have to go back and double check this. I mean, we could have and perhaps should have separated this into two items. The vast majority of this is focused on one and two and being countywide. There's only two to three pages of this report that are really focused on those recommendations for three and four.

[06:54:02] So that the phone line would be countywide. The pilot program would be countywide. Okay. Okay, thank you. Okay. Mr. Sainz.

[06:54:18] Thank you. I haven't talked on this motion. Okay, because I am actually getting confused as to who's talking. We all talked about it. And we don't actually have to actually all talk, so we don't. That's true.

We don't. We don't. That is very, very true. So in regards to the call center, so you said that we do already have some vendors or we have to go out and do a process and find folks?

[06:54:42] There are other county departments that use vendors for call centers of various purposes. I'm not sure. We haven't looked into the contracts to see if that's one of those is something that we could ride or if we would have to go out and do a new procurement. That I can't tell you right now. But we do know that there's three or four other departments that use a third-party vendor in various fashions for something roughly like this.

[06:55:02] So if we had to go out for a bid and all that stuff with that, I'm assuming that will add to the timeline that you gave earlier. It may, it may not. I mean, if our hope is to have staff in place by next spring, we could potentially have the line in place around the same time, if not a little sooner, depending on if there's a contract we could take advantage of.

[06:55:24] that's already in place or if we would need to do the procurement. The procurement process is obviously longer. If there's something we can take advantage of, that's a much quicker process. Well, I'm hoping we can take advantage of a contract that's already in place or with vendors that we use already. Is there any hope that we might be able to put this out to hire and get these folks in by fall or sort of winter possibly? Or is that just being a little too optimistic? We could potentially have them hired at that point. It would still, But they would still need significant training, especially with having the three rotating through nighttime periods, having them be comfortable to do those things alone without

[06:56:03] having the full team there to be able to ask questions. We would need to make sure that they are very comfortable and knowledgeable about our processes and what they should and shouldn't do in certain situations before, to the safety point, feeling comfortable having people go out and do those things at night. Ms. Johnson, do you feel that any of your current staff might be interested in rotating to these new roles or helping?

[06:56:30] I think that would vary, depending on the individual. Do you feel you have anybody who might? There may be one. May. One's better than none, but you never know. I don't know if you've had conversations about this with your team or not.

[06:56:48] Yeah. What's the general census? Are they in favor? No, sir. Respectfully. know. Why is that? Due to current workloads, challenges we have with staffing, although we have a staffing capacity of 13, we struggle currently with staffing and fulfilling our current capacity on normal business hours. There is burnout, quite frankly, that staff are fatigued from the work in and of itself is inherently adversarial at times just on the nature

[06:57:27] of compliance before my time runs has there been any thought about doing a pay differential for those who are going to be working the evening hours there has been raised that based on the hours whatever those are determined to be there could be on-call pay and night differential and hazard pay that may need to be taken into account as well as overtime okay thank you mr.

[06:57:49] Letourneau? So right now we're only on the call center motion. So if only this motion passes and no other motion, does that mean we have a call center, but it's just operating during normal business hours? Yes. Although I think if that's the only motion that passes, once we look into it, we could definitely bring that back to the board to discuss. I feel like we're kind of going a little far afield here in our comments. So, I mean, right now we're just discussing whether to have a call center or not, which is sort of

what we already, I mean, we already have people taking calls it sounds like during business hours and so right now that's all we are. I think the discussion about nights and weekends is the next thing probably that will come up in our sequence here but this is just call

[06:58:29] center. So 1-800-CALL-ZONE is my right, I'm just kidding, just kidding, it's late, just kidding. Yeah I have some concerns on the timing and stuff based on what you're telling us but I think whether to have a call center yeah sounds like it's you know whether or not it operates at night or weekends is the different discussion, or maybe we have a call center. It doesn't mean somebody's dispatched right away. That's going to be to be worked out, but this is fine.

[06:58:57] We don't have to have everyone to talk on every issue. I'm just saying. Well, no, not you. You said all the stuff. Thank you for saying all the stuff. Mr. Turner, have you spoke yet on this? No, I have not. Yes, Mr. Turner. Staff, I want to try and level set because this is not how I, the discussion to me is completely not what I remember, and maybe I'm misremembering badly. Didn't we give you direction to implement proactive compliance outside of the Walrus process as a separate vote, a motion? Yes.

[06:59:33] Go forward with proactive compliance. Only—the most recent one was in Surprise-Latarno's district a couple of years ago. There was not a motion to pursue proactive compliance broadly uh county-wide to this point no was there one in the context of the walrus discussion was that one of the yes series yes there were motions from tluck to make the recommendation to bring to the board they were included in the may 4th special meeting but those two motions were forwarded to the meeting where we were talking about this zoning enforcement

[07:00:06] issue more broadly okay so it is that so the the proactive compliance is now part of the walrus process or not? No. So there's actually two different motions. The motion was made in conjunction with the budget in March, which occurred later than T-Lex motion, was for three positions countywide, including nights and weekends, not specific to the RPA or to the process. Okay. That's what I remember. So can I infer from that direction by the board to you to

[07:00:40] hire three more zoning enforcement division personnel specifically for compliance issues, that this is your best shot at what a compliance regimen would look like, all four of these points? So I would say one and two are. Three and four were specific to the two motions from TLUC and the guidance to bring them in conjunction with this. One and two are focused on the discussion that was had with the budget and what to do more specifically with those three positions.

[07:01:11] OK, so we gave you three positions for proactive compliance. Number one and number two, reflect your best guess as to how you would implement that. And then number three and number four were separate directions from TLUC that we directed you on and are now part of Walrus.

[07:01:31] So three and four are still related to Walrus. The guidance was to defer them to this meeting. The board took action on 58 or whatever other number of motions. Those two were deferred to this meeting. Okay. So you did have direct board direction on these four items. And to me, this is your best shot at complying with board guidance that wraps these four items together under a county-wide compliance regimen. That's sort of how I interpret it.

[07:02:05] And I agree with Supervisor Kirshner suggesting that we should hold off until we get the walrus process finished before we implement these. I can understand that, and I appreciate that. But this is

exactly what I expected to come back, and this is exactly what I believe we told staff to do, figure out how you're going to do proactive compliance and what is that regime going to look like.

[07:02:30] And I think that's what this is. So the notion that we've never seen this before, and this is way beyond your charter. I'm sorry, Mr. Turner, you probably can't see the clock. Yes, that's fine. I'm done. I'm done. Okay, thank you. Mr. Kirshner? Okay, so let's just focus on this portion real quick.

[07:02:49] I basically, we don't really know what the costs are on this, but given that you said there's only about 100 complaints a month, I can't imagine the cost being outrageous for a call center. We might expect a few more, given there will be later. But we don't know the cost on this, correct? Correct. Okay, fair enough.

[07:03:06] Secondly, when these are taken, are you going to follow the current guidance, which is you can't just be calling in anonymous tips? Yes. Okay, good. That makes me feel much better about that process. Because I foresee if you just call anonymous tips, tips coming in all over the place because people are taking advantage of, what do you want to call it, NIMBYism or whatever.

[07:03:29] I think that you have to give your name, you have to be specific, whatever other guidance I think that you're currently following, and you feel the call center concept or the call concept, I would assume, is obviously more effective because it's after hours than the online complaint process.

[07:03:45] It's a little quicker. Is that why we're suggesting? Is that fair? Yes, that, and in addition to many of the things that come in, if it's not a direct conversation with the individual, there's often missing information or some sort of additional context needed before the staff can know what they're fully looking for if they're going out in the field to try to do a site visit. So we're hoping, we would be hoping that the call center would help close that gap. So if we get a call, we can act on it immediately. Okay.

[07:04:09] Final question. And this is my biggest concern about this item. You use the language unpermitted special events. I know I just, staff and I have had fights about this. I fought with the county attorney as to, and I, and I, and I think it was mentioned in one of our last meetings that, well, ABC uses are outside of compliance right now.

[07:04:32] I know that's staff's position. But Supervisor Brisbane made a motion to go forward to the Wallace process to discuss what events would be the right number, et cetera. I take the position, the state code, and it says, listen, if you're serving alcohol at these events, that's off limits for much of the zoning stuff that's required.

[07:04:51] So there's a conflict here, and it's going through the Wallace process. What I don't want to happen in this motion, if it's going to happen, then I oppose it. If it's not, then I would support it. When you say unpermitted special events, you get a call about an ABC use, they're having an event. Are we going to send somebody out there because they may not have a special event because staff takes the position that they have to have special event permission?

[07:05:19] Because if that's the case, this is a big problem. Supervisor Kirshner, just like a police officer, when a dispatcher sends them out for a report for a call for service, what we are— Okay, but you haven't done this up to this point.

[07:05:35] So are you going to start doing it because of this? If I may, if we receive a complaint, we have to assess it. That what is reported is not necessarily always what is... No, but if it's an ABC use, you have not

gone out and enforced those to this point. Are you going to do it under this?

[07:05:51] So what our process is, regardless of the use... You're avoiding the question. Mr. Kirshner, your time is up, and now they're going to answer the question, but your time is up. I'll listen, I'll listen.

Regardless of the use, yes, we would respond. Whether or not we take enforcement action is dependent upon the use, dependent upon the use-specific regulations, dependent upon policy, interpretation by the zoning administrator, and guidance from the county attorney's office.

[07:06:19] There would not be an immediate action as far as enforcement is concerned. The most immediate action would be that there would be a white SUV of some sort and a more than likely inspector with a polo that has a Loudon logo on it asking questions.

[07:06:36] It would be as simple as that. Everything else would have to go back to the office, additional follow-through on the same way that we normally would handle interactions. She didn't answer my question. Mr. Kirshner. My question wasn't answered, Madam Chair, with all due respect. Mr. Kirshner, with all due respect, your time is still up, and now you get to vote how you vote based on the answer that she did give you.

[07:06:53] That's how it goes, but if you have nothing else to add, your time is still up. All right. I made the motion. I have no idea who seconded this motion, to be quite honest. I think it was Coran. Was it Ms. Stames or did you? Laura.

[07:07:08] Okay. You all don't look nothing alike either. So Mr. Coran, he seconded the motion. All right. All in favor, please say aye. Aye. Opposed? Nay.

[07:07:24] All right. That motion will pass 8 to 1. Mr. Kirshner voting against this motion. I'm going to go to motion number 1 because I think motion number 3 and 4, depending on what motion happens in motion number 1, might fall off right now or may need to be talked about in another time or something.

[07:07:43] So I'm going to go to motion 1 and we'll see how this one goes. I'm with the Board of Supervisors' direct staff to initiate a pilot program of extended operating hours for the Zoning Enforcement Division covering nights and weekends, utilizing an on-call rotation of the three new positions the Board approved in the FY2027 budget.

[07:08:10] The duration of the pilot program would be a minimum of six months, and at the end of the pilot period, staff should return to the future board meeting to assess activity over the duration of the pilot program. The efficiency of the effort and staff resources needed to continue the extended hours of operation permanently.

[07:08:30] Second. Motion was made. Second, Mr. Sainz. All right. I have some questions on this motion. All right. So the discussion is not whether the three positions are going to be in your offices anymore. Those are done. That's finished, right? The discussion, the pilot program is simply to say, will they work in the evenings? Is that what I'm reading here?

[07:08:57] Yes. We were concerned about just immediately hiring three people that would be solely devoted to nights and weekends until we could determine what the workload was truly going to be. So we were trying to offer this up as a way to allow us to collect that data, see what the actual feedback from the community was going to be to determine if it was sufficient to actually need to have people devoted to

nights and weekends solely, or if having someone on call was sufficient to handle that and absorbing the three into normal daytime operations otherwise.

[07:09:25] If you find that it doesn't solely need to be nights and weekends, they're still available for nights and weekends when and if needed. Is that correct? Yes. Okay. If I could just make a clarifying point, Madam Chair, zoning enforcement staff presently already modify their schedule as needed. Although we're not on call for the initial complaint, we are regularly, even when unprompted for various uses, modify our schedule on weekends, evenings, early mornings, holidays, things of that nature to ensure that we are appropriately

[07:10:00] assessing site conditions and attempting to perform due diligence as best as possible. And I hear you, I understand that, and I respect that, but the rapidness of how it can happen on nights and weekends is very different, and this would actually impact how rapidly you can respond.

[07:10:22] That's the intent, yes, ma'am. So then back to the same question, even if this is found that these positions were not solely needed for nights and weekend, it would give you more capacity during nights and weekend when needed. Is that correct? Would that be a correct statement? Potentially, yes, ma'am.

[07:10:40] Okay. And this is a county-wide position. These are county-wide positions. And so it's not just about West Orlando County. It's about everyone and having more capacity nights and weekends maybe completely or as is needed with these positions. Yes. And one of these positions is The supervisor's position, the other two are the enforcement officers that would go out because one should not go out alone.

[07:11:04] Is that correct? Yes to the three positions as you described them, and yes to it being countywide. Okay, wonderful, wonderful. Thank you very much. I guess everyone does have to talk on every item. Ms. Bricksman? Thank you, Madam Chair. I just, I have a question. When do you think the six-month pilot would begin?

[07:11:26] So, essentially, once we have the three positions filled and trained up, then we would propose doing it at that point. Okay, so— So, I think what we put in the item was April, so the spring would be the goal. Okay, so we're not waiting for the new ZOAM to be passed.

[07:11:44] We're going to start it— So, not as it's framed now, but we've talked about this with one board office, and I think giving y'all's conversation tonight. It could make sense to delay action until then, because as I said earlier, we do not want to go pursue some sort of potential enforcement action in any way for three months that the board then changes by amendment.

[07:12:04] I fully agree with that. Thank you. Thank you. Mr. Crony. So are these the type of enforcement is is for compliance, right?

[07:12:20] It's not just complaint that you're doing with this, with these with this effort. So for the pilot program alone, it would be current standard operating procedures, so only reactive enforcement, unless we receive separate direction from the board.

[07:12:36] Okay, because that's not addressing what we talked about regarding unpermitted uses, change of use, building codes, fire safety codes. Well, but that could be countywide issue. That could be a countywide issue.

[07:12:51] If we observe, if someone goes and observes something in going out into the field in a night and weekend, then by the referral process we discussed, that would get passed around to the other AHJs to be pursued. But the goal would not be to go out and proactively in any way go to compliance with these three.

[07:13:09] We're still going to be receiving the calls to respond to in order to look into it. Okay, because I think what we talked about during the FY27 budget was that these would be rapid response, whatever, compliance-based, different from the current enforcement we do now.

[07:13:29] So they're different in the fact that it's extended coverage, extended hours in which someone could go, an inspector could go out and actually observe, could take a noise meter reading, could see if there are events happening that shouldn't be happening, or if there's some other potentially full-time use that's happening that shouldn't be happening.

[07:13:48] Right now, we do schedule and adjust schedules if we are aware of the potential of something happening. But right now, there is no one sitting around anywhere in the county right now at this time of night that if someone calls in, that anyone's going to go and check anything directly.

[07:14:04] If someone calls in right now, it won't be until tomorrow morning that that call, that message, that Lex complaint is received. We can look at it and try to pursue it after we have received it. But if the event is over, if the noise has ceased, there's nothing to check. There's nothing to potentially address.

[07:14:19] Right, and noise was not really my—you know, noise is—regarding the compliance officers, noise was not it. It was more, is it a permitted use? Is there a change of use? Are you—you know, is the use ensuring the health, safety, and welfare of the public?

[07:14:38] That's more my concern, less the noise. So this won't do that then. Supervisor Chikroni, we currently do that, ma'am. It may not be during the extended hours, but that's no different than what we already do, what's in place.

[07:14:54] Yeah, but you rely on a complaint from a citizen, correct? We have referrals from multi-departments. But they're not really trained to find all of those issues. Not all of them, but just as I'm not trained to know that a structure over 256 needs a building permit.

[07:15:14] We learned over the process of Walrus that this is a huge issue. Wrap your question up. This is an issue. I think as Director Galindo stated, items three and four is going to address more the multi-departmental facets of the health, safety, and welfare countywide across all the AHJs, ma'am.

[07:15:31] Oh, so three and four would be countywide. Okay. Sorry, same thing. That's okay. Mr. Letourneau? Man, there's a lot of heat on this one. So let me get back to the safety issue. So I'm currently not feeling good about doing a pilot program in which we're sending people out and we have concerns about their safety.

[07:15:57] I think you're going to have issues with the existing workforce, you're going to potentially have trouble hiring people into a job. So tell me more about what we could potentially do with the fire marshal and the sheriff's office and whether there's a way potentially to formalize that or have a little bit more advanced understanding of that before we just go into this? Well, as you know, the sheriff's office is a constitutional officer. There may be challenges in terms of partnerships and limitations

[07:16:33] of what is agreed to and what isn't. Generally, we have a very good relationship with the sheriff's office. We currently utilize them as a resource during confrontation, during suspected need on any level, whether there be criminal activity that may be occurring at a location that we're investigating. So we have never found that there is a problem with that. Our concern is we do not want to speak on behalf of those departments without first consulting with them. And they may reasonably have concerns about resources themselves. Yes. Especially, you know, the first half I've been out on doing, you know, ride-alongs and stuff. The first half of the night's busy. The

[07:17:11] second half isn't. So if this is at 2 a.m., I think you're going to have deputies available to help. But at 10 or 11 p.m. on a Friday or Saturday night, that may not be the case. They've got a lot of calls. So I'm struggling a little with how this works. Maybe I need to do a ride along with you guys to understand what the job is a little better. I would welcome that to all of you. I would invite all of you to come out at various hours. What the level of risk is to send unarmed employees approaching somebody in a potential hostile confrontation, to me at midnight that just feels a lot different than noon. And I want to do this. Don't get me wrong. I actually think

[07:17:50] this is where we need to move to. I just don't know that we have the structure in place yet to be able to get there. And I think we need to have a little more conversation with the fire marshal's office and with the sheriff's office about what level of support is actually available. I know there was some research on how other jurisdictions do this. I am kind of curious a little bit more on how some of them handle this with overnights. Those that do do it, no. We can look into that further and return with that additional information if that is what you'd like. So I just feel like I'm not quite ready on this tonight.

[07:18:23] As much as I want to do it, and I think we have the budget for it, my concern is just I never want to be in a position where I think we're putting somebody into an unsafe situation and we haven't properly vetted that. And I think what we're hearing, staff has done this because we've asked them to, but I don't know that this is what staff is actually thinks that they should do at this juncture so i don't want to put words in anybody's mouth but mr turner mr turner you're there you're on mute i'm yeah

[07:18:54] i'm sorry madam chair um uh no i have nothing thank you okay mr saints thank you madam chair okay please make sure clarify for me to make sure i'm hearing you right so because again the intent was for these three positions to be assigned to work in the evening hours when it's peak activities at locations. Yes, they can do their regular routines, whatever, but if a call came in and said, hey, I'm over here at this location, I'm living next door to this venue, and it's

[07:19:32] now 12, 31 o'clock, and they're still doing their activities, the intent was for somebody to be be working those hours and then be able to go out wherever it was in the eastern or western part of the county go out observe and then do what they need to do so are you saying now that these positions would not be scheduled at those hours and be more of a rotational basis and set up okay well this week you're working during the you know the regular hours and then next week you're going to do evening hours is that what you're now saying or so the goal would be to have at least one and

[07:20:10] Obviously, this little pen as we work through it to see if there's a need for additional people. But yes, to have some coverage so that if that situation arises, we could send someone out in that moment to do it. That is the baseline goal of trying to play this out this way.

[07:20:26] Yes. It just will not be proactive in where one of those employees is just driving around the county looking for problems. It will be responding to your complaints. Right, exactly. But at the same time,

but they will be scheduled during those hours and doing whatever else their normal would be doing until a call came in.

[07:20:45] Yes. Okay. And do you feel we need to, and I understand the concern from Mr. Letourneau and what you've shared earlier, do you feel we need to give direction or have you guys already started to initiate the process to go and talk to the fire marshals and the sheriff's department to say, hey, we will now be having folks working these hours.

[07:21:06] Can we coordinate efforts to make sure somebody is available to respond to these calls with us? So do we need to give them more direction or do we need to have, do you feel you need more time to have those conversations with those departments and come back? So we need more time.

[07:21:22] We've had very preliminary conversations with them about that and explained the board motions and kind of where, what item was coming back and where we were at with it. Part of the reason that the item touches on all of these different issues, including addressing that coordination, including the potential for any safety issues, is because the last thing I would want is for the board to give us direction, focus on these three positions, and think that we can tackle everything across the board.

[07:21:47] Because as a zoning enforcement division, the staff that I'm in charge of cannot do that. That's why we need that coordination with the others. So would you be supportive if we were to say this motion now, number one, pull it and say come back in July perhaps after you have some more conversation with the fire marshals and sheriff's department?

[07:22:13] We probably couldn't come back in July at this point since we're a month out from the second business meeting. I mean our intention was that if we received this direction tonight to have those conversations because we would need to have the staff in place and we're looking at a six to nine month window.

[07:22:29] to have those different conversations and work on that coordination during that time. We could have some of those conversations if we bring something back to you that's a little bit more fleshed out than where we're at now, if that's the board's preference. Thank you, Mr. Sains. Mr. Kirshner.

[07:22:44] Thank you. So I'm much more in favor of this than I was how we ended the last one. I thought I was going to be in favor of the last one, but when I got a non-commitment from staff that we were not going to mess around with our ABC uses until we got through the process, I had to oppose the last one, quite frankly, because I think a call center is a really good idea, honestly.

[07:23:05] But when we throw in words like unpermitted special events and we've had the discussions that we've had through the ZOAM process, that concerns me greatly. On this one, basically, I get your concept of the pilot program, why it's pilot, because we've got to know if it works, if there's going to be sufficient work for it or not.

[07:23:23] But we have to put these three new, I mean, I guess if we did pass this, these three new positions come in, we've funded them, and they're just going to be regular standard enforcement or inspectors, correct? Yes. All right. So I'm not as concerned as Supervisor Letourneau about the safety, and I want to ask staff about this.

[07:23:47] I'm always concerned about the safety of anybody going out and doing this. What I'm assuming is you guys can figure out that process, how to make it more safe. Do you guys feel like that is true and that

would be part of this process before you're just sending people out willy-nilly? That would be dependent upon collaboration and partnership with the sheriff's office, potentially the fire marshal's office.

[07:24:08] But you feel like you could work through that before and not put people in danger, right, if we approve this? For the most part. Again, it's an uncontrolled environment. I understand you can't be 100% true, and I understand that. You can't be 100% true, oh, everyone's safe.

[07:24:23] I mean, when I get in my car, I never know if I'm going to be safe. But you can't cover all bases. But I would assume that if you felt like there were situations that were unsafe, you're not going to send a zoning enforcement officer out there, right? That's correct. And Ms. Johnson and I talked about this a little bit earlier today, actually, is that if for some reason in working through this, we run into roadblocks that aren't anticipated, if we do have a greater concern about safety that we cannot work out, we would come back to you and work through that, too, to explain what we're finding.

[07:24:52] And just so for my fellow supervisors, I've been advocating for this for the last five or six years. These three, these positions get folks available, at least in my, in my district. I can't speak for anybody else's district, but oftentimes the complaint again, um, is 99, 90% of the 99% of the time is, it's noise.

[07:25:14] And, and the sheriff's department can go out and listen, I've represented people on these. I've seen them prosecuted. It's very difficult under the criminal code. So what we need is to bring someone with some training in a meter at the edge of the property to measure the noise.

[07:25:30] And sometimes that leads to other things that are going on as well or other complaints. But I'm just telling you, that's why these positions were recommended in a large point. And then obviously to help pick up the slack that's in the department as well, because I understand you're really overloaded. So if that's the case, I'm going to support this.

[07:25:46] I'm a little concerned that they're going to be going out on unpermitted special events in our ABC uses. I'll support it otherwise. Thank you. So for years and years I was a community therapist and some of the most. Oh, I thought I called in you. Okay, Ms. Glass. I'm sorry, Ms. Glass. Thank you, Madam Chair. I just have a quick question. I think it was someone that gave an example of when someone calls in because there's a venue that's nearby that is, you know,

[07:26:19] loud noise or whatever is going on. Would the inspector go to the person that made the phone call first, or would they go directly to the venue that's where the issue is happening?

[07:26:35] So presently, the prescriptive language of the methods of measurement under the zoning ordinance stipulate that the measurements need to be taken from the receiving lot. So yes, we would always contact the complaining party. We generally coordinate a time, at least let them know that it is our intention because we also need consent from that party to enter onto their property to take that measurement. So yes, they are always contacted ahead of time.

[07:26:59] Okay. Thank you. I was saying for years and years I was a community therapist in one of the most dangerous communities in the Washington metro area and would go out at night and do all type of things. I didn't even thinking about how much danger I was in, what was I thinking. There has to be, I mean, first of all, I understand these questions right now, Mr. Letourne's questions right now, but I'm not sure what you all thought when we said yes to these positions. I mean, we had the discussion of when they would go out and what would they do and all that kind of stuff

[07:27:34] when we voted for the positions. Nothing's changed. Those, what we said they were going to do. They're still going to do. Having said that and understanding some of the concerns of my colleagues and my concerns as well, there are trainings people can go to if they're going to be out in communities late. There are gear you can wear. There are things you can do. There is tracking devices people can have. There's information to be shared with, yes, the sheriff's department and others. It's not as if there are not thousands of employees who go out who are not

[07:28:13] law enforcement every night in all kinds of ways in these positions. I mean, therapists do it all the time. I mean, we have, when you have a therapy team that goes out for an issue, they may or may not go out for police officers all the time. So these things can be, can, and I actually assumed, just assumed would be mitigated.

[07:28:37] I mean, obviously, it didn't even cross my mind that those things wouldn't happen if you're sending people out at night. And so I guess what I should do is not make the assumption and ask the question, would somebody be sent through all those trainings with all that mitigation things be put in place before they go out at night?

[07:28:59] Because it's certainly all available. I've initiated modifications to prior operations in terms of staff training, their onboarding. That includes a safety course. We are also collaborating with OEM in relation to an emergency response notification.

[07:29:18] So we have pursued and are currently exploring mitigating measures at present. I will say if you want to have a deeper discussion about how to keep people safe, perhaps contact somebody in HIDA, the high-intensity drug trafficking area, because they actually do some training of civilian populations in dangerous situations, and I can get you all that information.

[07:29:43] So, yeah, I hear Mr. Letourneau and everybody, but I think we can train for that. So, okay. I made the motion, and Mr. Sainz very enthusiastically seconded the motion.

[07:30:01] All in favor, please say aye. Aye. Opposed? That motion will pass 9-0. All right. There are two other motions, and these might be ones that we'll see what happens here. I move the Board of Supervisors direct staff to conduct a multi-departmental compliance and educational campaign for non-residential uses in the rural policy areas to assist property owners in bringing their properties into compliance with zoning, building, fire, and health provisions.

[07:30:30] Second. All right. I'm going to assume that this is what Mr. Crony is talking about when she talks about being concerned about more things than just noise and lighting and standards and things like that. I do think it's a good idea to help people bring their property or their business into compliance.

[07:30:52] I would worry about how much that would cost because if somebody actually is willing to bring their property into compliance, We want to let them to the best of their ability. We want to let them. We want to, and I think this may be staffing issues, we want to fast track them, get them through as fast as possible.

[07:31:10] We want to have it cost as little as possible. We do not want anyone to feel like that bringing it into compliance in and of itself is going to be such an arduous, expensive task that it cannot happen. We want to encourage that to happen in the best way possible.

[07:31:28] So is there anything set up that would allow people or businesses to do what we're asking them to do and what they should do in the most effective, cost-effective, time-sensitive way possible?

[07:31:45] Have we given the thought to any of those things? There's not currently any program or anything of that nature set up in a dedicated way to what you're referring to. It's something that we could definitely put some thought into, but short answer now.

[07:32:04] All right. So on this one, I probably would either table this or not vote for it, not because I don't think we should do it. I think we do want to bring people into compliance or let them come into compliance, but I also think that what will happen is if businesses believe that coming into compliance is going to cost them thousands of dollars or take forever, They're less likely to do that, which means everyone's in a little bit, well, they're out of compliance, which could be people in more danger.

[07:32:32] So I almost think that there should be a goal that we set to say how this happens quickly and obviously it's going to cause something, and truthfully, they shouldn't have gone out of compliance. But if we're asking them to correct that, let's give them the opportunity to do that in the least painful way possible.

[07:32:51] So we did ask you to bring this back to this meeting. That is absolutely correct. But having this conversation, for me, I think, let's figure out how to help them do that. And maybe that means I can't vote on this tonight or we table this tonight until you bring a plan back for that.

[07:33:09] That's where I am on this one. Thoughts? Okay. Thank you for your insight. We are supportive. That's an amazing insight, Dan. We want to understand what you are seeking from us so that we can be effective in providing that.

[07:33:26] I understand. I essentially agree with everything you said. In bringing it back at a future date, we could look into fleshing out what it would mean to try to do things in a more expedited fashion. We could talk to the county attorney's office partly about how we might be able to lessen or limit the cost in some way because our fees are our fees and those sorts of things.

[07:33:48] So we would have to figure out what that could potentially mean. But, I mean, yes, I think in various ways, I've told many of you tonight, this was trying to respond to the different motions we've received, not with completely fully fleshed out programs, but to receive that direction so that we would then go and work towards building those out.

[07:34:07] Colleagues, would anyone have headache or heartache with me tabling this until they brought back something more fleshed out? I would. I mean, I think if we give them directions. Well, I haven't called on you yet. Yeah. Yeah, so would anyone else have heartache with that?

[07:34:24] How about we all speak on the issue, and then I'll make a motion to the table, okay? So everyone can have their say. I don't want to cut anyone speaking off, but I'll make a motion to the table after that. So, Mr. Crony. Yeah, and I think this is giving staff directions. So we voted on this at the TLUC meeting on January 22nd, and it was always known that this would go on a different track than the walrus.

[07:34:49] And for two years in stakeholder meetings, what we heard was that compliance with existing regulations, enforced existing regulations, compliance with existing regulations, we heard that constantly from stakeholders that that's an issue, that these regulations have been in the in place for decades and you

know that that's the issue not adding new regulations but compliance with existing regulations. So these motions were a way to get there and I think staff

[07:35:27] works with property owners currently. I think that's part of your goal is to work in partnership with property owners to get them into compliance. So I have faith that you'll do that and figure out a way to help the property owner, that they'll be afforded the opportunity to willfully comply and collaborate with the county. But these are not new regulations. These have been in our zoning ordinance for years. It's just, you know, we haven't kind of enforced the compliance. And we heard from stakeholders that that is what's needed throughout at least Western Loudoun through the

[07:36:04] Walrus, and I do support doing it countywide as well. And I really feel like the county has a responsibility to fix what's going on out there that could impact the health, safety, and welfare of the public. Coming in as an ag barn or an ag structure and not coming in then for a change of use when you have public assembly is concerning, you know, is concerning because you don't have

[07:36:39] those building codes, those fire prevention codes. You know, there are requirements that need to be met. And so, you know, the main purpose of these positions is to ensure the health, safety, and welfare of the public. That's kind of my understanding. And, you know, I don't want to punt it down the road. I think we've been waiting long enough. We made this motion in January at TLUC, and then we punted it from the May 4th special meeting that we had here as a board, and so here we are today. And I think we're just giving you direction, and

[07:37:17] you can come back with this direction, because it does say here it's about zoning, building fire and health provisions, bringing that into compliance. And that's what I'm talking about is those provisions. So I think if we give you direction, you can come back to us with ideas of how to make it more affordable for the property owners. So that's my feeling.

[07:37:41] Ms. Gless? Thank you, Madam Chair. I remember several years ago where we had funding for street sign changes. And so we were concerned about people who may not have enough money to do that. And I'm pretty sure that all of us are concerned about the compliance, compliances that the, that folks who own these businesses may have with trying to come, that the issue that they may have in trying to be in compliance with the county.

[07:38:22] So I was wondering if it's possible that we could do something like that to assist businesses so that they can become in compliance with the county ordinance. So if you're referring to a grant-style program, I do think it's entirely possible that the board could provide direction to set something like that up.

[07:38:41] Yes. Okay. Thank you. Thank you. Are you fine? Mr. Turner, take yourself off mute.

[07:38:57] Mr. Turner. Mr. Turner, I'm going to go to Mr. Kirshner and come back to you. Mr. Kirshner. Thank you, Madam Chair. So to Supervisor Coney's point where we heard over and over and over, there was an element of people who said that during the process.

[07:39:15] The majority who were businesses, people working in the West, did not say that. So I just want to set the record straight as far as that's concerned. There were some. There were a few. But again, those were a very select few. Let me ask staff this question in this.

[07:39:30] Because this basically is, I think this is a little premature. That's my personal opinion on this, and that is because we haven't even gotten through the zoning process, and yet we're going to say, well, we're going to conduct, first of all, it's going to take a lot of time and a lot of staff time, I'm assuming, so I'm a little concerned about that.

[07:39:48] Number one, you can speak to that in a second. But two, doesn't it make more sense to put this forward upon the adoption of the Western Loudoun Rural Uses and Standards Zoning Ordinance Amendments since now the new standards will be put in place. And then as a whole, we can help bring people into compliance at that time. Doesn't that make more sense than doing it now? I do think that makes more sense. Okay. And yes, it would take a significant amount of effort. So for those two reasons, I would oppose this or support the chair's motion to table this until I would suggest upon the adoption of the Western

[07:40:24] Rural Uses and Standards, one, because of the time it's going to take in that process. And this This speaks for the second one, number four as well when we get to that, but also because of, I mean, staff suggests that it makes sense, but also because of it doesn't make sense to go through this process and then we're going to change some things and then maybe we'll have to go through the process again with many of our businesses, et cetera.

[07:40:47] So, I think we should wait to adopt this or if we're going to pass it, say we're only going to do this upon the adoption of the Western Rural Uses and Standard Zoning Ordinance Amendment. That's my suggestion. Thank you, Madam Chair. Thank you. Mr. Turner, I'm going to try with you one more time.

[07:41:05] Yeah, I'm sorry, Madam Chair. I'm too used to going next to last. I was out of sequence. My bad. What do we expect to change between now and when we take it off the table? Is that to me?

[07:41:21] Yes. It's your motion. You mentioned you're going to table it. I'm just curious as to what do we expect to change between now and when we pick it up from the table? Well, I think that we—hold on just a second.

[07:41:40] Something else is coming in right now. Just give me a second. My sister's in the hospital, so just give me a second. Stop his time for a sec. Okay.

[07:41:58] I'm sorry, Mr. Turner. Ask me that again. Yeah. We're tabling it for a purpose, and I'm a little confused as to what the purpose is. Oh, I'm sorry. Yes. So, what I was actually saying was, I agree with Mr. Crony that we want to— let people bring themselves into compliance the best way they possibly can.

[07:42:18] We want people to -- we want these to be in compliance. However, I don't know, to answer your question, if we can help them get in compliance in the most cost effective and quickest way possible.

[07:42:35] And so some type of plan to help people coming to compliance, because my fear is if we don't help people get into compliance in a cost-effective, quick way. They just won't do it, and we just may not hear it or know it. And so if I agree with Mr. Crony, and I do, that we want people to do this quickly and now, and again, they should have never taken themselves out of compliance, let's figure out how to help them do that as quickly and cost-effectively as possible. And as staff has said, they brought this to us for our consideration right now,

[07:43:09] not for us to say yes or no definitely right now before i run out of time can i offer can i offer friendly sure to table it with direction to staff while it's tabled to propose a framework for how we would

conduct the educational campaign and then recommend a time to come back to us absolutely that would that would have been why i would have i would have assumed that that would staff would know that but sure yeah so i'm going to actually i'm sorry mr turner do you have anything else No, I have nothing else.

[07:43:40] Okay, I'm going to make a motion to table. I will say that I'm going to table what I am now calling the third motion, because I've made two already, to a date specific before the end of the year to ask staff to come back with clear guidelines, or clear guidelines or ideas of how we will assist people or businesses that are out of compliance for non-residential users in the rural policy area to come into compliance as cost-effectively and quickly as possible.

[07:44:18] Does that give you enough to work with, Dan? It does on the content. You said a date specific. Is there a date you want to target? No, just before the end of the year. Before the end of the year. Yes, we can use it.

[07:44:33] That's fine with me. Because we're actually not that far from August break, and then we kind of, you know, maybe by the end of November, but before the end of the year, it's fine with me. Point of clarification? Yes, ma'am. So there was a motion on the dais about a grant program.

[07:44:52] Can that be looked into? I mean, I think that might be a good idea. It wasn't my motion. Sure, sure, sure. I got you. I got you. That was Julie's motion. I got you. So, Ms. Bricksman, would you like to add a friendly to this motion, using your motion?

[07:45:13] Sure. Okay. Yeah. I guess so it's basically in conjunction with number three. Mm-hmm. Do you want me to read it? Sure. I move that the Board of Supervisors direct staff to develop a grant program in coordination with the county's Economic Development Authority to assist rural businesses to come into compliance excuse me with the zoning regulations and that staff recommend a grace period for businesses that are moving toward compliance i further move that staff return to a future board of supervisors business meeting with a draft program guidelines and cost estimate to implement such a

[07:45:51] program absolutely and i would take that as a friendly mr sainz are you fine with that as the maker of the motion also the secondary motion okay wonderful madam chairman can i just have a point of clarification? Sure. Maybe through you to. This is a, this is a, yeah, sure. Yeah.

[07:46:07] I just wanted to make sure, is the Economic Development Authority the correct, or should it be the Economic Development Department? It's been so long since we wrote this. I would think it'd be the authority. I can't remember. It is. It's correct. Okay. All right. Thank you. Can I also make a point of clarification, Supervisor Bressman, to your motion? It's not new zoning regulations and zoning regulations it's not new so we'll take out the word she's right okay that's fine okay I got the word new that's fine yeah that's absolutely fine all right this is a this is a motion to table so there's no

[07:46:44] discussions complication is fine though all right all right all the people who say aye aye any opposed that motion will pass 9-0 and now we make the final motion. Thank God. I move the Board of Advisors to conduct a one-time inventory of non-residential uses in the rural policy area to assess the level of non-compliance and to inform a compliance and educational campaign. I don't love this one. I don't love this one. Is this motion

[07:47:18] needed for notion number three to happen? Yes. I mean, it's, we need to have a basis understanding of what, where every business is in order to know who we'd have to contact. Okay. And I understand that. I do. How would you do the inventory? How would you go about doing the inventory?

[07:47:43] I mean, it would be a combination of just looking at readily available information online and seeing what people are putting out there about whatever businesses they claim to be running in different locations and inventorying that, trying to see what permits have been pulled by comparison to see if those things line up.

[07:48:00] I mean, that's the fundamental basis of it. Okay, that makes sense. So it wouldn't be kind of driving around to try to find out, hey, are you out of compliance? I mean, if you drove up on somebody and found that was true, okay, but you wouldn't even have the manpower to do it like that, correct?

[07:48:15] Correct. Okay. And could you do the inventory and then come back with what we just did on item number three, as I am calling it, and do all that by the end of the year? To come back with a completed inventory or like further discussion about the process of what it would?

[07:48:33] Well, I don't know if the inventory will ever be complete. I think the inventory to some degree is always going to be ongoing because there always may be something else. I know, but I'm asking you, could you do this number that I just read?

[07:48:52] And if this proceeds the third motion that we've already done, could you do this and the third motion by the end of the year? I would say the only potential way to do that would be to hire a third party for assistance.

[07:49:17] I don't think we'd have the staffing to do that. I don't think you would either. On top of things. Everything else. I don't think you would either. And quite frankly, I'm so glad you answered that like that because sometimes you always say, if you want that to be done, we'll get it done. I usually say that we have to take something else off the list. And we don't want to do that either.

[07:49:34] That would be a lot. That would be a lot. So then I may have to go back and adjust motion three then and not have the time stamp at the end of the year so that we can do the inventory and have number three happen. I do think we could report back to you in some fashion, but I could not commit to having the inventory done to have it presented in any way.

[07:49:57] Well, the inventory is predicated. Number three is predicated on the inventory. Yes. So even if you had the inventory done, you couldn't get number three done. That's kind of my point. Yeah, okay. So, yeah, we'll have to go back and maybe change the motion for number three to not say at the end of the year to maybe say after Raw was just complete.

[07:50:19] Okay, Mr. Crony? So I have a friendly, I have a motion. I'm wondering if you would accept my friendly. Sure, you got it in front of me, ma'am? It's on purple. It's on purple? To, instead of one time, you said it, that is maintained on an ongoing basis.

[07:50:35] Yeah, yeah. I think that makes more sense because one time, you know, this is fluid. You have to monitor. So we do, just so everybody knows, we do a database. We track a database on short-term residential rental properties, and that's monitored and tracked.

[07:50:56] So I think you'd have to make this more fluid and less one time. Well, I don't disagree with you. I don't know what staffing looks like for doing this. And so that's, I mean, that's my issue for that.

[07:51:11] I mean, that would probably mean another staff person or two to do that. I don't think that the people we're hiring could do that. So without knowing more about staffing, I don't disagree with your

friendly, but I don't know if I could accept it without knowing more about staffing. And I'm in your time, so I don't want to say anything.

[07:51:27] Oh, yeah. Well, let me ask Mr. Glendo. Mr. Glendo, Mr. Glendo, would you need a lot of staffing? to maintain it on an ongoing basis versus one time? I mean, it would definitely be a substantial workload.

[07:51:48] I think what ongoing means would be important to understand what the board's intention is. I mean, it could be something where hypothetically, once we have a baseline, we try to look at things once a year and see what would need to be updated. Once we have that baseline, not every item in an inventory is going to need to be updated.

[07:52:09] But right now, I'm not sure exactly how much additional effort that would be on an ongoing basis. We'd have to put some thought to it. So I couldn't accept that for not knowing that, Mr. Crony. Okay. Are you done?

[07:52:29] Well, I just, I think it's important to do the inventory to have a baseline. So I do support this because you really can't do three without four. And when we talked about this in January in T-Loc, it was clear we needed that analysis to understand how many issues there are out there and, you know, what we're talking about.

[07:52:58] So we did need that analysis. So I think it's important to do this. And I don't want to wait until walrus is done because that could be at the end of 27. well no it won't because we've already changed that well it could still it just depends on i know we did but you know what i'm talking about it could take long it could take a while for the board to make decisions so um but i would like this to be sooner to help inform all right thank you ma'am um mr turner uh i'm comfortable with everything that's been said so far okay anybody

[07:53:38] else i'm sure point of clarification sure are you moving to table this similar to the last one No, I'm not. I'm not going to table it, but I will go back to the last one and to number three and change the date to after Walrus has finished.

[07:53:55] Okay. Because we just can't, they just can't do it all by then. And another point of clarification, do you know what that date's going to be before I speak on the motion? Well, we have said that we want, I think, what was our timeline for Walrus to be done, Mr. Peroni? Was it next, get it back to us by July? June 1st of next year.

[07:54:13] So the motion will be a completion of Walrus? Yes. Okay. June 1st of next year. That's basically my amended motion. Thank you. No, this would not be, but I have to go back to amend number three. Yeah. Yes. Yes.

[07:54:29] Okay, another point of clarification. Sure. I'm sorry. I'm having an understanding. That's okay. This one, it goes with number three, and you will go back and amend number three to come back for that to be completed upon the completion of Walrus. Yes. Is that correct? So, basically, the two become a package upon completion of Walrus.

[07:54:48] Well, I don't know if they say they become, maybe. I don't know if I like to say it like that. I know that number three is, you can't do number three without doing number four. Okay. And so we have

to let number four play out, and they will come back with that. But all of it should be done by the completion of walls.

[07:55:04] But I'd like to see this done before the completion of walls. But all of it will be done by June 1st of next year, which is not that far away, actually, unless I'm thinking about it. And I know, and I guess I'm in my time. I'm in your time.

[07:55:19] I know we discussed this. I'm a little surprised that Supervisor Crony brought her motion forward because it was very clear from the members of TLUC and those who spoke that a one time in order to avoid this concept that we're heavily regulating our rural uses and this maintaining ongoing basis is exactly what that does.

[07:55:40] Whereas this was a one time inventory to look at to help businesses that may be out of compliance. Again, I don't think this is nearly as widespread as everybody, certain people, I shouldn't say everybody, because a lot of people don't think it is. And I think we're going to be surprised that most of these folks are in compliance.

[07:55:57] But there will be some, obviously, and we're well aware of that. But the idea of maintaining an ongoing basis, which I know is not part of this, is friendly, is exactly what I think everyone fears in this process, that there will be some continued oversight and regulation, and it'll be kind of Big Brother peeking into everybody that's going on rather than reactive enforcement, which every other county around us follows.

[07:56:22] So I'll support this motion going forward. Thank you, Madam Chair. Okay. I made the motion. Supervisor, the 22nd of the motion, all in favor, say aye. Aye. Any opposed? That motion passed 9-0. I will have to go back, and Supervisors, I'd like to, without objection, set aside the date on the third one, which we made it at the end of the year, and change that date to June 1st, June, was that the date, Mr. Crony, for Walrus, June 1st?

[07:56:53] June, well then, coming to the board on June 1st, okay, okay, you're right. So then, then we have to say something like May 1st, because it has to be done before it comes to the board. Might I suggest having, might you suggest?

[07:57:10] Let me report back to you in conjunction with the first DPZ work plan of the year, which is your second business meeting in January. That sounds fine. So we'll leave it like that until we come back? Because if nothing else, I can report back to you and then we can move to a future meeting in conjunction with what we're supposed to do.

[07:57:25] Sounds good. So we'll leave it there until you come back to us. Supervisors, that takes care of that incredibly painful item. We have one more closed session. Do we need a break or can we go right into it? Huh? You need a break? Okay, let's take a five-minute break for the last closed session.

[07:57:46] Madam Chair, if I may let the board know, it's almost midnight, and to go into the closed session or take any action on number 17 would then require a suspension of the rules. Okay, about number 17. All right, thank you for reminding me. You make a good point. This is such a crony effect on our board. I know. Okay, supervisors.

[07:58:14] what? Supervisors, what? Supervisors, wait, no, it's, no, it's, okay, because it's, it's 1055 right now, so 1155 right now, so we go to closed session, come back out, and then

[07:58:51] take a vote to go to the next item, is that what y'all were saying to me? To do, you would have to. Ah, yeah, yeah, yeah, yeah, okay, but that, but that's nothing applied for closed session. We only did that at the top of the meeting, Mr. Letourneau. Oh, yeah, yeah, Yeah, but that won't happen until the top of the meeting, Ms. Oternell.

[07:59:14] Okay. No, not right now. So the closed session item, which I cannot find to read us into. Thank you, sir. I move the Board of Supervisors recess the public meeting and enter into closed session pursuant to Virginia Code Section 2.2-3711A1 regarding appointments, performance, assignments, and other actions pertaining to a member of the Board of Supervisors.

[07:59:40] Motion made second. Mr. Sainz, discussion on the motion. Hold on a second. Mr. Turner, are you there? I'm here. Session on the motion. Mr. Brooksman. Thank you, Madam Chair. This closed session appears to be the same topic as a recent closed session, which was an inappropriate use of the board's time, an inappropriate use of staff's time, and an inappropriate use of county resources as we kept the building open, clerks on the clock, and security guards here until well past 1 a.m. on May 19th.

[08:00:13] Nothing discussed at the May 19th closed session or proposed for this closed session even remotely relates to governing or to conducting the business of the people of Loudoun County who have entrusted us to represent them. To my knowledge, no board member has failed to perform their job according to our oath of office, our rules of order, or our code of conduct.

[08:00:34] No supervisor, to my knowledge, has committed a crime, been accused of a crime, acted or behaved unethically, or even has given the appearance of doing anything that would violate our code of conduct. break ethical standards, or misuse county resources. Board members generally have behaved professionally while conducting county business as required by our Code of Conduct.

[08:00:55] However, I cannot say the same about the behavior of several of my colleagues during our last closed session on this topic. In fact, I believe it could be argued that several of my colleagues violated the 14th point of our Code of Conduct at our last closed session that requires us to treat the public, staff, and each other with professionalism, courtesy, and respect, respect all opinions, and maintain a professional atmosphere both in public and private meetings.

[08:01:22] This did not happen at the May 19th meeting, so I will not vote to approve us to go into another very similar session. I will be voting no on this motion. Thank you, Madam Chair. Thank you. Mr. Turner, do you have anything to say?

[08:01:40] Yeah, I really do, but I won't say it. Thank you. I will go to Mr. Rogers as our county attorney. Mr. Rogers, would you ever allow us to go into closed session for something that you did not think was a valid reason to go to closed session?

[08:01:58] Madam Chair, I hope that that wasn't the input of the statement because it was a valid reason to go into the closed session. Yes, ma'am. All right. Madam Chair, point of clarification. No, no, no, no, no, no, no, no. I'm sorry, Mr. Turner. We can say what we're going to say in closed session, but I went by you.

[08:02:15] I actually have a point of order then. Yes, sir. The point of order is, did Supervisor Brisman just disclose the contents of a closed session publicly? I do not believe she did. Okay, thank you. I do not believe she did.

[08:02:32] I would say that I would—oh, I'm sorry, Ms. Umstead. Thank you, Madam Chair. I think this is a really bad idea, and I cannot support going into closed session. And I'm fearful if I do go into closed session, I would not be able to certify that we kept within the limits.

[08:02:55] So I will not participate in closed session tonight. Thank you. Okay. I would say that reading our Code of Ethics, number 13 and 14, was violated by a board member.

[08:03:11] Thus is the reason of going into closed session the first time. I would also say in closed session the first time there were agreements made that have not happened, although they were agreed to.

[08:03:27] And so that in and of itself, if nothing else, is a reason to have this discussion back in closed session again. So with the Code of Ethics in front of me, I would disagree.

[08:03:42] And I think that the reason we went into closed session the first time is a glaring, and I don't know if I even have the words, violation of not only trust of the public, but trust of, well, trust of the public is the most important thing.

[08:04:09] Nothing else is more important than that. I believe that, no, let me change that. We, whether we like it or not, are the nine people elected to sit, the honor to sit on this dais. And I know that there are times when no matter where we are or what we're doing, there's a way we're supposed to conduct ourselves at all times.

[08:04:35] And that is what it means to sit on this dais. And when that doesn't happen, it may require a discussion of the board. I am happy to have that discussion right here in the open. I've already made that offer to have that discussion in the open.

[08:04:52] So if you want to have that discussion in the open and not in closed session, that's fine with me, too. Otherwise, I would take this vote to go into closed session. I made the motion. It was seconded by Mr. Sains. All in favor to go into closed session, please say aye. Aye. Opposed?

[08:05:08] That motion will pass. Seven to two. We are in closed session. It wouldn't be seven to three. It would be six to three.

[08:47:19] I like Magnificent Seven. All right, we're out of closed session. I move the board of supervisors—I move that the closed session be adjourned.

[08:47:35] The board of supervisors reconvene this public meeting, that the minutes of the public meeting should reflect that no form of action was taken during the closed session. Further, I move the resolution certifying the closed session be adopted and reflect in the minutes of this public meeting. Motion made and seconded by Supervisor of Sains.

[08:47:51] Discussion on the motion? All in favor, please say aye. Aye. Any opposed? That motion will, you guys, we're out of closed session now, so are you voting or not?

[08:48:07] Because we're out of closed session. I guess I can vote to come back into open session, but I can't affirm. Yes, you're not going to affirm, obviously. They should abstain. They should abstain, but not affirm. So that motion will pass.

[08:48:22] Mike, are you there? I am now. Okay, wonderful. Then that motion will pass 7-02 with Ms. Bricksman and Ms. Umstead abstaining. Would everyone please affirm? Mr. Turner? I affirm.

[08:48:39] Ms. Glass? Affirm. And I affirm as well. All right, everyone. We are done for what? Oh, okay. I'm sorry. We have to actually suspend, well, we have to suspend the rules.

[08:48:56] Do we? Oh, I thought you had to add it. It's after midnight. It's after midnight. Oh. Yeah. All right. I'm moved to suspend the rules to take up item number 17, board member appointment, change to regional committee. Second to suspension of the rules. Discussion on suspending the rules. Yes.

[08:49:17] I just have a question. Which board member? We talked about it at the beginning of the meeting, Mr. Sains and Mr. Crony for a call position. Okay. We have that discussion at the beginning of the meeting. Mr. Kirshner. I need to make an appointment, too, if that's okay.

[08:49:32] Okay, but you're cool with this? Yes. All right. Sorry. All right. All in favor, please say aye. Aye. Any opposed? Thank you. That motion will pass 9-0. Would you like to make another motion? Yes, Madam Chair. Thank you. I move that I am going to be nominating Mr. President Toney to take up my position on the COG, which is a committee on government council on the Climate, Energy, and Environmental Policy Committee.

[08:50:03] she currently is the alternate for this committee so we're just going to swap so she's going to go to the the active member and i will go to the to the alternate member is that a motion for this commission yes that's okay motion made and seconded discussion on the motion no need for discussion who say aye aye any opposed emotion passed nine zero mr kirchner i know um i don't have to suspend the rules i just have a nomination i nominate leslie quelchelle i guess is how you pronounce her name as at large representative to the disability service board so okay mr

[08:50:40] kirsten congratulations one more time thank you all right yeah mr yes sir i did not get my disclosures earlier tonight because i was off you were you want to give those sure i'm happy to wait until the next no no go on go on go on go on this is fast on june 2nd 3rd and 15th my staff and i spoke with kathleen andrew from dominion to discuss the has been substation on june 3rd my My staff and I spoke with Brian Conklin, Russ Powell, and Ron Snyder from Atapco Properties to discuss the application for West Belmont.

[08:51:10] On June 3rd, my staff and I spoke with Amanda Williams from Cooley to discuss the application for Digital Dulles Western Lands Campus. On June 8th and 15th, my staff and I met with Dominion, Novak, and Equinix to discuss the barrister, Aspen, the Golden, and Damon Substance. That's it. Damon Substance.

[08:51:26] Okay. Wonderful. Anybody else? Okay. Thank you, everyone. We are adjourned.



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